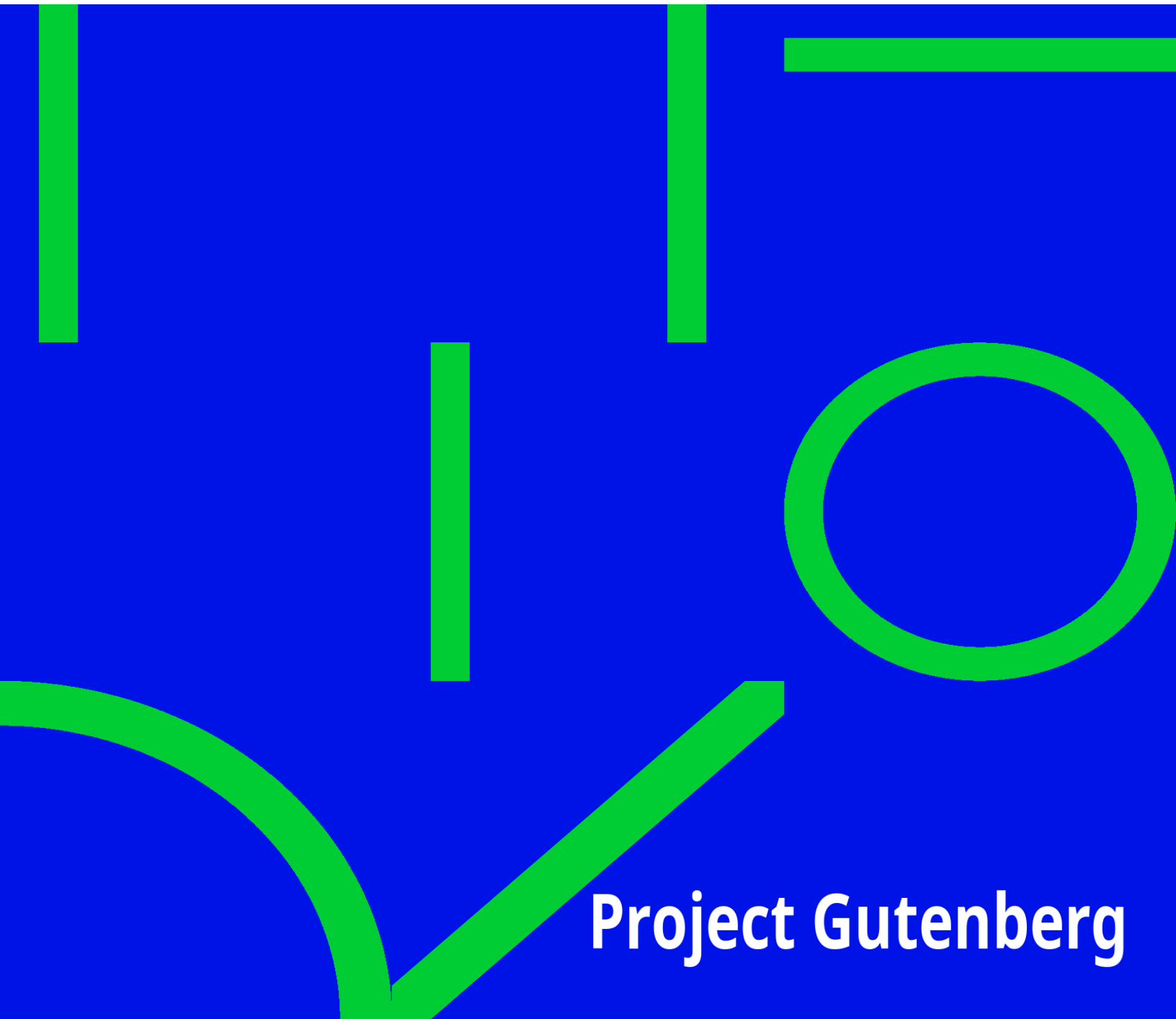


The Twin Hells

John N. Reynolds



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HELLS ***

THE TWIN HELLS

**A Thrilling Narrative of Life in the
Kansas and Missouri Penitentiaries**

By John N. Reynolds

ATCHISON, KANSAS.

**TO MY DEAR OLD MOTHER
AND
TO THE MEMORY OF MY SAINTED WIFE
THIS BOOK
IS AFFECTIONATELY DEDICATED BY
THE AUTHOR.**

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PREFACE

The following pages treat of hell—A Kansas hell and a Missouri hell. Those who desire to peruse works that tell about Heaven only, are urged to drop this book and run. I was an inmate of the Kansas penitentiary for sixteen months, and make mention of what came under my own observation in connection with what I experienced. While an inmate of this prison I occupied cells at various times with convicts who had served terms in the Missouri prison. From these persons I gathered much useful material for my book. After my release I visited the Missouri penitentiary, and verified the statements of those criminals, and gathered additional material from the prison records and the officials. I have written chiefly for the youth of the country, but all ages will be deeply interested in the following pages. A large majority of the convicts are young men from sixteen to twenty-five years of age. They had no idea of the terrible sufferings of a convict life, or they surely would have resisted temptation and kept out of crime. The following pages will impart to the reader some idea of what he may expect to endure in case he becomes entangled in the meshes of the law, and is compelled to do service for the State without any remuneration. Every penitentiary is a veritable hell. Deprive a person of his liberty, punish and maltreat him, and you fill his life with misery akin to those who wander in the darkness of "eternal night," I think, when the reader has perused the following pages, he will agree with me, that the book has the proper title. That this volume may prove an "eye-opener" to the boys who may read it, and prove interesting and instructive to those of mature years, is the earnest wish of the author.

A KANSAS HELL

CHAPTER I. MY INITIATION AND CRIME

Guilty! This word, so replete with sadness and sorrow, fell on my ear on that blackest of all black Fridays, October 14, 1887.

Penitentiary lightning struck me in the city of Leavenworth, Kansas. I was tried in the United States District Court; hence, a United States prisoner.

The offense for which I was tried and convicted was that of using the mails for fraudulent purposes. My sentence was eighteen months in the penitentiary, and a fine of two hundred dollars. I served sixteen months, at the end of which time I was given my liberty. During the period I was in prison I dug coal six months in the penitentiary coal mines, and was one of the clerks of the institution the remainder of the term. Getting permission to have writing material in my cell, I first mastered short-hand writing, or phonography, and then wrote my book: "A Kansas Hell; or, Life in the Kansas Penitentiary." My manuscript being in short-hand, none of the prison officials were able to read it, and did not know what I was doing until I obtained my liberty and had my book published.

This, no doubt, will be the proper place to give some of my antecedents, as well as a few of the details of the crime for which I was sent to the penitentiary. I spent my youth and early manhood at Indianola, Iowa, from which place I removed to Nebraska. After residing for some time in Columbus, of that State, I was appointed by the governor to assist in organizing the Pawnee Indian Reservation into a county. When organized it was called Nance County, being named for Hon. Albinus Nance, then governor of the State. I held the position of county clerk of that county for four consecutive years. During this time I organized the Citizens' Bank. I was its cashier at first, and, later on, its president. I had a lucrative business and was doing well. My wife's health failed her; she became consumptive. My family physician advised a removal to the South. I closed out my business at a great sacrifice, and came to Atchison, Kansas. Here I located, and made it my future home. Soon after my arrival I commenced the publication of a daily newspaper, known as the "Times." In the county in which I located I found one of the worst and most corrupt political rings on

the face of the earth. This combination had controlled the politics of the county for almost a quarter of a century. Soon I became involved in a terrific newspaper war with the members of this political organization. An election of county and State officials was soon to take place. In order to test the strength of the contending elements, in my newspaper, I presented the name of Hon. W. D. Gilbert as a candidate for district judge in opposition to the ring candidate. A sharp fight ensued. Mr. Gilbert was elected by an overwhelming majority. This was the first time for twenty-five years that this ring had been defeated. The members of it were very sore. Looking upon me as the principal spirit, I was the object toward which they directed all their shafts of spite.

Some time before this an insurance company had been organized in the city of Atchison. I was invited to become its president. I examined the books of the corporation, and found it to be organized according to the laws of Kansas; that the company had a charter from the State, and also certified authority to issue policies of insurance, granted by the State insurance commissioner. I accepted the presidency on condition that the company was simply to have the use of my name, and that I was not expected to give any of my time to the company, as I was otherwise engaged. I was editor of a daily newspaper, and could not attend to anything else. While this company was doing business a printed circular was used, stating that the corporation had one hundred thousand dollars PAID up capital. This circular was sent out through the mails over the State advertising the business. It was charged this circular was fraudulent; that the company did not have that amount of capital paid in. My name was attached to this printed circular. For this, I was indicted in the United States District Court, on the charge of using the mails for fraudulent purposes. The advertised capital of this corporation was SUBSCRIBED, but not all paid in, as it was not needed in the business of the company. After indictment I was arrested, and gave bonds for my appearance at the next term of court, which was held soon after.

Not being able to secure the attendance of all my witnesses, my attorney wrote the prosecuting attorney asking his consent that my case be continued. The request was granted. When the case was called, my attorney appeared and introduced a motion to continue the case, filing affidavits necessary in such cases. The prosecuting attorney having given his consent, there was no doubt in the minds of those interested as to the continuance of the case. For some cause best known to himself, the judge would not grant

the continuance, and forced me to trial without having a single witness. It was my intention to have some fifty witnesses subpoenaed, to prove that the insurance company of which I was president was not a fraud. Not being allowed to have my witnesses, I was, under the instructions of the court, which were, indeed, exceedingly pointed, found guilty, and sentenced to eighteen months' imprisonment and to pay a fine of two hundred dollars. The political ring now triumphed for a brief period. In order to prove conclusively to the reader that this was a piece of spite work, I have only to state that I was the only one of all the officers of that company that was ever tried for running a bogus insurance company. Why was it that I was the only one sent to the penitentiary when there was the secretary, treasurer, and six directors equally as guilty as myself?

To prove more conclusively that it was political spite work that sent me to prison, let me inform the readers that about the time the insurance company at Atchison was organized, a similar one was organized in Topeka. They were similar in EVERY RESPECT. I was president of the one at Atchison, while a distinguished gentleman by the name of Gen. J. C. Caldwell was president of the one at Topeka. Both of these companies failed. The president of the Atchison company was sent to the penitentiary, while the president of the Topeka company was appointed by the governor of the State to the responsible position of chairman of the State Board of Pardons. Many persons have asked why this difference in the treatment of the presidents of these two companies. The only answer that can be given is that General Caldwell stood in with the Kansas political ring, while I did not. Every sensible man must admit that if it was just for me to serve a term in prison for the offense charged against me, General Caldwell should have been prescribed for in the same manner. I have no fight to make upon Mr. Caldwell. He is an excellent gentleman. He was in luck. The fates were against me. Had I been a State instead of a United States prisoner, no doubt Mr. Caldwell, as chairman of the Board of Pardons, would have used his influence to secure for me my liberty. That I was sent to prison is wholly due to politics. It is unnecessary, therefore, for me to inform the reader that I am now "out of politics." Having served out my term I returned to my home in Atchison. As to the ring that sent me to prison, some of them are dead, others have left Atchison to make their homes in other places, others have failed financially, and still others have fallen so low that they have scarcely friends enough to bury them should they happen to die.

The big wheel of life keeps on revolving. Those who are up to-day may be down to-morrow, and vice versa. But to continue my narrative. Immediately after my conviction and sentence I was taken to the Leavenworth County jail. Here I remained until the following Tuesday in the company of a dozen or more prisoners who were awaiting trial. On Sunday, while in this jail, my wife, who died during my imprisonment of a broken heart, and an account of which is given in a subsequent chapter, came to see me. I can never forget this visit. She remained with me during the entire day. During the conversation of the day I said to her that, it seemed that the future appeared very gloomy. That it would be a miracle if I ever was able to survive the disgrace that had been so cruelly placed upon me. That all ambition and hope as to the future had fled, and that I could not blame her if she should now free herself by means of divorce, as my conviction of crime was a legal ground for divorce in Kansas. In reply to this, the noble little woman, her face aglow with the radiance of womanly devotion, said, that for twenty years of married life our home had been one of sunshine; that I had been kind to her and made her life one of happiness, and that now, when misfortune came, it was not only a duty, but the highest pleasure, to prove her fidelity. She kept her word. She was true to the last. When dying, her last words were a petition for the blessings of God upon her husband who was far away behind frowning prison walls. On Tuesday morning a deputy United States marshal came to the jail and gave me notice that in a few moments we would leave for the penitentiary. This officer was a gentleman, and did not seek to further humiliate me by placing irons on my person. I have often thought of this act of kindness on the part of this humane official. We took the train at Leavenworth, and in a very few moments were at my future place of residence. Lansing, the small village where the penitentiary is located, is about five miles from the city of Leavenworth. The entrance to the prison is from the west. Under the watchful care of the officer who had me in charge, I passed under a stone archway, to the left of which was a small office, where a guard was on duty during the day time. We were halted by this officer, who inquired if we had any firearms. No one visiting the penitentiary is allowed to carry fire-arms within the enclosure. The marshal who had me in custody handed over a large navy revolver. Between this archway and the western wall of the prison is a beautiful lawn. The walks are lined with fragrant flowers; beautiful fountains send aloft their silvery sprays. Passing up the roadway

leading to the entrance door, and looking about me upon the rich carpet of green, the flowers and fountains, I came to the conclusion that the penitentiary was not so bad a place as I had imagined. I changed my mind, however, as soon as I had seen inside the walls.

The prison enclosure contains about ten acres of ground. This is surrounded by a stone wall some fifteen feet high, and six feet thick at the base. It is not more than four feet at the top. At each of the four corners may be found a tower rising some ten feet above the wall. A guard is on duty in each of these towers during the day. He carries a double-barreled shotgun loaded with buckshot. In case a prisoner tries to escape he is liable to get a dose of lead, provided the officer on duty is a good marksman. The western wall is almost entirely made of a large stone building with its two long wings. The main building is four stories. The wings stretching to the north and south, each two hundred and fifty feet, contain the cells. On the first floor of the main building are the offices of the warden, clerk, deputy warden and turnkey. The upper rooms are used by the warden's family.

I was first conducted into the clerk's office and introduced to Mr. Jones, the clerk. He is a very pleasant gentleman, and spoke kindly to me, which I can assure all was very acceptable, for just about that time I was feeling very badly. His remark was: "I am very glad to meet you, Mr. Reynolds, but sorry to meet you under these sad circumstances." On his invitation I took a chair and sat down to await the next part of the programme. As I sat there and thought of the kind words spoken to me by the clerk, I quickly reached the conclusion that if all the officers of that institution were as kind as Mr. Jones, it would not be as bad a place as I had anticipated. I had no experience then that would justify any other conclusion. Soon a side door of the office opened and in came the deputy warden, Mr. John Higgins. Mr. H. is the sourest appearing man I ever met in my life. At least, it seemed so to me on that day. He can get more vinegar on the outside of his face than any other person in the State of Kansas. He did not wait to be introduced to me. He never craves an introduction to a criminal. As soon as he came into the room he got a pole with which to measure me. Then, looking at me, in a harsh, gruff voice he called out: "Stand up here." At first I did not arise. At the second invitation, however, I stood up and was measured. My description was taken by the clerk. In this office there is to be found a description of all the criminals that ever entered the Kansas penitentiary. I was asked if I was a married man, how many children I had, and how much

property I possessed. These questions were easily answered. After the deputy warden had discharged his duty he retired. I soon discovered that it was according to the rules of the prison for the officers to talk in a harsh and abrupt manner to the prisoners. This accounted for the way in which I was greeted by the deputy warden, who is the disciplinarian of the prison. I may say, in passing, that all the harsh manners of Mr. Higgins are simply borrowed for the occasion. Away from the presence of prisoners, over whom he is to exert his influence, there is not to be found a more pleasant and agreeable gentleman. In came a second official, and, in the same gruff manner, said to me, "Come along." I followed him out to the wash-house, where I took a bath. A prisoner took my measure for a suit of clothes. After he had passed the tape-line around me several times, he informed the officer that I was the same size of John Robinson, who had been released from the penitentiary the day before. "Shall I give him John Robinson's clothes?" asked the convict. In the same gruff manner the officer said, "Yes, bring on Robinson's old clothes." So I was furnished with a second-hand suit! The shoes were second-hand. I am positive about this last statement, judging by the aroma. After I had been in the penitentiary some four months, I learned that John Robinson, whose clothes I had secured, was a colored man. Being arrayed in this suit of stripes I was certainly "a thing of beauty." The coat was a short blouse and striped; the stripes, white and black, alternated with each other, and passed around the body in a horizontal way. The pantaloons were striped; the shirt was striped; the cap was striped. In fine, it seemed that everything about that penitentiary was striped—even to the cats! Being dressed, I was next handed an article that proved, on examination, to be intended for a handkerchief. It was covered with large blue letters—"Leavenworth Mills. XXX Flour," etc. It was a quarter section of a flour sack! Nine hundred prisoners very soon empty a great many flour sacks. After the flour has been consumed the sack is cut up into quarter sections, washed, hemmed and used for handkerchiefs. No better handkerchief can be invented. They are stout, stiff and durable! They will bear all manner of nasal assaults! There is no danger of blowing them into atoms, and the officials are not afraid to give them out to convicts sent there charged with the use of dynamite! One of them has been known to last a prisoner for five years.

After I had donned my suit and taken possession of my handkerchief, I was ordered to fold my arms. Prisoners marching in ranks, or going to and

fro about the prison enclosure, are required to have their arms in this position. The object is to prevent them from passing articles. I was marched to the building known as the south wing of the cell house. In this building, which is two hundred and fifty feet long, there are cells for the accommodation of five hundred convicts. The prisoners who occupy this wing work in the shops located above ground, and within the prison enclosure.

The officer in charge conducted me to cell number one. Click went the lock. The door was pulled open, and in his usual style, he said, "Get in." I stepped in. Slam went the door. Click went the lock, and I was in a felon's cell! These rooms are about four feet wide, seven feet long, and seven feet high. In many of the cells two men are confined. These rooms are entirely too small for the accommodation of two prisoners. A new cell house is being built, which, when completed, will afford sufficient additional room so that each prisoner can have a cell. In these small rooms there are two bunks or beds when two convicts occupy the same cell. The bed-rack is made of iron or wood slats, and the bed-tick is filled with corn-husks; the pillow is also filled with the latter material, and when packed down becomes as hard as a board. When the beds are not in use they are fastened to the side of the wall with a small chain. When down and in use they take up nearly the entire space of the cell, so that it is impossible for the two occupants to pass each other in walking to and fro. The other furniture consists of a small tin bucket, holding about two quarts of water, and a wash-basin. A short-handled broom is also found in one corner of the cell, with which the convict brushes it out every morning. The walls are of stone, decorated with a small looking-glass and a towel. Each cell contains one chair and a Holy Bible. There is no rich Brussels carpet on the floor, although prisoners are allowed one if they furnish it themselves. No costly upholstered furniture adorns these safe retreats! Nothing in that line is to be discovered except one cane-bottomed chair for the accommodation of two prisoners, so that when one sits on the chair the other stands, or occupies a seat on the stone floor. There is not room for two chairs, or the State would furnish another chair. These rooms are built of stone. The door is of one-half inch iron bars, crossing each other at right angles, leaving small spaces about two by six inches; through these spaces come the air, light and heat for the health and comfort of the inmates. When I entered my cell on that eventful morning I found it occupied by a prisoner. He was also a new

arrival; he had preceded me about an hour. When I entered he arose and gave me his chair, taking a seat on the floor in the opposite corner. After I had been locked in, before going away the officer said, "Now I don't want you fellows to get to talking, for that is not permitted in this institution." We sat in silence, surveying each other; in a few moments my companion, seeing something in my personal appearance that caused him to lose his self control, laughed. That he might give full vent to his laughing propensities, and not make too much noise, he drew from his pocket his quarter section of a flour bag and put it into his mouth. He soon became as red in the face as a lobster. I was curious, of course, to know what it was that pleased him so much. Rising from my chair, going to the door and looking through the openings I could see no officer near, so I asked my companion, in a whisper, what it was that pleased him so. It was with difficulty and after several trials before he could succeed in telling me what it was that caused him to be so convulsed. I told him to take his time, cool off gradually, as I had eighteen months, and could wait patiently. At last, being able to control his feelings sufficiently to tell me, in the midst of his outbursts of laughter, he said, "You look just like one of them zebras in Barnum's Circus!" When my attention was called to the matter, sure enough, I did look rather striped, and I, amused at his suggestion, laughed also. Soon an officer came gliding around in front of the cell, when our laughing ceased. My companion was a young fellow from Doniphan County. He got drunk and tried to rob an associate, still drunker, of a twenty dollar gold piece. He was arrested, tried and convicted of robbery, receiving a sentence of one year. Directly an officer came, took him out of my cell and conducted him to another department. All alone, I sat in my little parlor for nearly an hour, thinking over the past. My reverie was at length broken by the turning of my door lock. A fresh arrival was told to "git in." This prisoner had the appearance of just having been lassoed on the wild western prairies. He resembled a cowboy. His whiskers were long and sandy. His hair, of the same color, fell upon his shoulders. As soon as the officer had gone away and everything had become quiet, I asked this fellow his name. "Horserider," was his reply, from which I inferred that he was a horse-thief. "How long a term have you?" was my next question. "Seven years," was his reply. I comforted him by saying it would be some time before he rode another horse.

The next part of the programme consisted in a little darkey coming in front of our cell with a rudely constructed barber's chair. The cell door

opened, and an officer said to me, as if he would hit me with a club the next moment, "Git out of there." I went out. Pointing to the barber's chair, he said, "Squat yourself in that chair." I sat down. "Throw back your head." I laid it back. It was not long before my raven mustache was off, and my hair cut rather uncomfortably short for fly time. After this tonsorial artist had finished his work then came the command once more, "Git in." I got in. It now came Mr. Horserider's turn to bid a long farewell to his auburn locks. He took his place in the chair, and the little darkey, possibly for his own amusement, cut off the hair on one side of the head and left the other untouched. He then shaved one side of his face without disturbing the other. At this moment the bell for dinner rang, and the little colored fellow broke away and ran to his division, to fall in ranks, so that he would not miss his noon meal. Once more Mr. Horserider entered his cell and we were locked in. A more comical object I never beheld; he did not even possess the beauty of a baboon; he might certainly have passed for the eighth wonder of the world. When he came in I handed him the small looking-glass and asked him how he liked his hair-cut. Remember, one side of his head and face was shaved close, and the other covered with long sandy hair and beard. Looking into the glass, he exclaimed: "Holy Moses! and who am I, anyway?" I answered his question by stating that he favored Mr. What-Is-It. He was very uneasy for a time, thinking that he was going to be left in that condition. He wanted to know of me if all horse-thieves of the penitentiary wore their hair and whiskers in this style. I comforted him all I could by imparting the information that they did. He was much relieved when the darkey returned after dinner and finished the shaving.

I was next taken out of my cell to pass a medical examination. Dr. Mooney, the gentlemanly officer in charge of the hospital, put in an appearance with a large book under his arm and sat down by a table. I was ushered into his presence. He began asking me questions, and wrote down my answers in his book, which proved to be the physician's register.

"Have you any decayed teeth?" was his first question,

"No, sir," was my reply.

"Have you ever lost any teeth?"

"No, sir."

"Have you ever had the measles?"

"Yes, sir."

"Have you ever had the mumps?"

"Yes, sir."

"Have you ever had the chicken-pox?"

"Yes, sir."

"Have you ever had the thresh?"

Well, I didn't know what was meant by the thresh. I knew that I had been "thrashed" a great many times, and inferred from that fact that I must have had the disease at some time or other in my youth, so I answered,

"Yes, sir."

"Have you ever had the itch?"

"What kind?" said I. "The old fashioned seven year kind? Y-e-s, sir, I have had it."

He then continued asking me questions, and wanted to know if I ever had a great many diseases, the names of which I had never heard before. Since I catch almost everything that comes along, I supposed, of course, that at some period during my childhood, youth or early manhood I had suffered from all those physical ills, so I always answered,

"Yes, sir." He wound up by inquiring if I ever had a stroke of the horse glanders. I knew what was meant by that disease, and replied in the negative.

He then looked at me over the top of his spectacles, and, in a rather doubting manner, said, "and you really have had all these diseases? By the way," he continued, "are you alive at the present moment after all that you have suffered?" Mr. Mooney is an Irishman. He was having a little cold-blooded sport at my expense. Whenever you meet an Irishman you will always strike a budget of fun.

His next question was, "Are you a sound man?"

My reply was to the effect that I was, physically, mentally and morally. So he wrote down in his book opposite my name "physically and mentally a sound man." He said he would take my word for being sound morally, but that he would not put that down on the books for the present, for fear there might be a mistake somewhere. Before discharging me, he calmly stated that I would make a good coal miner. All the prisoners undergo this medical cross-examination.

After I had run the doctor's gauntlet, I was conducted from the south wing of the cell-house to the north wing. Here I met for the first time Mr. Elliott, who has charge of this building during the daytime. It is a part of this highly efficient officer's duty to cross-examine the prisoners as to where they have lived and what they have been doing. His examinations are very rigid. He is a bright man, a good judge of human nature, and can tell a criminal at sight. He would make an able criminal lawyer. He is the prison detective. By means of these examinations he often obtains clues that lead to the detection of the perpetrators of crime. I have been told by good authority that on account of information obtained by this official, two murderers were discovered in the Kansas penitentiary, and, after their terms had expired, they were immediately arrested, and, on requisition, taken back to the Eastern States, where the crimes had been committed, and there tried, convicted and punished according to the laws of those States. After I had been asked all manner of questions by this official, he very kindly informed me that I came to the penitentiary with a bad record. He further stated that I was looked upon as one of the worst criminals in the State of Kansas. This information was rather a set-back to me, as I had no idea that I was in possession of any such record as that. I begged of him to wait a little while before he made up his mind conclusively as to my character, for there might be such a thing as his being mistaken. There is no man that is rendering more effective service to the State of Kansas in the way of bringing criminals to justice than Mr. Elliott. He has been an officer of the prison for nearly nine years. As an honest officer he is above reproach. As a disciplinarian he has no superior in the West.

After this examination I was shown to my cell. It was now about two o'clock in the afternoon of my first day in prison. I remained in the cell alone during the entire afternoon. Of all the dark hours of my eventful history, none have been filled with more gloom and sadness than those of my first day in prison. Note my antecedents—a college graduate, a county clerk, the president of a bank, and an editor of a daily newspaper. All my life I had moved in the highest circles of society, surrounded by the best and purest of both sexes, and now, here I was, in the deplorable condition of having been hurled from that high social position, down to the low degraded plane of a convict. As I sat there in that desolate abode of the disgraced, I tried to look out down the future. All was dark. For a time it seemed as if that sweet angel we call hope had spread her wings and taken

her departure from me forever. The black cloud of despair seemed settling down upon me. But very few persons possess the ability to make any thing of themselves after having served a term in the penitentiary. Having once fallen to so low a plane it is almost impossible to rise again. Young man, as you peruse this book, think of these things. Once down as a felon it is a miracle if one ever regains what he has lost. I sat brooding over these things for an hour or more, when my manhood asserted itself. Hope returned. I reasoned thus: I am a young man. I enjoy good health. There will be only a few months of imprisonment and then I will be free. I thought of my loving wife, my little children, my aged mother, my kind friends, and for their sake I would not yield to despair. Soliciting the aid of a kind Heavenly Father, I resolved to do the best I could toward regaining what I had lost. My father was a minister of the gospel for fifty years prior to his death. He was not blessed with much of this world's goods. For this reason I began in very early life to aid myself. I spent seven years in college preparing for the struggles that awaited me. I earned every dollar of the money which paid my expenses while securing my education. I carried the load to assist in building the college in which I afterward graduated. Few men can truthfully make this statement of themselves. While working my way through the institution where I received my education, I learned one useful lesson—self reliance. I learned to depend upon my own efforts for success. Every one must learn this useful lesson before he can become anything in life. After I had met with misfortune and found myself in a prison cell, I was glad that I had learned to rely upon my own efforts.

The question: "What shall I do in the future?" now came to me. That afternoon I laid my plans which I would carry out in the years to come. I was financially ruined in the great battle I carried on with the Atchison ring. I was aware of the fact that, when I got out of the penitentiary, all the money that I would have with which to make another start in life would be five dollars. The United States presents her prisoners, when discharged, with a suit of citizen's clothes and five dollars. This was my capital. What could I do with five dollars, in the way of assisting me in getting another financial foot-hold in life? After my release it was necessary for me to do something at once to get money. It never entered my mind to borrow. It will be interesting to the reader to know what I did, after my prison days were past, to make a "quick raise." Sixteen months of imprisonment slipped away. I regained my liberty on Monday. I received my five dollars and

immediately started for my home, in Atchison. On my arrival, Monday night, I had four dollars and ten cents. On Tuesday morning I went to the proprietor of the Opera House, in Atchison, and inquired how much money was necessary to secure the use of the building for the next evening. "Fifty dollars," was his reply. I gave him all the money I had, and persuaded him to trust me for the rest. I informed him that I was going to deliver a lecture on my prison life. He asked if I thought anybody would come to hear a convict talk. In answer, I told him that was the most important question that was agitating my mind at the present moment, and if he would let me have the use of the Opera House we would soon settle that question. I further told him that if the receipts of the evening were not enough to pay him for the use of the house, that I would pay him as soon as possible. He let me have the use of the house. I advertised in the daily papers of the city that I would lecture in the Opera House the following evening on my prison life,—admission fifty cents. I thought if the good people wanted to come at all they would come even if they had to pay well for it. I was very restless from the morning that I engaged the Opera House until the next evening, at which time I was to speak. I did not know whether I would have any audience. If not, I was fifty dollars deeper in debt. The evening for the lecture came, I went to the Opera House prepared to interest anyone that might put in an appearance; I entered the building in the rear, and took my position on the platform. The signal was given and up went the curtain. I was highly pleased when I saw my audience. The building was packed. The lecture was a financial success. In this manner I secured a nice "stake" for future use. I delivered that lecture for several weeks in Kansas, and made a thousand dollars above expenses. To return to my first afternoon in the cell. I thought of another scheme. I conceived the idea that a book about, a penitentiary, giving its history, and also the history of many of the leading criminals, modes of punishment, escapes, etc., would be very interesting, and would sell. I decided to write such a book while in prison. In order to write a book it became necessary to have writing material. How was I to secure this? It was against the prison regulations for a prisoner to have a lead-pencil or scrap of paper. The officials were very strict on this point. It was essential they should be. If the prisoners could pass notes, it would not be long before a prison insurrection would be the result. The plan that I adopted to secure writing material was rather unique, and perhaps the reader will like to know how I managed this difficult matter. It is wonderful

what a man can accomplish, with adverse surroundings, if he wills it. As I have stated before, I had much to do in securing the election of Hon. W. D. Gilbert to the district judgeship. This made him feel very kind toward me. He came often to visit me at the prison. One day while visiting me, I asked him to use his influence with the warden to secure for me the privilege of having writing material in my cell. "What do you want with writing material," said he. The answer I gave was, that I might pass away my leisure hours in learning to write short-hand. He called on Warden Smith, and got his consent. He told the warden that if I would master this useful art while in prison, on my release, he would appoint me his district court reporter, at a salary Of \$2,500 a year. The scheme was a success. I sent and got my short-hand books and writing material. I mastered short-hand, and can now write as fast as one would care to dictate. It was not long before I began writing my book in short-hand. The officials, as was their custom, would examine my cell daily to see if anything had crept in that did not belong there. They could not read short-hand. They did not know what so many little straight marks and curves indicated. I persevered, and one month before my time expired I had my book completed, and sent it out by a friend who visited the prison, who kept it for me until I secured my liberty. As before stated, I lectured until I got money sufficient, and then I published my first book on prisons, giving it the impressive title of "A Kansas Hell." This book sold rapidly, and soon the first edition was disposed of. I made enough money out of this book to place me on my feet, financially. But, to return to my cell the first afternoon. I remained alone until time for the prisoners to come in from their work, when I found that I was to have a "life man" for my cell-mate, whose name was Woodward R. Lopeman. I have given his history in a subsequent chapter. I remained in my cell during the evening, until the prison bell rang for retiring. Strange to say, after going to bed, I soon fell asleep, and did not awake until the prison bell rang on the following morning. When I did awake, it was to find myself, not in my own pleasant little home in the city of Atchison, Kansas, but in a felon's cell. I arose and dressed, and then waited and wondered what would be the next thing on the programme.

CHAPTER II. THE COAL MINES

I was next taken to the coal mines. These mines are located just outside of the prison enclosure, and are surrounded by high stone walls and stone buildings, which, by their location, take the place of walls. The coal yards are separated from the prison campus by a partition wall, which constitutes the south wall of the coal department and the north wall of the prison.

Passing from one of these departments to the other, through a large gateway, the gate being kept by a convict, an old man who murdered his son, and who has a life sentence. Reader, how would you like to spend your entire life, day after day, week after week, month after month, year after year, in the monotonous employment of opening and closing a large gate? When my escort and myself reached the mines, I was placed in charge of Mr. Dodds, the official in control of the mines at the surface. Mr. Dodds is a very competent officer, and has been on duty at that place more than twenty years. From this officer I received a mining cap. This piece of head-wear was turban-shaped, striped, of course, with a leather frontlet, on which was fastened the mining lamp. This lamp, in shape, resembled an ordinary teapot, only it was much smaller. In place of the handle was a hook, which fastened to the leather frontlet. The bowl of the lamp contained the oil; a wick passes up through the spout, at the end of which is the light. The miner carrying his lamp in this position has it out of his way. With the cap on my head and lamp lighted, I stood on the verge of a ten by twelve hole in the earth, that was almost eight hundred feet deep. We think that a well one hundred feet deep is quite a distance down into the ground, but here was a hole eight times deeper. In the mining vernacular this hole is termed a shaft—the term that will be employed in speaking of it hereafter. There are two of these shafts, about one hundred yards apart. Each shaft is divided by a wooden partition which descends from the top to the bottom. Two elevators, or cages, as they are called, ascend and descend along the shaft. While one cage is coming up the other is going down. They derive their motor power from two large engines, one for each shaft. The officer in charge inquired, before making my descent into the mines, if I ever fainted. "Never," was my reply. Persons sometimes faint in going down this shaft. "Step into the

cage," was the order given. I obeyed, and, reaching up, took hold of some iron bars that went across the top. The signal was given, down I started. After I had descended a few feet a current of air coming up from below put out my light, which left me in the darkness of an Egyptian night. Down, down, down I went. There are a great many things in life that I have forgotten. There are a great many more that I expect to forget, but that first ride down the coal shaft I never can forget. Thug! I had struck bottom. It is said that when one starts down hill in this world he keeps on going until he strikes bottom. My readers will certainly agree with me that reaching a resting place eight hundred feet under the surface I had found the lowest round of the ladder. Whatever I may be in the future, to whatever heights I may ascend, I shall not forget that my starting point was nearly a thousand feet under the Kansas penitentiary. Water seeks its level. You may force one below the surface, and to whatever depth you please, to the extent of your power, but if he does not belong there, you cannot keep him down: in the course of time he will rise.

It was six long, dreary months before I was able to reach the first round in the ladder. Through that period I lay in the penitentiary mines, or at the bottom of "The Kansas Hell." It is said the old fashioned Hell has fire and brimstone; while the "Kansas Hell" has no fire, one thing is certain, it has plenty of material out of which to make it, and an abundant supply of sulphur.

At the end of my descent I found an officer there on duty. He told me to step off and occupy a seat on a small bench near by. He desired to impart some information. He advised me that while I was there, a convict, it would not be proper to assume the warden's privileges or endeavor to discharge his duties. In other words, the best thing to do was to keep my place, revolve about in my own orbit, carefully regarding all laws, both centripetal and centrifugal; otherwise, I might burst by the natural pressure of too highly confined interior forces! I confess that, though not subject to such infliction, I very nearly fainted over these ponderous polysyllables! He also informed me that the beautifully paved highway to popularity in the coal mines was to excavate large quantities of the carboniferous substance contained in the subterranean passages of the mine; the more coal I got out the more popular would I be!

After his lecture was over the officer gave a low whistle, and out from a dark recess there emerged a convict in his stripes. His face and hands were covered with coal dust. He came out grinning, showing his white teeth. As I caught sight of him I thought, surely, this is a fiend from the lower regions. Take one of those prisoners with his striped clothes, a light burning on his head, his face black and shining like ebony, behold him in the weird darkness of the mines, and if he does not call to your mind the picture of one of the imps of Eternal Night there is nothing in this world that will. This prisoner was the runner or messenger for this officer at the foot of the shaft. Each officer in the penitentiary who has charge of a division of men has a messenger to run errands for him. When this messenger came up to the officer he made his obeisance. Convicts are taught to observe good manners in the presence of the officials. He was told to take me to another officer in a distant part of the mines, a Mr. Johns, who would give me work. From the foot of the shaft there go out in almost all directions, roadways or "entries." These underground roadways are about six feet in width and height. I could walk erect in most of them. Along these entries was a car track, over which the small coal cars pass to and from the rooms where the coal is taken out, to the shaft, and hoisted to the top with their load of coal. Some of these entries extend more than a mile out into the earth from the base of the shaft. As my fellow-prisoner and I were passing along one of these roadways to the place where I was to work, he asked me my name and the nature of my offense. At this place let me inform, the reader that the prisoners are given permission to converse with each other in the mines. Their instructions are to the effect that they are not to talk about anything but their work, but in the penitentiary the same rule holds good as on the outside: "Give a man an inch and he will take a yard." So, when permission is given to the convict to talk about his work, he talks about everything else. In answer to my escort's question as to the length of my sentence, I informed him that I had eighteen months. He dryly remarked that was nothing, and if the judge who sent me up could not give me a longer term than that, he should have sent me home to my family. He also remarked that he was afraid I would get into trouble in the mines on account of my short sentence. There were a great many long-term fellows down there, who were envious of short-term men, and were likely to put up jobs on them by reporting their mistakes and violations of regulations to the officer in charge, and thus get them punished. I informed my guide that I thought I would get along some way

with the prisoners, and keep out of trouble. I then inquired of him as to the length of his sentence.

"Twenty-five stretches," was his reply. I did not know what he meant by the term "stretches" and asked for information. "That is the prison term for years, a stretch meaning a year," was his reply. I learned that my companion, having twenty-five stretches, was carrying about with him a twenty-five years' sentence. A quarter of a century in prison! This was a young man. He had been in the prison for three years. When he entered this living tomb he had the bloom of youth upon his cheek. When he goes out, at the end of his term, if he lives so long, he will be an old, broken down man. He will not be likely to live that long. The average life of a convict is but fourteen years under the most favorable surroundings, but in the coal mines it cannot exceed five years at most.

Let me tell you of this man's crime, and then you can determine for yourself how easy it is to get in the penitentiary. This young fellow is the son of one of the most respectable farmers in the State. He attended a dance one night in company with some of the neighbor boys at a village near by. While there, he got under the influence of strong drink, became involved in a quarrel over one of the numbers with the floor managers, and in the fight that ensued he drew his knife and disemboweled the man with whom he was fighting. In a few moments the wounded man died. The young fellow was tried, convicted of murder, and sent to the penitentiary for twenty-five years at hard labor. It is awful to contemplate. Young man, as you read this, had you not better make up your mind to go rather slow in pouring whisky down your throat in future?

As we passed along through the mines I thought about that word "stretch," and as I did not like the idea of having jobs put up on me, came to the conclusion that I would render myself popular by telling the prisoners in the mines who might ask me as to my sentence, that I had eighteen "stretches." I did not think that calling a month a "stretch" would be "stretching" my conscience to such a degree as to cause me any particular distress, for I knew that by the time I had served out a month it would seem equivalent to a year on the outside.

After following along the entry for some distance, almost a mile, we came to that portion of the mines where I was to work. Coming up to the place where the officer was seated, the headquarters of this division, my

guide made a low bow, and informed the officer in charge that he had brought him a man. Then bowing himself out, he returned to his place at the foot of the shaft.

The officer in whose division I was to work now signaled his messenger, and there came out of the darkness another convict, stripes, cap, lamp and all.

"Get Reynolds a set of mining tools," said the officer.

These were soon brought, and consisted of a pick, a short-handled shovel, two iron wedges and a sledge hammer.

"Take him," said the officer, "to room number three, and tell George Mullen, who is working in that room, to teach him how to mine."

I got my arms around those implements of coal warfare, and following my escort, passed along the entry for some distance, possibly two hundred yards, when the roadway in which we were walking suddenly terminated, and instead, there was a small hole that went further on into the earth. When we came to this place my guide dropped down on his hands and knees and passed into the room. I halted. I had never been in such a place before. I did not know what there was in that dark hole. Soon my escort called out, "Come along, there is nothing in here to hurt you." So I dropped down on my hands and knees and into the dark hole I went.

These rooms where the miners work are about twenty-eight inches in height, twenty-four inches wide, and about fifty feet long. Think of working in such a place as that! Oh, how often have I sighed for room enough to spread myself! How I would have made that coal fly had the vein been on top where I could have stood on my feet and mined. George Mullen, the convict who was to teach me to mine, was at the farther end of the room at work when we entered. We crawled on our hands and knees to him, and when my guide had delivered his message he withdrew and hastened back to his headquarters near the stand where his officer sat.

After he had gone and my room-mate and myself were left alone, about the first question that George asked me was, "How long have you got?"

"Eighteen stretches," was my quick reply.

George loved me dearly from that moment. I very soon discovered that I was very popular with him on account of my long sentence.

"How long are you in for?" said I to him.

"Always," was his answer.

He was a life prisoner. At one time he was marshal of a Kansas town, and while acting in that capacity he killed his man. He was trying to arrest him, so he informed me, and the fellow showed fight, when he took out his gun and shot him. It was claimed by the authorities that the shooting was unprovoked, and that the man could have been arrested without killing him. Aside from the fact that he had killed his man, I must say that I never met a man for whom I had a higher regard. He was very kind to me, very patient, and made my work as easy for me as he possibly could. I remained with him for nearly a month, when, having learned the business, I was taken to another part of the mines and given a task.

"Have you ever mined any?" inquired my instructor.

"No; I never was in a coal mine before coming here."

He then gave me my first lesson in mining. I lay on my right side in obedience to his orders, stretched out at full length. The short-handled shovel was inverted and placed under my right shoulder. This lifted my shoulder up from the ground a little distance and I was thus enabled to strike with my pick. The vein of coal is about twenty-two inches in thickness. We would mine out the dirt, or fire-clay as it was called, from under the coal to the distance of two feet, or the length of a pick-handle, and to the depth of some six inches. We would then set our iron wedges in above the vein of coal, and with the sledge hammer would drive them in until the coal would drop down. Imagine my forlorn condition as I lay therein that small room. It was as dark down there as night but for the feeble light given out by the mining lamp; the room was only twenty-eight inches from the floor to the ceiling, and then above the ceiling there were eight hundred feet of mother earth. Two feet from the face of the coal, and just back of where I lay when mining, was a row of props that held up the roof and kept it from falling in upon me. The loose dirt which we picked out from under the coal vein was shoveled back behind the props. This pile of dirt, in mining language, is called the "gob." I began operations at once. I worked away with all my might for an hour or more, picking out the dirt from under the coal. Then I was tired completely out. I rolled over on my back, and, with my face looking up to the pile of dirt, eight hundred feet thick, that shut out from me the light of day, I rested for awhile. I had done no physical work for ten years. I was physically soft. To put me down in the

mines and set me to digging coal was wicked. It was murder. Down in that dark pit how I suffered! There was no escape from it. There was the medicine. I had to take it. I do not know, but it seems to me that when a man is sent to that prison who has not been in the habit of performing physical labor, he should not be put to work in the mines until he becomes accustomed to manual labor. It would seem that it would be nothing more than right to give him an easier task at first and let him gradually become hardened to his work at coal digging. Nothing of this kind is done. The young, the old, the middle-aged are indiscriminately and unceremoniously thrust into the mine. Down there are nearly five hundred prisoners. Among them are boys from seventeen to twenty years of age, many of whom are in delicate health. Here are to be found old men, in some cases sixty years of age. I do not wish to be understood as casting any reflections upon the officers of this institution. They cannot help these things. If Warden Smith could avoid it there would not be a single man sent down to that region of death. The mines are there and must be worked. Let this blame fall where it belongs. I must say injustice to our common humanity, that to work these two classes, the boys and old men, in those coal mines is a burning shame and outrage. It is bad enough, as the sequel will show, to put able-bodied, middle-aged men to work in that pit. The great State of Kansas has opened those mines. Her Legislature has decided to have them worked. It becomes the duty, therefore, of the prison directors to work them as long as they are instructed to do so, even if scores of human beings are maimed for life or murdered outright each year. The blame cannot rest on the prison officials, but upon our lawmakers.

CHAPTER III. THE COAL MINES (Continued)

After we had mined some twenty-five feet we took down the coal. To do this the wedges are set and driven in at the top of the vein of coal, with the sledge hammer. After my companion had struck the coal several times it began to pop and crack as if it would fall at any moment. I became alarmed. I was never in such a place before, and I said: "George, had I not better get out of this place? I don't want the coal to fall on me the first day." His reply was, that if I wanted to learn how to mine I must remain near the coal and take my chances of being killed. This was indeed comforting! Then he informed me that he was going to knock on the coal and wanted me to catch the sound that was produced. He thumped away, and I got the sound—a dull, heavy thud. Now, says he, "when coal sounds in that manner it is not ready to drop." So he continued to pound away at it. The more he pounded the more the coal cracked and the more alarmed I became. I was afraid it would drop at any moment and crush me. I begged of him to cease pounding until I got into the entry out of the way of danger. He tried to make me believe there was no danger. I was hard to convince of that fact. There I lay stretched out on my side next to the coal, he driving in the wedges, and the coal seeming to me to be ready to drop at each stroke of the hammer. "Now listen," said he, "while I knock on the coal once more." I listened. The sound was altogether different from the first. "Now," said he, "the coal is about ready to fall." It is necessary for the miner to know this part of his business. It is by the sound that he determines when it is ready to fall. If he is ignorant of this part of his work, he would be in great danger of getting killed from the coal falling unexpectedly. "Well," said I, "if this coal is about ready to drop, had I not better get out of here into the entry, so that I may be out of danger?" "No," was his reply; "just crawl up behind that row of props and remain in the 'gob' until after the coal falls." In obedience to his command I cheerfully got up behind the props and embraced that pile of dirt. He struck the wedges a few more blows and then darted behind the props out of danger. No sooner had he got out of the way than the coal came thundering down. "Now," said my room-mate "go out into the entry and bring in the buggy." "All right." And out I went on my hands and knees. I

soon found my way into the entry, but found no buggy; so back I crawled into the room and reported. At this my instructor crawled out to see what had become of that singular vehicle known as a mining buggy. I followed after. I did not want to remain behind in that coal mine. I did not know what might happen should I be left there in that dark hole alone. After we had reached the entry where we could stand erect my teacher pointed to an object which lay close to our feet, and said to me, "Man, where are your eyes?" "In my head," I calmly replied. "Do you see that thing there?" "Of course I see that thing." "Well, that is the buggy." "Indeed!" I exclaimed. "I am certainly glad to know it, for I never would have taken that for a buggy." It had a pair of runners which were held in their places by a board being nailed across them. On this was a small box; at one end there was a short iron handle. On our knees we pushed the buggy into the room, took up the hammer, broke up the coal into lumps we could handle, filled up the small box, dragged it out into the entry and emptied it into a heap. This is called "buggying" coal. It is the most laborious part of mining. Whenever a new man would be placed with the convicts for instructions in mining he would have to buggy coal just as long as it was possible to get him to do so. After a time, however, he would want to take turn about with his teacher.

After we had finished getting out what we had down the noon hour had arrived. At certain places in the entries or roadways there are large wooden doors which, when shut, close up the entire passage. These doors are for the regulations of the currents of air which pass through the mines. The loud noise produced by pounding on one of these doors was the signal for dinner. It was now noon. Bang, bang, bang, bang, went the door. I had now put in one-half day of my sentence in the mines. Oh! the many long, dreary, monotonous days I passed after that! At the call for dinner the convict, ALWAYS HUNGRY, suddenly drops his tools and makes his way at a rapid pace along the entry until he comes to the place where the division officer has his headquarters. Arriving at this place each convict takes his position in a line with his fellow-convicts. All talking now ceases. They sit on the ground while eating, with their lower limbs crossed. There are no soft cushioned chairs on which the tired prisoner may rest his weary limbs. When seated, a small piece of pine board, about a foot square, is placed across his knees. This is the table. No table cloth, no napkins, no table linen of any kind. Such articles as these would paralyze a convict! Thus seated in two rows along the sides of the entry, with their mining lamps lighted and

hanging in their caps, they present a weird and interesting sight. The dinner had been brought down from the top about an hour before on coal cars. Three of the prisoners are now detailed to act as waiters. One passes down between the two rows of convicts, carrying in his hand a wooden pail filled with knives and forks. These culinary instruments have iron handles. Were they made of wood or horn, the convicts would soon break off the handles and make trinkets out of them. This waiter, passing along, drops a knife and fork on each table. He is followed by another who drops down a piece of corn bread; then another with a piece of meat for each man, which he places on the pine board. There is no "Please pass the meat," or "Hand over the bread." Not a word is spoken. After the knives and forks have been passed around this waiter returns and gives each man a quart of water. THIS IS DINNER. The bill of fare is regular, and consists of cold water, corn bread and meat. Occasionally we have dessert of cold cabbage, or turnips or cracked corn. When we have these luxuries they are given to us in rotation, and a day always intervenes between cabbage and turnips. In the coal mines the prisoner never washes himself before eating. Although he gets his hands and face as black as the coal he has been digging, yet he does not take time to wash himself before eating. Reader, how would you like to dine in this condition? The old saying is, we must all eat our "peck of dirt." I think I have consumed at least two bushels and a half! I can never forget my first meal in the mines. I was hungry, it was true, but I couldn't manage to eat under the circumstances. I sat there on the ground, and in silence watched the other prisoners eat. I thought, "You hogs! I can never get so hungry as to eat as you are now eating." In this I was mistaken. Before ten days had gone by I could eat along with any of them. The first day I thought I would do without my dinner, and when supper time came go to the top and enjoy a fine meal. I imagined that after digging coal all day they would surely give us a good meal in the evening. My mouth "watered" for some quail on toast, or a nice piece of tenderloin, with a cup of tea. Think of my surprise, when hoisted to the top at the close of day, after marching into the dining-room and taking our places at the table, when I saw all that was put before the prisoners was a piece of bread, a cup of tea without sugar or milk, and two tablespoonfuls of sorghum molasses. It did not require a long time for me to dispose of the molasses, as I was very hungry, and handed up my cup for an additional supply; this was refused. It is considered in the penitentiary an excess of two tablespoonfuls of sorghum is unhealthy! There is danger of its

burning out the stomach! So at each supper after that I had to get along with two spoonfuls. As far as the tea was concerned, it was made of some unknown material whose aroma was unfamiliar to my olfactory; the taste was likewise unfamiliar, and in consequence of these peculiarities of the prison tea I never imbibed of it but the one time, that being amply sufficient to last through the entire period of my confinement. From that day on I took cold water, which, after all, is God's best beverage for the human race. The penitentiary, so far as I know, is the only place in the State of Kansas where prohibition actually works prohibition as contemplated by the laws of the State! There are no "joints" in the Pen. No assistant attorney generals are necessary to enforce prohibition there. I never saw a drunken man in the prison. The Striped Temperance Society of Kansas is a success.

For breakfast in the prison we have hash, bread, and a tin cup of coffee, without sugar or milk; no butter, no meat. The hash is made of the pieces of bread and meat left over from the preceding day. We had it every day in the year for breakfast. During my entire time in the prison I had nothing for breakfast but hash. One day I was talking to an old murderer who had been there for eighteen years, and he told me he had eaten hash for his breakfast during his entire term—six thousand five hundred and seventy days. I looked at the old man and wondered to myself whether he was a human being or a pile of hash, half concluding that he was the latter!

In conversation with the chaplain of the prison I received the following anecdote, which I will relate for the benefit of my readers. It is customary in the prison, after the Sunday exercises, for such as desire to remain and hold a sort of class meeting, or, as some call it, experience meeting. In one of these, an old colored man arose, and said: "Breddren, ebber since Ize been in dis prison Ize been tryin' to git de blessin'; Ize prayed God night and day. Ize rascelled wid de Almighty 'till my hips was sore, but Ize nebber got it. Some sez its la'k ob faith. Some its la'k of strength, but I b'l'eves de reason am on 'count ob de quality ob dis hash we hab ebbery day!"

Accidents are occurring almost daily. Scarcely a day passes but what some man receives injuries. Often very severe accidents happen, and occasionally those which prove fatal. Many men are killed outright. These accidents are caused by the roof of the little room in which the miner works falling in upon him, and the unexpected drop of coal. Of course there are

many things that contribute to accidents, such as bad machinery, shafts, dirt rolling down, landslides, etc.

One day there was a fellow-prisoner working in the room adjoining me; he complained to the mining boss that he did not want to go into that room to work because he thought it was dangerous. The officer in charge thought differently, and told him to go in there and go to work or he would report him. The prisoner hadn't been in the place more than a half hour before the roof fell and buried him. It took some little time to get him out. When the dirt was removed, to all appearances he was dead. He was carried to the hospital on a stretcher, and the prison physician, Doctor Neeally, examined him, and found that both arms were broken in two places, his legs both broken, and his ribs crushed. The doctor, who is a very eminent and successful surgeon, resuscitated him, set his broken bones, and in a few weeks what was thought to be a dead man, was able to move about the prison enclosure, although one of his limbs was shorter than the other, and he was rendered a cripple for life.

On another occasion a convict was standing at the base of the shaft. The plumb-bob, a piece of lead about the size of a goose egg, accidentally fell from the top of the shaft, a distance of eight hundred feet, and, striking this colored man on the head, it mashed his skull, and bespattered the walls with his brains.

I had three narrow escapes from death. One day I lay in my little room resting, and after spending some time stretched out upon the ground, I started off to another part of my room to go to work, when all of a sudden the roof fell in, and dropped down just where I had been lying. Had I remained a minute longer in that place, I would have been killed. As it happened, the falling debris just struck my shoe as I was crawling out from the place where the material fell.

At another time I had my room mined out and was preparing to take down the coal. I set my wedges in a certain place above the vein of coal and began to strike with my sledge hammer, when I received a presentiment to remove my wedges from that place to another. Now I would not have the reader believe that I was in any manner superstitious, but I was so influenced by that presentiment that I withdrew my wedges and set them in another place; then I proceeded to strike them a second time with the sledge hammer, when, unexpectedly, the vein broke and the coal fell just opposite

to where my head was resting, and came within an inch of striking it. Had I remained in the place where I first set my wedges, the coal would have fallen upon me; it had been held in its place by a piece of sulphur, and when it broke, it came down without giving me any warning.

On still another occasion, my mining boss came to my room and directed me to go around to another part of the mine and assist two prisoners who were behind with their work. I obeyed. I hadn't been out of my room more than about half an hour when there occurred a land-slide in it, which filled the room entirely full of rock, slate and coal. It required several men some two weeks to remove the amount of debris that had fallen on that occasion. Had I been in there, death would have been certain at that time.

Gentle reader, let me assure you, that although some persons misunderstanding me, assert that I am without belief in anything, yet I desire to say, when reflecting upon these providential deliverances, that I believe in the Eternal Will that guides, directs, controls and protects the children of men. While many of my fellow-prisoners were maimed for life and some killed outright, I walked through that valley and shadow of death without even a hair of my head being injured. Why was this? My answer is the following: Over in the State of Iowa, among the verdant hills of that beautiful commonwealth, watching the shadows as they longer grow, hair whitened with the frosts of many seasons, heart as pure as an angel's, resides my dear old mother. I received a letter from her one day, and among other things was the following:

"I love you now in your hour of humiliation and disgrace as I did when you were a prattling babe upon my knee.

* * *

"I would also have you remember that every night before I retire to rest, kneeling at my bedside, I ask God to take care of and watch over my boy."

Of the nine hundred convicts in the penitentiary not one of their mothers ever forgot or deserted them. A mother's prayers always follow her prodigal children. Go, gather the brightest and purest flowers that bend and wave in the winds of heaven, the roses and lilies, the green vine and immortelles, wreath them in a garland, and with this crown the brow of the truest of all earthly friends—Mother! Another reason I give for my safe keeping in that hour of darkness and despair: In the city of Atchison, on a bed of pain and

anguish, lay my true, devoted and dying wife. Every Sunday morning regularly would I receive a letter dictated by her. Oh! the tender, loving words! "Every day," said she, "I pray that God will preserve your life while working in the jaws of death." The true and noble wife, the helpmeet of man, clings to him in the hour of misfortune and calamity as the vine clings to the tree when prostrate on the ground. No disgrace can come so shameful that it will cause the true wife to forsake. She will no more forsake than the true soldier will desert on the battlefield. For those imps in human form that endeavor to detract from the honor belonging to the wives of the country there ought to be no commiseration whatever. Let us honor the wifeness of our native land. It is the fountain of all truth and righteousness, and if the fountain should become impure, all is lost. One more reason: Before I was sent to the prison I was an evangelist, and was instrumental in the hands of God of persuading hundreds of people to abandon a wicked life and seek the good. During my imprisonment I received many letters from these men and women who had been benefited on account of what I had said to them, and they informed me that they still retained confidence in me and were praying God for my deliverance.

Now, I believe, in answer to a mother's prayers, in answer to the prayers of my sainted wife, in answer to the prayers of good men and women, who were converts to "the faith once delivered to the saints" under my earnest endeavors—in answer to all these prayers, God lent a listening ear and preserved me from all harm and danger.

PATHETIC OCCURRENCES IN THE MINES

It is a great consolation for prisoners to receive letters from their friends. One day a convict working in the next room to me inquired if I would like to see a letter. I replied I would. He had just received one from his wife. This prisoner was working out a sentence of five years. He had been in the mines some two years. At home, he had a wife and five children. They were in destitute circumstances. In this letter his wife informed him that she had been taking in washing for the support of herself and children, and that at times they had to retire early because they had no fuel to keep them warm. Also, that, on several occasions, she had been compelled to put the children to bed without supper. But this noble woman stated to her husband that their lot was not so bad as his. She encouraged him to bear up under his burdens, and that the time would soon come when his sentence would expire and he

would be permitted to return home again, and that the future would be bright once more as it had been before the unfortunate circumstances that led to his imprisonment. It was a good letter, written by a noble woman. A couple of days after this, as I was mining, I heard a voice in the adjoining room. I listened. At first I thought it was the mining boss, but I soon discovered I was mistaken. Listening again I came to the conclusion that the convict who was working in the next room was becoming insane, a frequent occurrence in the mines. Many of the poor convicts being unable to stand the strain of years and the physical toil, languish and die in the insane ward. To satisfy my curiosity, I took my mining lamp from my cap, placed it on the ground, covered it up as best I could with some pieces of slate, and then crawled up in the darkness near where he was. I never saw such a sight as was now presented to me. This broad-shouldered convict on his knees, with his frame bent over, his face almost touching the floor of the room, was praying for his wife and children. Such a prayer I never heard before, nor do I expect to hear again. His petition was something like the following:

"Oh, Heavenly Father, I am myself a wicked, desperate man. I do not deserve any love or protection for my own sake. I do not expect it, but for the sake of Jesus do have mercy on my poor wife and helpless children."

I have been able, many times in my life, to spend an hour or more in the prayer circle, and, unmoved, could listen to the prayers of the children of God. But I could not remain there in the darkness and listen to such a prayer as that going forth from the lips of that poor convict; so I glided back through the darkness into my own room, and left him there alone, pleading with his Creator for his lone and helpless ones at home.

Reader, did God listen to the wails of that poor heart-stricken prisoner? Yes! yes! yes! For though a prodigal, sinful child, yet he is still a child of the universal Father. Who of us dare excommunicate him? What frail mortal of passing time would dare lift up his hand and say, this poor wanderer is forgotten of his God?

What a glorious privilege is communion with God. What a sweet consolation to know God hears, though we may be far removed from the dear ones we love. And who can tell the glorious things that have been wrought by the wonderful Father of the race by that strong lever of prayer. How often has the rough ways of life been made smooth. How often do we

fail to credit the same to the kind intercession of friends with the Father of us all.

But to continue, it often happens that in the coal mines, persons, no longer able to sustain the heavy load that is placed upon them of remaining in prison for a long time, give way, and they become raving maniacs. One day a prisoner left his room, and crawling out on his hands and knees into the entry, sat down on a pile of coal and commenced to sing. He had a melodious voice, and these were the words, the first stanza of that beautiful hymn:

*"Jesus, lover of my soul,
Let me to Thy bosom fly."*

After he had completed the first stanza two of the officers came to him and directed him to go back into the room to work. He replied that he did not have to work; that he had religion, and that when a man had religion he did not have to work. Said he, "We are now going to have a prayer meeting, and" addressing one of the officers, "you you will please lead us in prayer." The officer replied, "I don't pray in coal mines; I pray above the surface so that God can hear." At this the insane convict picked up a large piece of coal and was going to hurl it after him, and threatened that if he did not get on his knees and go to praying he would compel him to do so. While he was thus addressing one officer the other slipped around in his rear and striking his arm knocked the piece of coal out of his hand. Then the officers seized him, one on each side, and forced him to go with them down the roadways to the shaft, from whence he was taken to the top and placed in the insane ward, where he remains at this writing. As he was passing down the entries, away in the distance we heard him singing—

*"Other refuge have I none,
Hangs my helpless soul on Thee.
Leave, oh leave me not alone,
Still support and comfort me."*

I can never forget the impression made upon me as those words rang down through the dark passages, coming from the lips of that insane convict as they led him away from the confinement of the mines to the confinement of insanity. How true those beautiful words were in his case!

THE COAL MINES A COLLEGE OF INFAMY

The mines of this Penal institution are a college for the education and graduation of hardened criminals, and for illustration, and the instruction of those not familiar with the subject matter referred to, I will relate what came under my personal observation, and some things that I heard while in there. One day, in company with me while engaged in mining, were two other convicts. One of these was a hardened old crook. He was serving out a term on the charge of making and passing counterfeit money. The other fellow-convict was a young man seventeen years of age—a mere boy. Tired of mining, we laid off awhile, resting. During this time the old convict gave us instructions in the manner of making counterfeit money. He told us how he would construct his counterfeit molds out of plaster paris, which he would use in the same manner that bullet molds are used. He would purchase some britannica metal. On some dark night he would go into the forest, build up a fire, melt the metal, pour the melted liquor into the molds, and in this manner make silver dollars. He informed us that it didn't take very long to make a hatful of money. A few days thereafter this young man, who was with us in the room at the time, informed me that when he went out again into the world, if he was unable to secure work, he would try his hand at making counterfeit money. I advised him not to do this, as it was almost a certainty that he would be detected. He thought differently. About a month thereafter he was released from the prison. He went out into the world, and, unable to obtain work, DID try his hand at making counterfeit money. Shortly before my time expired here came this young man to prison again, with a sentence of three years at hard labor for making and passing counterfeit money. He had received his criminal instruction in the penitentiary mines, the result of which will be that he will spend the greater portion of his life a convict.

There are a great many instances where these young convicts, having received their education in the coal mines, go into the world to become hardened criminals. Down in this school of crime, in the midst of the darkness, they learn how to make burglary tools, to crack safes, and to become expert as pickpockets; they take lessons in confidence games, and when their time expires they are prepared for a successful career of crime. It is utterly impossible for the officers of the coal mines to prevent these men from conversing with each other. If these mines were sold, and the money obtained from the sale of them was used in building workhouses on the surface, and these men placed at work there under the watchful care of the

official, they would then be unable to communicate with each other, and would be saved from the debasing contamination of the hardened criminals. They would be saved from all this that degrades and makes heartless wretches.

A scene occurred in the mines one day that illustrates the fact that judges sometimes, in their anxiety to enforce the laws, overstep the bounds of justice, and inflict excessive punishment and place burdens upon human beings which they are unable to bear. One afternoon in the city of Emporia ten tramps were arrested and thrown into the county jail. During the succeeding night one of these persons thrust a poker into the stove, and heating it red hot, made an effort to push the hot iron through the door, thus burning a large hole in the door-casing. The next morning the sheriff, entering the jail, perceiving what this vagrant had done, was displeased, and tried to ascertain which one of the ten was guilty of the offense. The comrades of the guilty party refused to disclose the perpetrator of the act. Court was then in session. The sheriff had these ten fellows brought into court, hoping that when placed upon the witness stand, under oath, they would tell which had committed the offense. Even in court they were true to each other, and would not reveal the perpetrator. They were then all convicted, and the judge passed a sentence of ten years upon each of these vagrants for that trivial offense. They came to the penitentiary. The day after their arrival they were all sent to the coal mines. For two years they worked day after day down in the Kansas bastile. One morning, after they had been in the mines for two years, one of the number, at the breakfast table in the dining-room, unperceived secreted a knife in his clothing and carried it with him down to his place of work. He went into his little room and began the labors of the day. After toiling for a few hours he took a stone and sharpened his knife the best he possibly could, then stepped out into the entry where he could stand erect, and with his head thrown back drew that knife across his throat, cutting it from ear to ear, thus terminating his life, preferring death to longer remaining in the mines of the Kansas Hell! Who is there that is not convinced of the fact that the blood of this suicide stains the garments of the judge who placed this unbearable burden of ten years upon this young man, and who, I subsequently learned, was innocent of the offense. I would advise the good people of Lyons County, and of Emporia particularly, after they have perused this book, if they come to the conclusion that they have no better material out of which to construct a

district judge, to go out on the frontier and lasso a wild Comanche Indian and bring him to Emporia and place him upon the ermined bench. I do not even know the name of this judge, but I believe, if I am correctly informed in this case, that his judgment is deficient somewhere. But I must say in this connection, when the good people of Lyons County heard of this suicide, they immediately thereafter petitioned the Board of Pardons for the release of these prisoners, and the board at once reported favorably upon their cases, and Governor Martin promptly granted their pardons and they were released from the prison. If the pardon had not been granted, others of them had resolved upon taking their lives as did their comrade. One of these prisoners was for a time a companion of mine in one of my mining rooms, and told me if he was required to remain in the coal mines digging coal another three months he had made up his mind to follow the example of his comrade, preferring death to the horrors of the mines.

For the further information of the reader, as to the dread of the prisoners of work in the mines, I cite the following which I call to recollection. The gentlemanly physician of the institution, Dr. Neeally, told me that at four different times men had feigned death in the mines and had been carried on stretchers to the hospital; the particulars in one case is as follows: One of these men feigned death and was carried to the hospital, and was reported by his comrades to be dead. He had suppressed his breathing. The physician felt his pulse, and finding it regular, of course knew he was simply endeavoring to deceive. In order to experiment, the physician coincided with the statements of the attending convicts who had carried him from the mines, and announced that he would try electricity, and if he failed to restore him to life he would then have to bury him in the regular way. The doctor retired for the purpose of getting his electrical apparatus. In a few moments he returned, bringing it with him, and placing the magnetic cups, one in each hand, commenced generating the electricity by turning the generator attached to the machine. After a few turns of the crank the prisoner opened his eyes; one or two more and he sat up; a few more and he stood on his feet; another turn or two and he commenced dancing around, and exclaimed, "For God's sake, doctor, do quit, for I ain't dead, but I can't let loose!" Reader, what do you suppose was the object this convict had in view in thus feigning death? What did he hope to gain thereby? Being well acquainted with this prisoner, a few days after the doctor had told me of the circumstances I met him, and asked him what object he had in feigning

death the time that he was taken from the mines to the hospital? His reply was that he hadn't the nerve to take his own life, as he believed in a future state of punishment, and that he did not desire to step from the Kansas Hell to the hell of the future, and that by feigning death he hoped to be taken to the hospital, placed in a coffin, then taken out to the prison graveyard, and buried alive, so that he would suffocate in his grave!

There is not a man in those mines but would leave them quickly for a place on the surface.

I now call to mind one instance where a heart-broken father came to the prison and offered one of the leading prison officials one thousand dollars if he would take his son out of the coal mines and give him a place on the surface during the remainder of his term. A man who labors in these mines simply spends his time, not knowing but the next hour will be his last.

As I have stated heretofore the prisoners are allowed to converse in the mines, and as a result of this almost necessary rule, every convict has an opportunity to listen to the vilest obscenity that ever falls upon human ears. At times, when some of these convicts, who seem veritable encyclopedias of wickedness, are crowded together, the ribald jokes, obscenity and blasphemy are too horrible for description. It is a pandemonium—a miniature hell! But worse than this horrible flow of language are the horrible and revolting practices of the mines. Men, degraded to a plane lower than the brutes, are guilty of the unmentionable crimes referred to by the Apostle Paul in his letter to the Romans, chapter I, verse 27, which is as follows: "And likewise also the men, leaving the natural use of the woman, burned in their lusts one toward another, men with men, working that which is unseemly, and receiving in themselves that recompense of their error which was meet." Every opportunity is here offered for this vile practice. They are far removed from the light and even from the influences of their officers, and in the darkness and silence old and hardened criminals debase and mistreat themselves and sometimes the younger ones that are associated with them in their work. These cases of self-abuse and sodomy are of daily occurrence, and, although the officials of the prison take every precaution to prevent such evil practices, yet, as a matter of fact, so long as prisoners are permitted to work in the mines it will be impossible to break up these terribly degrading and debasing practices. Oh, Kansan! you that boast of the freedom and liberty, the strength of your laws, and the institutions in your

grand young State, what do you think of this disclosure of wickedness, equalling if not excelling the most horrible things ever pictured by the divine teachers of humanity,—the apostles and their followers? A hint is only here given, but to the wise it will be sufficient, and but a slight exercise of the imaginative powers will be necessary to unfold to you the full meaning of this terrible state of affairs.

It is believed by the writer that if the people of the State of Kansas knew under what circumstances men in the prison were compelled to work, there would be a general indignation, which would soon be expressed through the proper channels, and which might lead to a proper solution of the difficulty.

In many of the rooms of the mines there are large pools of water which accumulate there from dripping down from the crevices above; this, taken in connection with the natural dampness of the mines, which increases the water, makes very large pools, and in these mud-holes convicts are compelled to work and wallow about all day long while getting out their coal, more like swine than anything else. How can this be in the line of reformation, which, we are taught to believe outside of the prison walls, is the principal effort of all discipline within the prison. The result of work under such unfavorable circumstances is that many of the convicts contract rheumatism, neuralgia, pneumonia and other lung troubles, and, of course, malaria. Many persons that enter these mines in good health come out physical wrecks, often to find homes in the poor-houses of the land when their prison days are over, or die before their terms expire. In the judgment of the writer the coal mines should be sold; until that is done, prisoners who contract diseases there that will carry them to untimely graves should be pensioned by the State, and thus kept from spending the rest of their natural lives in some of the country poor-houses.

Each person in the mines is assigned a task; he is required to get out a certain amount of coal each week. In case the convict fails to mine the task that has been assigned him he must endure punishment, a description of which will be given later on. It is the opinion of the author that something should be done to remedy this. The young men from seventeen to twenty, together with the old men from fifty to sixty, and those suffering from diseases, are often required to dig as much coal as middle-aged and able-bodied men. I have seen old men marching to their cells after a hard day's work scarcely able to walk, and many times have I laid in the mines along

with these young boys who would spend hours crying like whipped children for fear they would be unable to get out their regular task of coal, and would therefore have to spend the Sabbath in the dungeon, suffering unspeakable anguish.

Because of the dangers to which the inmate is exposed; because of the debasing influences by which he is surrounded, it is wrong, it is WICKED to work our criminals in such a place as those mines of the Kansas penitentiary.

CHAPTER IV. THE PUNISHMENTS OF THE PRISON

The discipline of this institution is of the very highest character, and is unequaled in any similar institution of the United States. The officers are very watchful and strict. The inmates who work on the surface are not permitted to converse with each other only within the hearing of an officer, and then only with regard to matters that pertain to work. The convict attends to his duties, observing the strictest silence. When visitors pass about the prison the inmate is not permitted to lift up his head to gaze at them. Not even is he permitted to take a drink of water or to leave his place of work for anything without the permission of the officer in charge. As soon as a criminal enters the prison and is clothed in stripes, a copy of the rules and regulations is placed in his hands for perusal. If he cannot read, an officer reads them to him. On the first day of his admission the prisoner receives certain tickets, which are permits for privileges granted to him. One of these tickets allows him to have tobacco if he used the same before coming to the penitentiary; one allows him to receive visits from his friends; another to write a letter, monthly, to his relatives; and still another gives him the privilege to draw a book from the library, weekly. These privileges are highly appreciated by the prisoners. For the first offense in violation of any of the rules and regulations the refractory prisoner is deprived of his ticket; and in extreme cases these tickets have been kept from the prisoner for six months. To deprive the convict of his tobacco for a month or two, if he uses it, and many do, is a severe punishment. This kind of punishment is usually effectual in securing good discipline. There are extreme cases, however, that require severer punishment. To meet this contingency, dungeons are provided. As their name implies, they are dark. They resemble an ordinary cell with the exception of the door, which, in the common cell, contains open spaces for the admission of light; but the dark cell admits neither light nor a sufficient quantity of air. There is no furniture in this dark cell. While undergoing punishment, if a prisoner desires to rest, he can do so by reclining on the stone floor. No refractory prisoner ever grows corpulent while confined in these dark cells, as he only receives one

meal of bread and water in twenty-four hours! The prisoner is often kept in these cells from eight to ten days. Sleep is almost impossible. When a prisoner enters the dungeon he is required to leave behind him his coat, cap and shoes. During the winter months it is often very cold in these cells, requiring the prisoner to walk up and down the dungeon in his stocking feet to prevent his freezing, and this for a period of ten days, in nearly every instance compels submission. After the dark cells thaw out, during the summer months, they are excessively hot. Sometimes in winter the temperature is below zero, and in summer it often rises to one hundred degrees. They are then veritable furnaces. Generally, after the prisoner undergoes the freezing or baking process for eight or ten days, he is willing to behave himself in the future. They are sometimes so reduced and weak when brought out of the dark cell that they can scarcely walk without aid. I have seen them reel to and fro like drunken men. They are often as pale as death. That in many cases the prisoner contracts cold which later on terminates fatally, is one of the principal objections to this mode of punishment. There is no doubt that the dark cells of the Kansas Hell have hastened the death of many a poor, friendless convict. If a person in the mines does not get out his regular weekly task of coal, on Saturday night he is reported to the deputy warden by the officer in charge, and is sent to the blind cell before supper, and is kept there until the following Monday morning, when he is taken out and sent to his work in the mines. While in there he gets only bread and water once in twenty-four hours. This is a great inducement to work; it certainly prevents criminals from shirking their labor, and soon converts a lazy tramp into a rustling coal miner. There is one thing, however, that is connected with this system of punishment that I will criticise. The officer under whose immediate control the prisoner is placed fixes the period of his confinement in the dungeon. It gives the officer a good opportunity to abuse a prisoner he may dislike. These subordinate officers are not all angels. Some of them are lacking in sympathy. They have become hardened, and frequently treat their men like beasts. These persons should not possess such a dangerous power. The warden or deputy warden should decide the character as well as the period of punishment.

If in this dark cell ten days and nights is insufficient to subdue the rebellious spirit of the convict, he is taken out and placed in the solitary cell. This is similar to the ordinary cell, with the exception that it contains

no furniture. Here the convict remains on bread and water until he is starved almost to death, or until he is willing to submit and do his work as ordered.

Another mode of punishment resorted to in a few cases, is even more brutal than the dark cell. The obdurate prisoner is stripped naked and tied to a post. The hose which is connected with the water-works is turned upon his naked body. The water pressure is sixty pounds to the square inch. As the water strikes the nude body the suffering is intense. This mode of punishment is but rarely resorted to. It is exceedingly wicked and barbarous. It is a shame to treat a human being in such a manner. There are many hardened criminals and desperate characters in the penitentiary, and it may sometimes be necessary to resort to extreme measures, but there have been many instances when, as it seemed to me, these excessive punishments might have been avoided and still the good discipline of the prison maintained. "Blessed are the merciful, for they shall obtain mercy." But the author would have you recollect that the punishments of the Kansas penitentiary are not as severe as the discipline in her sister institutions. Many of the inmates of this prison who have formerly served terms in others of like character, have shown him the scars and marks of brutal punishment. One of these poor unfortunates showed me his back, which is covered with great furrows in the flesh caused by the cat-o'-nine-tails in the hands of a merciless official of the Missouri penitentiary. Another prisoner carries thumbs out of joint and stiffened by the inhuman practice of hanging up by the thumbs in vogue in a former place of imprisonment, and still another carries about with him ugly wounds inflicted by bloodhounds which overtook him when trying to escape from a Southern prison.

The foregoing is a view of the punishments inflicted from a prisoner's standpoint. That the reader may arrive at just conclusions, I quote the statements on the same subject made by the warden, Captain Smith, in his able biennial report of last year. In doing so, I beg leave to state that the convict who had ever been the object of the prison discipline, or who had spent his ten days and nights in one of those dismal dungeons, subsisting on bread and water, would readily say that the warden had treated the subject in a manner "very mild."

"The discipline has been carefully looked after, and as a general thing prisoners yield to strict discipline quicker than most people think. They seem to see and realize the necessity of rules, and very seldom complain, if

they violate them, at the punishment that is sure to follow. Our punishments are of such a character that they do not degrade. Kansas, when she established her penitentiary, prohibited corporal punishment. She is one of the few States that by law prohibits the use of the whip and strap; taking the position that it is better to use kindness than to resort to brutal measures. I have often been told, and that, too, by old prison men, that it was impossible to run a prison and have first-class discipline without the whip. Such is not my experience. We have had within our walls perhaps as desperate men as ever received a sentence. We have controlled them, and have maintained a discipline second to none in the country, How did we accomplish this? Our answer is, by being kind but firm; treating a man, although he may be a prisoner, as a man. If he violates rules, lock him up. Give him an opportunity to commune with himself and his Maker; also give him to understand that he is the executioner of his own sentence, and when he concludes that he can do right, release him. It matters not how vicious, how stubborn, or what kind of a temper he may have, when left with no one to talk to, and an opportunity to cool down, and with a knowledge that when he comes to the conclusion that he will do better he can be released, he leaves the cell feeling much different than the prisoner who leaves the whipping-post, after having received any number of lashes that a brutal officer may desire to inflict. One goes to his work cheerful, and determined to behave himself; the other dogged, revengeful, completely humiliated, and only lives in hope that he may at some time take his revenge upon the person that ordered or inflicted the punishment, and upon the State or country that would, by its laws, tolerate such a brutal or slavish practice."

CHAPTER V. SUNDAY IN THE PRISON

A prisoner is always thankful for the Sabbath. He has been working hard all week, and Sunday affords the opportunity of resting. On the Sabbath morning, the bell for rising rings at eight o'clock. At its ringing each person must rise and dress; he is not permitted to do so before it rings. If he gets tired of remaining in his bunk so late as eight o'clock, and should wish to get up and dress, it would do him no good; it would be a violation of rules and result in punishment. After the prisoner is up and dressed, he washes and marches out in ranks to breakfast. It is hash, hash, hash, for Sunday breakfast, the same as any other day, except once a month it is codfish hash instead of beef hash. After breakfast, instead of going from the dining-room to work, the prisoners are marched back into their cells where they remain until time for chapel exercises.

There is a dining-room for the prisoners and another for the officers. The room where the prisoners dine is a large hall capable of seating fully twelve hundred men. Each table is long enough to accommodate twenty men, and resembles an ordinary school-desk. There are no table-cloths or napkins; nothing but a plain, clean board. The table furniture consists of a tin quart cup, a small pan of the same precious metal, which holds the hash, an iron knife, fork and spoon. No beautiful silverware adorns this table; on the contrary, all the dining service is very plain and cheap. The convicts are marched into the dining-room in divisions, and seated at the table. Here they remain in perfect silence, with their heads bowed.

No talking or gazing about the dining-room is permitted. After all the divisions are in and seated, the deputy Warden taps a small bell, and the convicts begin the work of "concealing the hash." Before the men enter the dining-room the coffee, bread and hash are placed on the table for each man. The prisoners are given all the food they can eat. It is not the quantity, but the quality, that is objectionable.

If more bread is wanted, instead of calling out "Please pass the bread," the convict holds up his hand, and the waiter comes along and puts a piece of bread in it. He gets but a pint of coffee, and if he wishes a second supply he holds up his cup and it is refilled—but with water instead of coffee. If he

wishes more hash he holds aloft his meat dish, and an officer hands him a large pan of hash, out of which he fills his dish. Not a word is spoken during the meal. Ample time is given the convicts to get all the food they desire; then the deputy warden, who occupies a raised seat at the end of the dining-room, taps a small bell, and the men march out in divisions, back to their cells on Sunday mornings, and to their work on week days.

Breakfast over, and the men in their cells, the choir, which leads the singing and furnishes the instrumental music for the occasion, is taken out, and, under the watchful care of an officer, is conducted to the chapel where they practice until time for the regular services. The choir was composed of convicts who could sing, regardless of the crimes for which they were sent to prison. I recollect at one time we had two horse-thieves, two rapists—one with a sentence of forty years—three murderers, two hog-thieves, and several others of equally villainous records, and, last of all, the author! But this choir will compare favorably with some of the high-toned church choirs outside! To return, think of such a choir singing:

*"Oh, how happy are they,
Who their Saviour obey,
And have laid up their treasures above!"*

At eleven o'clock, the prison bell rings, and the men are marched in ranks to the chapel. When the first division or company reaches the room where the services are to be held, the string band commences to play, and as the divisions march in one after another they are greeted with music. The instruments used are a piano, organ, violin, cornet and bass viol. Very fine music is rendered by the prison band. All being seated, the chaplain, the Rev. Dr. Crawford, a genuine Christian and God-fearing man, rises, and in his happy style reads some beautiful hymn which is familiar to the congregation. The choir leads and the entire congregation sings. Such singing! The convicts have only one opportunity a week to try their voices in a musical way, and when that opportunity comes around it is improved. Nearly one thousand voices unite in singing those beautiful gospel hymns! A prayer is offered; more singing; then the chaplain, or some visiting minister who may be present, preaches a short discourse. There is a large field for usefulness, and for doing good, in the penitentiary. The harvest is truly great. Chaplain Crawford comprehends the situation, and is putting forth strenuous efforts to save these men who have drifted thus far down the

currents of sin. His labors are abundantly blessed of God. Many men go out of that institution a great deal better than when they first entered. Were it not for the cruel treatment the prisoners suffer in the coal mines of that institution many more of them would be reformed. This treatment tends to harden the criminal. The chaplain has many evils to counteract, yet he contends nobly for the right, and some of these men are being redeemed from a sinful life. After the sermon, the choir and the string band furnish more soul-stirring music, which enlivens the spirits of the prisoners, and then the chapel exercises are over. The prisoners are now returned to their cells. Occasionally the convicts are permitted to remain after the chapel exercises proper are over and have a social meeting. The chaplain remains with them. These men sing, pray and give in their religious experience. It is novel to hear these Christian criminals telling how they love Jesus.

Immediately after the religious services are over the prison school begins. Nearly one hundred of the convicts attend this school. The common branches, reading, writing, spelling, arithmetic, etc., are taught. This school is graded, and under the management of the chaplain, who is an excellent instructor, is a great blessing to the prisoners. Numbers have fitted themselves here so that when they went out they were able to pass examination and obtain certificates as teachers.

On entering the institution many of the prisoners who are unable to read and write soon acquire these useful arts if they have any ambition for self-improvement. If there was room, and this school could be conducted in the evening, as well as on Sunday afternoons, much more good could be accomplished. I would suggest that it would be a good act on the part of the State to employ an officer who should devote all his time to teaching and imparting instruction in the common branches, and let a room be fitted up for evening school, so that all prisoners who might desire to improve themselves could attend this place of instruction after the work of the day was over. Nothing could be done that would be more advantageous to the convict. The teachers for the prison school are selected from among the prisoners, some of them being very fine scholars.

After school is over the Sunday dinner is served. The prisoners once more march into the dining-room and take their places at the table. The Sunday dinner is the "crack" meal of the institution. At this meal the

prisoners have as a luxury, beans, a small piece of cheese and some beet pickles, in addition to their regular diet. This meal is served at 2:30.

The prisoners are then returned to their cells, where they remain until the following morning. They spend their time in the cells which is not taken up by sleeping, in reading. The prison has a fine library of five thousand volumes. The State Legislature annually appropriates five hundred dollars to be expended in purchasing books. This collection consists of histories, scientific works and books of fiction. The greater part of the criminals prefer the works of fiction. Were it not for this privilege of reading, the Sunday afternoons and winter evenings would seem very long and dreary.

Several officers are on duty during the time the men are locked in their cells on Sunday, and the cell houses are very quiet and orderly, there is no talking, as officers are constantly walking backward and forward in front of the cells.

This is the manner and style of spending the Sabbath in prison. The convicts who do the cooking for the officers and convicts, are compelled to work on Sundays as any other day of the week. It would be nothing more than right to give these men credit for this extra work, and in this manner reduce their sentences. The law does not contemplate that criminals in the penitentiary should work seven days in the week and fifteen hours each day. There are more than fifty men who are forced to put in this extra time in hard labor.

CHAPTER VI. SCENES IN THE HOSPITAL

When a prisoner gets sick he reports to the prison physician in the morning, before working hours. As the men march out of their cells to go to their breakfast, those who are sick and desire to see the doctor fall out of the ranks and occupy seats in the cell house. Soon the prison physician, Dr. Nealley, calls and examines them. Many try to deceive the physician and thus get into the hospital, simply to avoid work. But the shirkers are pretty well known, and have to be very sick and give unmistakable symptoms of their illness before they can get excused. It is very difficult to deceive Dr. Nealley. He has been with the prisoners so long, nearly six years, that he knows them and can tell without much effort when one of them is sick or is not in condition to work. At these morning examinations, sometimes there are nearly one hundred who report as being sick. Most of them, instead of being excused, get a dose of medicine and are sent to work. When a prisoner takes sick during the day while at work, he is excused by his officer, and permitted to go to the hospital to see the physician. Fully nine-tenths of the sickness of the prison is contracted in the coal mines. The principal physical disabilities are prison fever, colds, pneumonia, lung diseases and rheumatism. Very few contagious diseases ever find their way into the prison, and those that do are quickly discovered and checked by the prison physician. When a convict is unable to work he is sent to the hospital. This department contains two wards, in the first of which those remain who are not sick enough to be confined to their beds, while the very sick are kept in the second ward. Convicts, detailed for that purpose, are the hospital nurses. It is gratifying to know that these convict nurses have a sympathy for their sick comrades truly admirable.

Many of these sick men die. It is sad to die in the State's Prison! I recollect one case that came under my own observation which was indeed pathetic. A man had been sentenced for five years, and had served out his time save one week, when, taken suddenly ill, he was sent to the hospital and died the day before his term would have expired. This poor fellow piteously begged of the doctor to try and extend his life so that he could die a free man; but all in vain! On the day which would have brought liberty he

was borne through the large gate and buried in the prison graveyard. It is heartrending to hear those men dying in the hospital, call for their mothers, wives or sisters! The convict nurses are as kind and sympathetic as possible, but in sickness and death there is no one that can take the place of mother, wife or sister.

There was one man who died a few days before my term expired, for whom I felt the greatest sympathy. His name was Frank Rhodes. He was sent from Holton. While in jail and awaiting trial at that place he was converted. Several Christian ladies had visited the jail and left with the inmates a few Bibles and other religious literature. At his trial Frank was convicted of crime and sentenced to the penitentiary for five years. When he came to the State's prison he brought his religion with him. For two years this man performed his duties faithfully. He soon gained the good will of the officers. He was a true Christian man; he showed it in his life while in prison. After awhile his religion got the better of him; he could not control his emotions. Often during the chapel services, when the convicts were singing their Christian songs, overcome by his feelings, Frank would weep like a child. Time passed. It was a bright Sabbath morning. The prisoners were marching out of the cell houses to the chapel, to attend divine service. All nature seemed to be rejoicing. Frank could not longer restrain himself. The glowing sunshine has much to do with causing a man's religion to boil over. All of a sudden, clapping his hands, Frank shouted at the top of his voice, "Glory to God in the highest I peace on earth, good will to men!" This was too much for the discipline of the prison. Convicts are expected to keep quiet. A couple of officers seized him and led him back into the cell house, where he was placed in a cell of the insane ward and was called a religious crank. He remained in this cell for the following eighteen months. He told me afterward these were the happiest months of his life. He would read his Bible, sing, pray, and exhort the officers to be religious. The deputy warden would often tell him that when he could control his religion enough to keep quiet he should be taken out of the insane ward and sent to work again. When eighteen months had passed he concluded he could keep quiet, and so informed the deputy warden. He was immediately released from his place of confinement and went to work. While at work he was honest and quiet. His only trouble was, too much religion! Months went by. His wife came to see him frequently. These visits were enjoyable affairs to them. On a certain Friday his wife was to visit

him. I met him the day before, and he was overjoyed at the prospect of seeing his wife the next day. She came. They had a joyful time. Little did either think they should see each other in this life no more. When the hour of her departure came they separated not to meet again until in the world of perpetual sunshine. The next day this poor convict was taken with the prison fever, and in one short week he was a corpse. He died trusting in his Saviour. The chaplain, speaking of this man's death, said if officers or convicts at death go from the Kansas penitentiary to heaven, then Frank Rhodes was among the saved; he was a true Christian man. After death his body was sent to his former home, Holton, where it was buried.

The following is my experience with a poor friendless colored boy who had a six years' sentence for burglary. I took the prison fever and was sent to the hospital. This colored convict was detailed as my nurse. He had been sick, but was then convalescent. He was very kind to me; because of this kindness and good care I began to like him. He seemed anxious to make me comfortable. "Be kind to the sick and you will win their friendship." I was quite sick for two weeks, but began to recover slowly. About this time my nurse suffered a relapse. He grew worse and worse. The doctor gave him up. "Bob must die," he said to the head nurse one day in my hearing. A day or two after this, Bob, for that was the sick prisoner's name, sent for me to come to his couch. I sat down on the edge of his bed and asked him what he wanted. He said: "I am going to die, and want a friend. In all this wide world," continued he, "there is not a single human being that I can look upon as my friend." He then told me how he had lost his father and mother when a mere child, had drifted out into the world an orphan boy, got into bad company, into crime and into prison. As I sat there looking into the face of that little darkey, I thought how sad his lot must be, and my sympathies were aroused. I said, "Bob, is there anything I can do for you? I am your friend, and will do all I can to aid you." I spoke words of encouragement, and tried to cheer him up by saying that I thought he would not die. In this I used a little deceit, but it was to assuage his grief. I really thought he would die very soon. Then he told me what he wanted. He said, "I am going to die; my angel mother came to my bedside last night; I saw her as plainly as I see you now. She said she was coming soon to take me out of prison and out of this world of sorrow. Yes, I am going to die, but I am afraid to cross the dark river. When I am dying I want you to sit by my bedside, take hold of my hand and go with me down the vale of death as far as possible. It will do

me so much good. Will you do this for me? It is the only favor I ask." I told him I would only be too glad to do so if it would aid him in the moment when life shrinks from the shadow of death, but told him I thought he would not die—another little fib on my part. However, that did no harm, for I failed to convince him he would live. About 1 o'clock A. M. a couple of nights after this, one of the watchers came to my cot and said Bob wanted to see me immediately. I felt his time had come. Hastily dressing, I went to his bedside. I found him dying. I sat down by his side and took his hand in mine. I was going with him to the dark river. He pressed my hand and a smile of satisfaction passed over his countenance. He said, "You are so kind." I spoke words of hope and encouragement suitable to the time and occasion. I sat thus for some little time; his limbs grew cold; his eyes became glassy; the death dew was dampening his brow. It was evident he would soon breathe his last. Poor, helpless, friendless negro! What was your life's mission? Many similar pious thoughts flitted through my mind. Without a friend! Among all the millions of earth he could not call one by the endearing name of friend! Sad, sad thought! After I had remained there some time, expecting every breath to be his last, what was my astonishment to discover his hands and limbs growing warmer. The crisis of his disease was passed. No dark river this time! Soon his "glassy" eyes were closed, and in a few moments he began to snore! Disappointed, I dropped that black "paw," and went back to my cot. That little darkey is still alive. He often asked me after that if I wanted to take another trip down to "de da'k ribbah!"

The prisoners who die in the penitentiary are buried in the graveyard of the institution, unless they have friends who will pay for the removal of the body. Just outside the prison walls is the cemetery. Its location is a walnut grove in a deep ravine. The first graves were dug near the eastern side of the cemetery and as near to each other as possible. As fast as this space is filled with graves it is covered over many feet deep with the slate and dirt taken from the coal mines, a few yards distant. Beneath this rubbish will the prisoners sleep until the trump shall sound and the dead arise. Prisoners dying are dressed in a neat suit of black clothes, if the body is to be forwarded to the friends; otherwise, the burial suit consists of a cotton shirt and a pair of drawers of the same material. The coffin is very plain, and is made in one of the prison shops.

CHAPTER VII. ESCAPES FROM PRISON

Occasionally there is a man shrewd enough to make his escape from prison. When a convict has almost served out his time he is generally selected to perform the duties of a "trusty," and allowed to go outside the prison enclosure. By good conduct other prisoners gain the confidence of the officials, and there are instances where these men, though they may have several months to serve, are permitted to go beyond the walls, doing duty for the prison. But they are rare. Generally a convict, if he has long to serve, is not trusted to any great extent. At times these "trusties," although they may have but a few weeks to remain, cannot successfully resist the temptation to escape. Ordinarily the escaped convict is overtaken and brought back.

I recollect an instance where two young fellows were thus trusted. One of them had two months to serve, and the other but twenty-seven days. They were given employment at the reservoir, over a mile from the prison. No officer was guarding them. They made an attempt to get away. After being absent a few hours they were missed from their post of duty. The alarm was given, and officers started in pursuit. They were overtaken and caught about five miles distant, hid in the brush. They had concealed themselves in this place, intending to make their escape in the darkness of the coming night. The officers in search accidentally came upon them in this brush patch. They were taken back to prison. They were compelled to work for thirty days with a ball and chain attached to each of their limbs, after which they were taken to Leavenworth, to the District Court, where they plead guilty to the charge of attempting to escape from the prison. Each of them received a sentence of one year at hard labor in the penitentiary for this foolishness. After their present sentence has expired, they will have to enter immediately upon the other for trying to escape. At this writing, both of these convicts are digging coal in the mines. They are not trusted now.

Another prisoner, a much older man than these two whom I have described, tried to escape; he got as far as Ohio before the officers secured him. During the late rebellion this man was a captain in the army. He became involved in a quarrel with some of his relatives and was sent to the

penitentiary for forgery. On account of his previous good character, on coming to the penitentiary he was immediately set to work as a "trusty." Some few months after he was sent to the Missouri River, over a mile from the prison, to do some work. No officer was with him. Going down to the banks of the river he discovered a boat tied to the shore. In a subsequent conversation, he told me when he saw that boat it suggested the thought of escaping. His wife and children were in the State of Ohio. They had removed there since his conviction. "The boat," said he, "seemed to say, 'get in and cross the river.' I thought of my family. Oh, how I longed to be with them! I could not resist the temptation. I had some old overalls, and I drew these on over the stripes. I got into the boat, rowed across, and hid in the woods on the Missouri side until night. During the night-time I walked, and during the daytime would lay by in the woods, occasionally going out to a house begging something to eat. At last I reached my home in Ohio. I was footsore and almost starved when I arrived." Continuing his narrative, he informed me that he had no peace of mind. He was in constant dread of pursuing officers. Every man he saw he took to be a detective in search of him. At last, so great was his alarm and uneasiness, that he telegraphed the prison officials where he was. The warden went and brought him back, For punishment he remained in the dungeon several days and nights, and wore the ball and chain for over a month. This man has not been tried yet for making his escape. It will probably be overlooked because of the change in the prison administration. His original sentence was five years.

Another prisoner made his escape, was away for five years; was then discovered, brought back, and is at present eight hundred feet below the surface, digging coal.

One day a young man was brought to the penitentiary under three years' sentence. He was handsome and had winning ways. It was not long before the officers had learned to like him. He was a natural confidence man. It was difficult to resist his influence. After he had been in the penitentiary a short time he was made a "trusty." For awhile he was very dutiful and obedient. He was no fool. He gained the confidence of the officers so that many of them would have confided their pocketbooks to his care. He was permitted to go beyond the prison walls to quite a distance. Finally he walked off. That convict has never been heard of since. He was a slick one. After his departure it was found out that he had walked away from the Colorado prison in the same manner.

The following is an instance of the shrewdness practiced in effecting escapes. A hog-thief was convicted and sent to the prison. He related that while traveling through the southern part of Kansas, a mere tramp, passing by a farmer's residence, he saw a number of hogs in a lot adjoining a grove some distance to the rear of the house. Passing up through the grove, unperceived, he removed one of the boards and drove the hogs out through the woods into a small pond where they covered themselves with mud. Then driving them around on to the main traveled road, he started with them for town some five miles off. As he was driving along the highway, the owner of the hogs met him and inquired where he was taking them. He replied that he was going to market. The farmer said he was making up a car load and would give him as much as he could get in town. After some further conversation the parties agreed upon the price, the farmer buying his own hogs from the tramp, who went on his way rejoicing. An hour or two thereafter the farmer, going out into his field to see his hogs, found they were gone, and upon examining those recently purchased, which by this time had rubbed all the mud off, he discovered it was his own hogs he had purchased from the tramp. He immediately set out in pursuit of the thief, whose whereabouts were soon determined. The thief, after receiving the money, went to town, took a train, but stopped off at a little place nearby, and instead of secreting himself for a time, began to drink. While dissipating he was overtaken, arrested, and held for trial. Had he left whisky alone, he could have escaped. At the trial, which soon followed, he was convicted of grand larceny, and on his arrival at the prison was immediately put into the coal mines. After working there for a week or ten days he became dissatisfied, and decided to secure a position on the surface. One morning, as the prisoners were being let down into the mines, apparently in a fit he fell into the arms of a prisoner; when he landed at the bottom he was in the worst part of his spasm; the officer in charge ordered him sent to the top as soon as he had partially recovered, stating that it was dangerous to have a man working in the mines who was subject to fits, as he might not only kill himself but be the cause of the death of others with him in the cage. To make his case more plausible, when the convict learned that the officer had ordered him to the top, he began pleading to remain in the mines and work, stating that he enjoyed the work and would rather do service there than on the top. But the officer persisted; he was sent up and reported to the deputy warden, who set him to quarrying rock. This was no better job

than working in the coal mines. Providing himself for the occasion, by putting a piece of soap in his mouth, assuming a frenzy and frothing at the mouth, he would almost deceive a physician as to the nature of his malady. Later, it was decided that he was unable to do duty on the rock pile, and was placed in the "Crank House" with the cranks. Those prisoners, who have either lost their mind or are suffering with temporary insanity, not incurable insane, or wholly idiotic, are classed as "cranks," and have an apartment by themselves. As a rule this class of individuals are harmless and not guarded very closely. Their cells are not locked up until nine o'clock at night; the others at six o'clock. During the noon hour the officers leave them alone, in fact, being of a supposed harmless disposition they are at no time closely guarded. This fellow improved the opportunities afforded by the noon hour. He would go into one of the towers and work as long as he dared cutting the bars with a saw he had made out of a knife. He labored in this manner until one of the bars was sawed so near off that a little push would remove it. One afternoon he bade the other cranks good-bye, telling them he was going to fly that night. They made sport of him, thinking he was growing more insane. He went so far as to say good-bye to the officer, stating that he had received a revelation from God the previous night, and that an angel was coming to liberate him. The officer, of course, thought he was getting more and more insane. When night came he slipped out of his cell and secreted himself in a portion of the cell house where it was dark, and when the officer came to lock up, the crazy hog-thief was not missed. Along in the night he pushed aside the bars and made his escape. This was the last the prison authorities heard of him until they learned he was arrested at St. Joseph, Missouri, and held there on a charge of grand larceny for the same thing that he was in the Kansas penitentiary—stealing hogs. An officer went up there to get and bring him back to the Kansas penitentiary, but the St. Joseph authorities refused to give him up. He was tried there and sent to the Missouri penitentiary. After his term expires in that place he will have to serve out his original term in the Kansas penitentiary. "The way of the transgressor is hard," even if he does pretend to have fits.

One of the most interesting and perilous attempts at escaping from the penitentiary was the following: In the evening, after the day's work is over in the mines, the convicts are all lifted to the top, as before stated, and remain in their cells over night. One Saturday night a convict, with a twenty years' sentence, resolved that he would remain in the mines, and try to

effect his escape. He had supplied himself with an extra lot of bread and meat, and hid himself in the darkness of the mines when the men were marched out in the evening at six o'clock. When the count of the prisoners was made at the evening lock up, this man was found missing. As he had not been seen since the prisoners were taken from the mines, it was believed, correctly, that he had remained below. There was nothing done about the matter that night, the officers knowing there would be no opportunity of effecting his escape during the night-time, as they had carefully closed the shafts at the top. They did not set any watch until the next day. During that Saturday night this convict climbed eight hundred feet to the top of one of the shafts. The wooden beams running across the shaft are about five feet apart. Standing erect on one of these beams he threw his arms over the one above his head, and would swing up to it. In this manner he worked his way to the top of the shaft. When he reached the surface how great was his disappointment, for instead of finding the shaft open, as he supposed it would be, he found that the cover was down and that he was unable to get out of the shaft, and thus out of the coalfields into the woods adjoining. When he discovered this there was nothing to do but descend, This was a perilous undertaking. The cross-beams were covered with oil which, dripping down from the machinery above, made them very slippery. A number of times he came near falling, and if he had done so, he would have reached the bottom a mangled mass. It required nearly the entire night for the ascent and descent. When he reached the bottom he took a lunch of bread and meat, went to the base of the other shaft, which is about one hundred yards distant, and began his ascent of it, with the hope he would find it open. It was daylight when he reached the top. Two officers had been stationed there to watch him. Arriving at the surface and just ready to get out, they took charge of, and marched him into the presence of the deputy warden. When the convict related the narrow escapes from death in his efforts for liberty, the deputy warden was so affected he refused to punish him.

Out in the world, with the blessings of liberty all around us, we do not realize the priceless boon they are to us; but when we stand in the presence of the perils that are undertaken in order to gain them when deprived of their benefits, we begin to comprehend the real value of these sacred immunities of citizenship.

CHAPTER VIII. THE PRISONERS

Thinking that it may be interesting to some of my readers, I will now give, in brief form as possible, a history of some of the most noted inmates of the penitentiary.

FEMALE CONVICTS

He must be of a very unsympathizing nature who does not feel for his brother, who, though sinful and deserving, is imprisoned, and excluded from the society of friends. While we are sad when we behold our fellowmen in chains and bondage, how much sadder do we become when, passing through the prisons, we behold those of the same sex with our sisters, wives and mothers. In this land, blessed with the most exalted civilization, woman receives our highest regard, affection and admiration. While she occupies her true sphere of sister, wife or mother, she is the true man's ideal of love, purity and devotion. When, overcome by temptation, she falls from her exalted sphere, not only do men feel the keenest sorrow and regret, but, if it is possible, the angels of God weep.

In the Kansas penitentiary, just outside the high stone wall, but surrounded by a tight board fence some fifteen feet high, stands a stone structure—the female prison. In this lonely place, the stone building, shut out from society, there are thirteen female prisoners. During the week these women spend their time in sewing, patching and washing. But very few visitors are allowed to enter this department, so that the occupants are permitted to see very few people. Their keepers are a couple of Christian ladies, who endeavor to surround them with all the sunshine possible. For these inmates the week consists of one continual round of labor. It is wash, patch and sew from one year's end to the other. The Sabbath is spent in reading and religious exercises. In the afternoon the chaplain visits them and preaches a discourse. Several of these women are here for murder. When a woman falls she generally descends to the lowest plane.

A few days before I was discharged, there came to the prison a little old grandmother, seventy years of age. She had lived with her husband fifty-two years, was the mother of ten children, and had fifteen grand-children.

She and her aged husband owned a very beautiful farm and were in good circumstances, probably worth \$50,000. Her husband died very suddenly. She was accused of administering poison. After the funeral, she went over into Missouri to make her home with one of her married daughters. She had not been there but a short time when her eldest son secured a requisition, and had his aged mother brought back to Kansas and placed on trial for murder. She was convicted. The sentence imposed, was one year in the penitentiary, and at the end of which time she was to be hung by the neck until dead, which in Kansas is equivalent to a life sentence. The old woman will do well if she lives out one year in prison. She claims that her eldest son desires her property, and that was the motive which induced him to drag her before the tribunal of justice to swear her life away. During her long life of three score and ten years, this was the only charge against her character for anything whatever. She always bore a good name and was highly esteemed in the neighborhood in which she lived.

Another important female prisoner is Mary J. Scales. She is sixty-five years of age, and is called Aunt Mary in the prison. She is also a murderess. She took the life of her husband, and was sentenced to be hung April 16, 1871. Her sentence was commuted to a life imprisonment. For eighteen years this old woman has been an inmate of the Kansas penitentiary. While she is very popular inside the prison, as all the officers and their families are very fond of Aunt Mary, it seems that she has but few, if any, friends on the outside. Several old men have been pardoned since this old woman was put into prison, and if any more murderers are to be set at liberty, it is my opinion that it will soon be Aunt Mary's turn to go out into the world to be free once more.

MRS. HENRIETTA COOK

This woman was twenty-five years of age when she came to the Kansas penitentiary to serve out a life's sentence. She was charged with having poisoned her husband. For fifteen years she remained in close confinement, at the end of which time she received a pardon, it being discovered that she was innocent. When Mrs. Cook entered the prison she was young and beautiful, but when she took her departure she had the appearance of an old, broken-down woman. Fifteen years of imprisonment are sufficient to bring wrinkles to the face, and change the color of the hair to gray. This prisoner made the mistake of her life in getting married. She, a young woman,

married an old man of seventy. She was poor, he was rich. After they had been married a short time she awoke one morning to find her aged husband a corpse at her side. During the night he had breathed his last. The tongue of gossip soon had it reported that the young and beautiful wife had poisoned her husband to obtain his wealth, that she might spend the rest of her days with a younger and handsomer man, After burial the body was exhumed and examined. The stomach showed the presence of arsenic in sufficient quantity to produce death. The home of the deceased was searched and a package of the deadly poison found. She was tried, and sufficient circumstantial evidence produced to secure her conviction, and she was sent to prison for life. A short time before this sad event happened, a young drug clerk took his departure from the town where the Cook family resided, where he had been employed in a drug store, and took up his abode in California. After fifteen years of absence he returned. Learning of the Cook murder, he went before the board of pardons and made affidavit that the old gentleman was in the habit of using arsenic, and that while a clerk in the drug store he had sold him the identical package found in the house.

Other evidence was adduced supporting this testimony, and the board of pardons decided that the husband had died from an overdose of arsenic taken by himself and of his own accord. The wife was immediately pardoned. How is she ever to obtain satisfaction for her fifteen years of intense suffering. The great State of Kansas should pension this poor woman, who now is scarcely able to work; and juries in the future should not be so fast in sending people to the penitentiary on flimsy, circumstantial evidence.

The other female prisoners are nearly all in for short terms, and the crime laid to their charge is that of stealing.

INDIANS IN THE PENITENTIARY

John Washington and Simmons Wolf are two young Indians tried and convicted in the U. S. District Court on the charge of rape. They were sentenced to be hung. After conviction these Indians were taken to the penitentiary to await the day set for their execution. In the meantime an application was made to the President to change the sentence of death to that of life imprisonment. The change was made. These two Indians were placed in the coal mines on their arrival, where they are at the present time getting out their daily task of coal. They both attend the school of the

prison, and are learning very rapidly. Prior to this, Washington served out a one-year sentence in the Detroit house of correction for stealing. He is a bad Indian.

At present there are fourteen Indians incarcerated in the Kansas penitentiary. The Indian pines for his liberty more than the white man or negro. The burdens of imprisonment are therefore greater for him to bear. One young Indian was sent to the penitentiary whose history is indeed touching. Ten Indians had been arrested in the Territory by U. S. marshals for horse-stealing. They were tried and convicted in the U. S. District Court. Their sentence was one year in the State's prison. On their arrival at the penitentiary they were sent to the mines to dig coal. This was a different business from being supported by the government and stealing horses as a diversion. The Indians soon wanted to go home. One of them was unable to get out his task of coal. The officer in charge thought he was trying to shirk his work and reported him to the deputy warden. The young Indian was placed in the dungeon. He remained there several days and nights. He begged piteously to get out of that hole of torture. Finally the officers released him and sent him back to the mines. While in the dungeon he contracted a severe cold. He had not been in the mines more than a couple of days, after being punished, when he gave suddenly out and was sent to the hospital, where in a few days he died. That young Indian was murdered, either in that dungeon or in the mines. A few weeks before, he came to the penitentiary from roaming over the prairies, a picture of health. It did not take long for the Kansas penitentiary to "box him up" for all time to come. He now sleeps "in the valley," as the prison graveyard is called.

Another one of the same group did not fare quite so badly as his associate. The one I am now describing was sent with the rest of his companions to the bottom of the mines. He remained there during the first day. A short time after he went down on the following morning he became sick. He began to cry. The officer in charge sent him to the surface. He was conducted to the cell-house officer, Mr. Elliott. I was on duty that day in the cell house, and Mr. Elliott, on the arrival of the Indian, ordered me to show him to the hospital. After we had started on our journey from the cell house to the hospital building to see the doctor, and had got out of hearing of the officer, I said, "Injun, what's the matter with you?" This question being asked, he began to "boo-hoo" worse than ever, and, rubbing his breast and sides with his hands, said, between his sobs, "Me got pecce ecce." I was not

Indian enough to know what "pecce ecce" meant. In a few moments we reached the hospital building, and I conducted my charge into the nicely furnished room of the prison physician, and into the immediate presence of that medical gentleman. Removing my cap, and making a low bow, as required, I said, "Dr. Nealley, permit me to introduce a representative of the Oklahoma district, who needs medical attention."

While I was relieving myself of this little declamation the young Indian was standing at my side sobbing as if he had recently buried his mother.

"Reynolds, what is the matter with him?" asked the doctor.

I then turned to my charge and said, "Injun, tell the doctor what ails you."

Mister Indian then began rubbing his sides and front, with tears rolling down his face, and sobbing like a whipped school-boy, he exclaimed, "Me got pecce ecce."

"There, doctor," said I, "you have it. This Indian has got that dreadful disease known as 'pecce ecce. '"

The physician, somewhat astonished, frankly informed me that he never had heard of such a disease before. I was in a similar boat, for I had never heard of such words prior to this. The sick Indian was unable to talk the language of the white man. The doctor then sent down into the mines for another of the Indians who could speak English and had acted as an interpreter. On entering the office, the doctor said to him, "Elihu," for that was his name, "this Indian says he has an attack of pecce ecce. Now what does he mean by that?"

During all this time the sick Indian kept rubbing his body and sobbing. What was our great astonishment and amusement when the interpreter informed us that "pecce ecce" meant nothing more nor less than "belly-ache." The doctor administered the proper remedy for this troublesome disease, and the Indian was sent back to the mines. He had not dug coal more than an hour when he had another attack, and began his crying, and was sent to the top. He kept this up until he wore out the patience of the officers, and they finally decided to take him out of the mines altogether and give him work at the surface. Even here, every few minutes the Indian would have an attack of "pecce ecce," and would start for the hospital. At last, the chaplain, taking pity on the poor outcast, wrote to President Cleveland, and putting the case in a very strong light, was successful in securing a pardon for the Indian. That "cheeky" red youth was no fool. He

belly-ached himself out of that penitentiary. I trust I may never have to spend any more of my time in prison. If I do, I think about the first day I will get a dose of "pecce ecce," and keep it up, and see if I can't get a pardon.

MALE PRISONERS

Ed. Stanfield.—The history of this prisoner is as follows: He was about nineteen years of age when he entered the prison, which was some five years ago. His people reside in South Bend, Indiana. His father, prior to his death, was a prominent judge. The family was wealthy, influential and highly respected. It consisted of the parents and two sons. Ed. proved to be the black lamb of the flock. At the early age of nine years, being sent away to school, he bade all good-bye one day and followed in the wake of a circus show which was holding forth in the town where he was attending school. He was not heard of anymore for several years. His parents spent vast sums of money attempting to ascertain his whereabouts. They finally heard of him in the following accidental manner: His father, Judge Stanfield, had been out in Nebraska looking after some land he had recently purchased, and, on his return home, sitting in the cars, purchased a newspaper of the newsboy as he came around. Looking over the paper he caught the name of his prodigal son. There, before him, was the account of his son who, having knocked down a prosecuting attorney in broad daylight with a coupling pin, with the intention of robbery, had been tried, convicted and sentenced to the penitentiary for ten years, and was on that day safely lodged behind the walls. The sad father, on reaching home, dispatched his elder son to the Kansas prison to ascertain if it was his younger son who was a convict. The young man came on and soon satisfied himself of the identity of the long-lost brother. He returned home and made the report to his parents. From that day Judge Stanfield was a broken-hearted man. He soon grieved himself to death over the sad fate of his boy, and the disgrace he had brought upon the family. In making his will, however, he gave Ed. an equal share in the estate with his brother. After the death of the father, the mother began to put forth efforts to secure a pardon for her son. His crime was so heinous and so uncalled for that it was necessary for some time to elapse before an application was presented. At the earliest moment possible the wheel began to turn. The prosecuting attorney of Bourbon County, who had been knocked down with an iron coupling pin, was soon satisfied, for the family had wealth. It is of course unknown how much money was

passed to him to make his heart tender and his eyes weep over the erring child that had come so near getting away with his gold watch and chain. A petition was soon in circulation for his release, signed by many prominent citizens. An open pocketbook will easily secure a petition for pardon, it makes but little difference as to the "gravamen" of the crime. The convict promised not to engage again in this pleasant pastime for filthy lucre. The mother of the young man came on from the East and remained until she had secured a pardon for her boy. The young man stated in our hearing that it took one thousand big dollars to secure his pardon. A great many who are acquainted with the facts in the case are not slow in saying that if Stanfield had been a poor, friendless boy, he never would have received a pardon, but would have had to serve his time out. There are more than five hundred men in that prison whose crimes are of a less serious nature, and who are far more deserving of executive clemency than Stanfield. It is said that "rocks talk" in the penitentiaries as well as on the outside. The history of this criminal will show my boy readers the future of many of those who, in early youth, ran away from home, and go out into the world to mingle in bad company.

Cyrenius B. Hendricks.—This man was sent from Chatauqua County. He was twenty-seven years of age when sentenced. His crime was murder in the first degree. The particulars are as follows: He had been down to the Indian Territory looking after his own and his father's cattle. He was absent on this business some little time. On his return his wife informed him that a neighbor had been talking about her in his absence, and had given her a bad character, and that on account of it she had become the talk of the entire neighborhood. The enraged husband compels his wife to go with him, and they proceed to the neighbor's house. Hendricks took his gun with him. When they reached the neighbor's gate they halted and called the unsuspecting man out of his home. Hendricks then asked him if the charges were true as to his talking about Mrs. Hendricks. The neighbor neither affirmed nor denied the statement. At this Hendricks leveled his gun and shot him dead on the spot. He and his wife in a few hours after were arrested, and, as it was too late to take them to the county seat that night, they were guarded in an old log house in the neighborhood. Hendricks was fastened to the wall with a log-chain. During the night some one, supposed to be the brother of the murdered man, came to the window of the house in which they were confined, and, placing the muzzle of a gun through the

window, shot Hendricks. The ball struck him near one of the eyes, rendering him blind in that eye, but did not kill him. The next day the two prisoners were taken to jail. They were tried, and both found guilty of murder in the first degree. The husband was sentenced to be hanged, while the wife received a life sentence. They were both taken to the penitentiary. After they had been there a short time Hendricks lost the other eye, from sympathy, as they call it. For a time the husband and wife remained on good terms. They were allowed to visit each other once a month. After a while she tired of him and would have nothing more to do with him. She served four years, and received a pardon. Hendricks still remains in prison, and is a pitiable and helpless wreck. He is totally blind, and his nervous system entirely shattered. He can scarcely lift food to his mouth. He is so weak that it is with difficulty he walks about the prison park. An aged prisoner waits on him constantly to care for his wants, and to see that he does not commit suicide. Abandoned by his wife and friends, left to his own sad fate, totally blind and physically helpless, he is another testimonial to the truth that "the way of the transgressor is hard," and it also illustrates how much trouble may arise from using that little member called the tongue in an indiscriminate manner. Since my discharge from the prison I have learned of the death of Hendricks.

Ed. Miner.—One of the men whose history will be interesting to the general reader is Ed. Miner. This man is forty-nine years of age. He served in the Missouri penitentiary two years on the charge and conviction of assault and battery with intent to kill. After the expiration of his sentence, drifting down the current of crime, he next embarked in stealing horses. He was arrested, tried and convicted. He received a five years' sentence, served his time, and went out into the world a free man. Again falling into bad company, he tries his hand once more at the same old trade of riding fast horses, is again caught, tried, convicted, and received another sentence of five years in the prison, which he is now serving out. As a prisoner, Miner is one of the very best. He never violates a prison regulation and was never known to be punished. During the war he served his country faithfully for four years as a member of the 12th Illinois Infantry. At the close of the war, and just before the troops were discharged, one day on review, the governor of the State of Illinois being present, Miner was asked by the commanding officer to step from the ranks, and was introduced to the governor as the bravest and most daring man in the command. The governor gave him a

hearty shake of the hand, and afterward sent him a neat little golden medal as a token of his esteem. Miner now wears this suspended on a small gold chain about his neck. He is very proud of it. One of our prison officers, Mr. Elliott, was in the army with Miner, and says there never was a braver man. It may be a surprise to the reader that such a brave man, such a bold defender of his country's rights, would now be filling a felon's cell. The answer to this is easily given. It is all contained in the one word—liquor. Miner loves strong drink, and when he is under its influence appears to have no sense. He is then ready for the commission of any offense, ready to participate in any kind of deviltry. Were it not for this baneful appetite there is every reason to believe he would be a highly respected citizen. I asked him one day what he would do when he got out. His reply was, "I don't know; if I could not get the smell of whisky I could be a man; it has downed me so many times that I fear my life is now a wreck; the future looks dreary; awful dreary." With this remark Ed. went away to attend to his duties. My eyes followed the old soldier, and, reader, do you blame me when I say to you that from within my heart there came forth the earnest desire that God in some way would save that man, who, away from strong drink and the influence of wicked companions, is a good-hearted, generous man.

Gordon Skinner.—A young man of twenty, possessed of an innocent, boyish appearance, whom none would take for a murderer, was sent up from Ellis County. His victim was Andrew Ericson, a respectable and worthy citizen about thirty-seven years of age. Skinner claims the shooting was purely accidental; that he was carelessly handling a six-shooter when it went off, the ball striking Ericson. He claims, also, that he and his victim were good friends, and that he never had any intention of killing him. The other side of the story is that there lived near Hayes City a beautiful girl, and that Skinner and Ericson were rivals for her heart and hand. Ericson, being much older than young Skinner, possessed of some property, and doubtless more skillful in the art of winning hearts, was beginning to crowd his rival to the wall. Young Skinner, not being able to endure the sight of his fair one being thus ruthlessly torn away by an old bachelor of thirty-seven, met him one day and the two engaged in a spirited controversy, when Skinner drew his revolver and shot him. Ericson lived several days afterward. Just before death, Ericson begged of his friends not to have Skinner arrested, stating he was not to blame. Skinner, moneyless,

friendless, a comparative stranger in the neighborhood, his people all residing in Phillips County, this State, and, with the prejudices of the Ericson people against him, was tried, convicted and sentenced to twenty years' imprisonment. If the Board of Pardons ever takes the trouble to investigate this case, with a view of tempering justice with mercy, they will find it worthy. Skinner is a good prisoner, and has ingratiated himself in the good opinion of the officers. But the weight of a twenty years' term is heavy, and is visibly affecting his health. Death should not be left to accomplish what the Board of Pardons should take pleasure in doing. This delicate boy should be sent home to his parents.

FREAKS OF JUSTICE

Robert W. Corey was sent from Wyandotte County with a sentence of three years for stealing cattle. This is a remarkable case. Corey is a blind man, and had been totally blind for thirteen months prior to his arrival at the prison; he was a taxidermist, and some years ago had taken a contract for furnishing stuffed birds for the museum of the Agricultural College of Ames; Iowa. This business requires the use of arsenic; carelessly handling it destroyed his eyesight. How a man, blind as he is, and was, at the commission of the alleged offense, could drive off and sell these cattle, is a mystery. The man who swore that he committed the theft is now an inmate of the institution, sent here for stealing since the arrival of blind Corey. This man now says that he is not positive that Corey took the cattle. On the trial, however, he swore it was Corey, and that he was positive of that fact! About the truth of the matter is, he was the villain that took the cattle and swore it on the blind man. Corey has only a few months to remain in prison at this writing. It is terrible to heap such a disgrace upon as helpless a creature as Corey.

His case calls to mind another in the penitentiary. He is a colored man who cannot write, by the name of Thomas Green, from Fort Scott, serving out a five years' sentence for forging a check for \$1,368. He was tried, convicted, and sentenced. Taking an appeal to the Supreme Court, the judgment of the lower court was set aside; but at his second trial, he was found guilty again, and is now in prison serving out his sentence. How can one commit the crime of forgery who cannot write? Probably some "Smart Aleck" of a district judge can explain. I admit that it is beyond my powers

of comprehension. It may be law, but there is not much COMMON SENSE in it.

OH! RIGHTEOUS JUDGE!

Gus Arndt is the next. The history of this man will show the freaks of whisky when enclosed in the hide of a raw Dutchman. Gus came to this country a number of years ago, and went to work for his uncle in Wabaunsee County. Not being able to speak English, his uncle took advantage of him, no doubt, for he paid him only ten dollars a month for his services as a farm hand during the summer season, and nothing but his board during the winter. Gus remained here for some time, three or four years, working at these wages. He had learned and could understand and speak English a little. One day as he was pitching grain in the field an Irishman came by who resided on a farm a few miles distant. Needing a hand and noticing that Arndt handled himself in a satisfactory manner, he offered him twenty dollars per month to go and work for him. Arndt accepted his proposition, and agreed to report at the Irishman's farm the following Monday, this being Thursday when the bargain was made. That night the German settled up with his uncle, and received the balance of his wages, some \$75. He had been in America long enough to reach that point in our civilization that, after working awhile, and getting a balance ahead, he must take a rest and go on a "spree." He started for the nearest town. For a couple of days he fared sumptuously, constantly drinking. He at length reached a point below zero. Half crazed, he staggers off to the fence across the way where the farmers who had come to town to do their shopping on Saturday had hitched their teams, and, untying a horse that was hitched to a buggy, Gus thought he would take a ride. Lumbering into the buggy, as a drunken man can, he drove down the main street of the town in broad daylight and out into the country. In an hour or so the owner getting ready to return, misses his horse and buggy. Making numerous inquiries about them and getting nothing satisfactory, he places the matter in the hands of a sheriff, who commences a search for the missing property. Not finding it in town he sends men out on the roads leading to the country, himself taking one. In a very short time he overtakes the noted horse-thief. Gus was sitting in the buggy sound asleep; the lines were hanging down over the dashboard, and the old horse was marching along at a snail's pace. He was out some two miles from town, and, no doubt, had traveled at this gait all the way. He was faced about, and, assisted by the sheriff, drove back to town. He was

then placed under arrest and sent to jail, subsequently had his trial, and for this little drive was sent to the penitentiary for five years. Of a more unjust sentence I never heard. Gus served his time out and a better behaved person was never behind the walls. When he regained his liberty, instead of returning to Wabaunsee County, and to his uncle's house, he finds his way to Marysville, Kansas. Here reside a number of prosperous German farmers, and the ex-convict soon got work. When he applied for work he forgot to tell his employer that he had just finished up a contract for the State of Kansas. Some months had elapsed and Gus had worked hard and industriously, had accumulated a neat little sum of money, and began to feel happy once more. At this time a man passed through the country that was acquainted with Arndt's antecedents, and being a dirty dog he thought it was his duty to inform the farmer that his hired man was an ex-convict, horse-thief and a desperado of the worst type. Some men are so officious and are so anxious to do their duty when it is in their power to injure a fellow-man who is trying to earn an honest living. Gus immediately got the "bounce." He was informed by his employer that he did not want to make his home a harbor for horse-thieves. Gus took his wages and clothes and started for Marysville. He could not bear the idea of being discharged because of his former misfortune. He again applies to the bottle for consolation. He goes on another spree. When crazed with liquor he acted just as he did before; he goes to a hitching post, and unties a team of horses attached to a buggy. One of the horses had had its leg broken at some former time, and was almost worthless, while the other one was very old. He seemed to select the very worst team he could find. Maybe it was the buggy he was after! He was probably very tired and wanted an easy place to rest. He unhitched them just as if they had been his own. It was in the afternoon. The streets were full of people. Gus crawled into the buggy in his half drunken manner and started off down the road. When found by the sheriff some two hours after he had gone, about half a mile from town, the old horses were standing at one side of the road and the drunken Dutchman was lying in the buggy sound asleep, with one bottle of whisky uncorked, the contents of which had run out and over his clothes, and another bottle in his pocket untouched. He had evidently gone out for a drive. He was taken to jail, and the news soon spread that he was an ex-convict and horse-thief. He was tried on a charge of stealing horses, and was returned to the penitentiary for a term of two years. Here were seven years' service for two drunks! Ancient Jacob,

"how tuff!" After Gus had completed his narration to me he wound up by saying, "Ven I shall oudt git this time, I let von visky alones."

BOVINE TROUBLE

Woodward R. Lopeman was sent up from Neosho County for murder in the first degree. Under his sentence he was to be hanged at the close of the first year. This part of the sentence is never carried out in Kansas. The particulars of his crime are as follows: He was a well-to-do farmer residing in Neosho County, and never had any difficulty to amount to anything before this time. He was an old soldier and served his country faithfully and bravely for four years. For some trivial cause he and one of his neighbors had a little difficulty, but it was thought nothing would ever come of it, as each of them had been advised by their friends to bury their animosity before it should lead to graver results. Lopeman seemed willing to do this, but his irate neighbor would not meet him half way. One day a calf of Lopeman's, worth but a few dollars, got through the fence and over into his neighbor's pasture. Word was sent to the owner of the calf that if he would come over and pay damages for the trouble of penning it up he could have his property. This had a tendency to arouse a bad feeling in the heart of Lopeman; so, placing his revolver in his pocket, and asking his grown up son to accompany him, they went to the house of the neighbor and directly to the lot where the calf was shut in and commenced to lay down the bars to let it out, when the neighbor came from the house with his son, and Lopeman was ordered to leave the bars alone. The neighbor, who was a strong, muscular man, proceeded to chastise Lopeman; the two sons also got ready for an encounter. Lopeman, being by far the smaller man of the two, began to retreat slowly as his enemy advanced brandishing a club. When almost near enough Lopeman to strike him with the uplifted club, Lopeman, in self-defense, as he claims, drew his revolver and shot him. He fell lifeless to the ground. The son of the murdered man perceiving what was done, ran quickly into the house, and getting a double-barreled shotgun, came out and fired twice at Lopeman and his son. The shots did not take effect. Lopeman fired two shots at him. At this the son retired into the house, and Lopeman and son taking the almost worthless calf, which had been the cause of so much trouble, went to their home. Lopeman then went to the county seat and gave himself up to the authorities. As soon as the news spread over the neighborhood, excitement ran high and there was loud talk of lynching. The murdered man was very popular. His old

neighbors smelled blood, and it was with some difficulty that they were prevented from taking the law into their own hands. Better judgment prevailed, however, and after six months the trial came off and the murderer was convicted and sentenced as aforesaid. THIS MAN WAS MY CELL MATE. He is something over sixty years of age, of medium height, and during his younger days must have been very hard to handle. The first evening we occupied the cell together he told me of all his troubles, and I learned from his own lips that I was to room with a murderer. I felt I would much rather be at home, than locked in that 4x7 cell with a man whose hands were dyed with the blood of his neighbor. My alarm somewhat subsided when the time came for retiring. The old man, as solemnly as the Apostle Paul would have done, took down the Bible, read a few verses, and then knelt down and prayed. I sat there in mute astonishment at the proceedings of this gray haired criminal. How was it possible for a man who was guilty of such a grave crime to be devout. He often told me that he had no consciousness whatever of guilt, nor the fear and dread of a murderer. I asked him if in his dreams he could not often see the face of his victim. With a shrug of the shoulders he admitted that he could. For six months this old man and myself occupied that small cell together, so small that it was very difficult for us to get by each other when the sleeping bunks were down. We never had the least trouble during the entire time. A kinder hearted man I never met. Whenever he received any little delicacies from home he would always divide with me, and in such a cheerful spirit that I soon came to think a good deal of the old man. If we had both been on the outside world I would not have desired a kinder neighbor. His son, later on, was convicted as an accomplice, and sent up for two years. The old man has hopes of a pardon in a few years. He has a wife and several children who are highly respected and much beloved in the neighborhood where they reside. They have the sympathy of all their neighbors in this affliction and bereavement.

WHISKY AND WOMEN

Doc. Crunk.—One of the many desperadoes now behind the prison walls of the Kansas penitentiary is this noted Texas outlaw. He is a native Texan, now nearly fifty years of age. After years of crime he was finally caught in the Indian Territory while introducing whisky among the Indians. He had his trial in the U. S. District Court, was convicted and sent to the penitentiary for three years. For a time during the war he was a confederate

soldier. Becoming dissatisfied with the profession of arms, he deserted and entered upon the life of an outlaw. He gathered about him a few kindred spirits with which Southern Texas was infested, and organized a band of cattle and horse thieves. This band of banditti became so numerous that after a time it extended along the lower line of Texas into the Indian Territory and up into Kansas. Their ravages were also felt in Arkansas. They had a regular organized band, and stations where they could dispose of their stolen property. The cattle that were stolen were run to the frontiers and sold to cattlemen who were in collusion with them, and which latter were getting immensely rich out of the operations of these thieves. They would steal horses, run them off and sell them to buyers who knew they were purchasing stolen property. For years this gang flourished. Another mode of securing stock was the following: A great many estrays would be taken up and advertised. In every instance some member of the Crunk gang would claim the property under oath and take it away. The leader of these outlaws stood trial for nineteen different murders, and was acquitted each time. He could always prove an alibi. His assistants would come in and swear him clear every time. He was an intimate acquaintance and on friendly terms with the James boys, and related many trips that he had made with these noted and desperate men in their work of "seeking revenge," as he styled it. He has no love for a colored man, and as he works now in the prison with a number, pointing to them one day he said to me, "I wish I had a five-dollar note for each one of them black skunks I have killed since the wa'." He said he considered "a 'niggah' that wouldn't vote the way decent people wanted him to should not vote at all." Said he: "I know of a number that will not vote any mo'. I saw them pass in their last ballot." "The most money, made the easiest and quickest, was made by our men," said he, "as moonshiners in Montague County. We carried on this business successfully for a long time, but finally the U. S. marshals became too much for us, and we had to close up shop. We had several engagements with them; men were dropped on both sides, until finally we concluded to quit the business and return to our old trade of stealing cattle and horses. The way our moonshiner's nest was found out was very romantic. A young woman came into the district, and tried to get up a school, seemingly, but failed. I guess she did not try very hard to get scholars. At any rate she remained with a family in the neighborhood for some time, whom she claimed were her relatives. One of my men fell desperately in love with this young woman. He would be out

riding with her, and, as none of us suspected anything, he would at times bring her over to our camp, and we taught her how to make whisky. She seemed deeply interested in the business. I told the boys several times that I was a little afraid of that 'gal,' but they laughed at me, and so I said, 'I can stand it if the rest of you can.' She even went so far as to become familiarly acquainted with all of us. We all got to thinking that she was a nice young woman, and her lover simply thought he had secured the finest prize in the world. But alas! At the proper time she fixed our camp. She proved to be a female detective from New York city. She gave away our fellows, and soon we were surrounded by a posse of U. S. marshals and their deputies. Her lover was captured and is now in the Texas penitentiary. Several of our boys were killed or wounded, and those of us who escaped made up our minds to go back to the old cattle trade." "What are you going to do, Doc.," said I, "when you get out of this place?" "Going back to Texas; hunt up the boys, and see if we can't find some more horses and cattle. One thing is certain I will never go to another penitentiary. I will swallow a dose of cold lead first."

And, with this, the famous outlaw went off to his room in the mine to get out his task of coal to keep from being punished. Of the nine hundred criminals in the prison, probably there is not one of them who has seen so much of a life of crime as the famous Doc. Crunk.

EIGHT TIMES A CONVICT

Thomas A. Currens.—One of the most unique characters to be found in the striped ranks of the Kansas penitentiary is that of the man who is herein described. This convict is fifty-two years of age, and a native of Kentucky. His life, save a short time spent in the army, has been one of crime. He was a courageous lad. Leaving his home at the early age of ten years, thus deprived of all parental protection and restraints, he formed bad associations, and soon his future career was in the direction of crime. The greater part of his boyhood was spent in city and county jails and reform schools. At the age of twenty-two years he was convicted on a charge of horse-stealing and sent to the Frankfort, Ky., penitentiary for six years. After serving four years he was pardoned by the Legislature. He remained out of prison for the two following years. We next find him in "limbo" in Indiana. He was arrested, and twenty different charges were preferred against him. By pleading guilty to the count of stealing a wagon, the court

dismissed the other cases and gave him a sentence of three years at hard labor. He was taken to the State's prison. Shortly after his arrival he was put to work running an engine during the night-time. After five months had passed away, Thomas, reaching the conclusion that he did not enjoy watching over an engine during the lonely hours of the night, determined to escape. Stealing an old suit of clothes belonging to an officer, which he drew on over his suit of stripes, he scaled the walls and was once more a free man. It was a cold winter's night. After traveling some distance through the woods his feet were almost frozen. Daylight was now approaching. He must find a place of hiding during the coming day. In a few hours he would be missed at the penitentiary. The alarm being given, the usual reward being offered, scores would be on the lookout for him. Approaching a farmyard, he sat down and cut up his striped pantaloons and wrapped up his almost frozen feet. He then crawled under a hay-stack. In this place he came near being discovered, for in a couple of hours the farmer came out to feed his cattle, and as chance would have it took the hay from the stack under which the convict was secreted. As he was removing the hay, several times prongs of the fork sank deep enough to penetrate the flesh of the runaway. He endured this pitchfork probing heroically while it lasted, and was thankful when the cattle had received sufficient provender. Here he remained until nightfall. He did not renew his journey until the farmer and his family had retired and were in the land of dreams. Almost starved, uninvited he enters the kitchen and helps himself to what he can find. His hunger being appeased, his old habit of taking things that he should leave alone, forced him into the bed-room of the sleeping farmer, and forced his hand into the pocket of the aforesaid granger's pantaloons, from which he took his pocketbook containing twenty dollars in money. He was now prepared for traveling. Continuing his journey for several miles, becoming very tired, he decided not to walk any longer as there was so much good horse-flesh in the vicinity. Near the hour of midnight, this weary tramp entered the farmyard of a wealthy old Indiana farmer, and going into the barn led out one of his fleetest steeds. Once more astride a good horse, Thomas felt like a free man. During the rest of the night he made good headway, and by the morning sun was up the rider and horse were many miles away from the place where first they met. Entering a small village, the horse was fed and nicely groomed. At the same time Thomas partook of a good breakfast, which he heartily enjoyed. The fates seemed to favor the man of crime. It is

an old saying: "The devil looks after his own." A horse-buyer had arrived in the village a few days before. When the noon train came whistling up to the station, the convict having converted his horse into one hundred and twenty-five dollars, purchased a new suit of clothes, a silk hat, and a pair of kid gloves, and, representing himself to be a traveling salesman, getting aboard, soon reaches Chicago, where, soon after his arrival, he joined a band of crooks. He was never discovered by the Indiana prison officials. Fifteen years after his escape, he got a "pal" to wire the authorities of the Indiana penitentiary, and inquired of them what reward they would pay for the return of Thomas A. Currens, a convict who had effected his escape many years before. An answer came that if he would remain out of the State, he would never be molested.

Wandering about several months after his escape, he arrives in Sedalia, Missouri. Among other little articles he was accused of stealing at this place was an eight hundred dollar barouche, the property of Judge Ferguson, of that place. Again this noted thief was arrested and confined in the county jail to await trial. He was not anxious for trial, for he knew the "yawning pen" was waiting to receive him. For eleven months he remained in this jail, having his trial continued from term to term. When his case was called up for the first time he feigned sickness. The next time one of the principal witnesses was absent, and thus for eleven months his case was continued. Thomas now yearned for freedom. How to get out of that jail was the problem. Another term of court would soon convene. He had no grounds for further continuance. Fortune favored him. At this time a man was arrested and placed in the same cell with Currens. The face of the new arrival was covered over with blotches. The next morning Currens in a confidential manner stated to the sheriff that his cell mate had the small-pox. Being interrogated the prisoner said he had been exposed recently, and a physician being called, on examination it was decided to remove him to the pest-house. Currens was sent along on account of his exposure to the contagion. An officer was placed in charge of the two jail-birds at the pest-house. During the night following their arrival at this out-of-the-way place, the officer was pounced upon by the two desperate criminals, bound hand and foot, and with a large cork placed between his teeth, was gently laid on the floor. His gold watch and chain, and all the loose change he had with him were taken from his person, and the two small-pox patients walked forth

into the darkness and gloom of that night unattended by any friendly official.

Thomas never believed in criminals traveling in groups, so he bade his companion an affectionate farewell. Wending his way to the southwestern portion of the State he was arrested for additional crimes and misdemeanors. Knowing that the officers had not sufficient evidence against him he bravely stood trial and was acquitted. However, as he was going forth from his prison cell a free man, much to his surprise, an official from Sedalia put in an appearance and took him back to the scene of his small-pox escapade. At his trial he was convicted and received a sentence of six and one-half years. He now took a cell in the Jefferson City penitentiary. After four years of imprisonment this notorious criminal makes an application for pardon, setting up an alibi as the basis of the application, and succeeded in influencing the Governor to believe the testimony, and was set at liberty, promising that he would leave the State of Missouri, never to return. The conscience of the said Thomas never troubled him over failing to keep his word with the officers of the law. He did not leave Missouri, as he agreed, but betook himself to the pleasant little city of Carthage. Scarcely three months had elapsed before he found himself again in durance vile for stealing horses. He was tried, convicted and returned to Jefferson City penitentiary under a sentence of six years. He took an appeal to the Supreme Court. The judgment of the lower court was reversed. He was taken back to Carthage for another trial, and was convicted the second time, and again received a sentence of six years at hard labor in the penitentiary. As before, he appealed the case, and the governor, thinking the State was getting the worst of the matter, and that a large amount of costs were being made, pardoned the convict under another promise that he would leave the State. Currens, now following Greeley's advice, turns his eyes toward the setting sun. He crosses the Big Muddy, and plants his feet upon the sacred soil of Kansas. He makes a raid upon Lawrence, breaks into a house, and is caught in the act of trying to carry off the household goods. A courteous policeman takes charge of him—now deeply steeped in crime—soon landing him behind the bars. In the presence of the court he next makes a solemn statement that, prior to this, he had been a Sunday-school teacher; that misfortune had overtaken him, and he was forced to enter some friend's kitchen or starve. Those who listened to his pathetic appeal inform me that the stern judge was moved to tears, and that while he had contemplated

giving the wayward Thomas six years, he made it three. This was the first introduction of our hero to the principal brown stone front of Lansing. It was not long after his arrival at the Kansas penitentiary before he gained the confidence of the authorities, and was made a "trusty." He had an easy place given him.

His three years' sentence soon passed away. His term was reduced three months because of his excellent conduct while in prison. Bearing with him the good wishes of a majority of the prison officials, and followed by the prayers of the pious chaplain, he goes forth to engage in life's battle again. Thomas could not fully enjoy the sweets of liberty unless on horseback. He makes his way to the capital of Kansas, and engages at once in the dangerous business of stealing horses. He had not continued this course long before he was arrested, tried, convicted and returned to Lansing for five years more. Thomas had not been in the Kansas penitentiary the second time but a few months, when he called upon the chaplain, and with tears rolling down his face confessed he was a great sinner, promised to lead a different life, and urged the chaplain to pray for him. Delighted at the prospect of snatching such a brand from the eternal burning, the man of God took Thomas into a private room, and the two knelt down. The chaplain offered a fervent prayer that the loving Father would take to His embrace the returning, sinful prodigal. At the conclusion of this prayer the chaplain called upon the "sin sick soul" to pray for himself. This was an unexpected movement by the chaplain, and Thomas was hardly prepared for the emergency. However, he prayed. He was converted on the spot. At least, the chaplain thought so. Strange as it may appear to my readers, instead of this noted convict having to remain and serve out his five years' sentence, through the influence of this minister he secured a pardon. At the expiration of eighteen months the shrewd convict was a free man. That chaplain was "worked."

The fortunate Thomas next visits Atchison. A farmer came to the city one day, driving a beautiful horse. The temptation was too great, and the man who had been an inmate of a penitentiary seven different times followed the unsuspecting farmer to his home, and that night rode away the coveted prize. The Atchison County Vigilance Committee traced and soon caught the guilty horse-thief, landing him in Atchison County's beautiful jail. Shortly after, Thomas had an interview with the county attorney, and it was agreed by and between them, if the horse-thief would plead guilty, he

should be let off with one year in the penitentiary. To this the grave offender agreed, and, presenting himself before the tribunal of justice, Hon. W. D. Gilbert presiding, plead guilty. The county attorney being absent, the court gave Thomas, instead of twelve months, a year and a half at hard labor. I met him in the penitentiary a few days ago, and learned that he is putting forth an effort to secure a pardon on the ground that had he not been promised only a one year's sentence, he would have stood trial and been acquitted. He claims that he should be given his liberty when his one year is up.

Thomas was out of the penitentiary long enough to go into the army and get a bullet through his ankle, and therefor draws a pension of twenty-four dollars per month. He takes good care of his money, and has enough on hand to enable him to get a good start in life when he obtains his freedom. He is a well-behaved prisoner. He is true to his pals in crime, never having been known to turn State's evidence. He has a mania for taking things that do not belong to him. He claims that he never would have been caught the last time had not his housekeeper "given him away." The two had a domestic quarrel, and in her efforts to get even, she told the authorities of his theft. After his trial and conviction, womanlike, she repented in sackcloth and ashes, but Thomas would have no more to do with her. Later, she went over into Missouri, where she has since died. One of the first things Thomas will do on regaining his liberty will be to secure another housekeeper, and probably the the next thing will be to steal some farmer's horse.

This convict is now serving out his eighth term in the penitentiary. It is fearful to contemplate these human wrecks. A wasted life, golden opportunities unimproved, a dark and dismal future will constitute the death knell of such fallen beings. Young man, remember the life of this convict, and shun such a course.

SKILLED LABOR

William Hurst.—Some of the narratives in this book read like the story of Aladin's Lamp, and we have no doubt some of them so reading are absolutely true, while for the Lamp story nothing is claimed. For many ages men, and particularly those engaged in the literary field of thought, have discarded on the baseness of the passion of jealousy. There is no sense in

being jealous. You are either loved or you are not, and hence the absolute foolishness of indulging the passion.

William Hurst, whose history we now relate, is a man of rough personal appearance, Irish descent, and his age is now about fifty-five. Coming to Kansas at an early day, he settled in Doniphan County, and there courted and subsequently married one of Doniphan County's pretty girls. Time went along as usual, and in a few years there were several little cherubs that blessed the household of Hurst. But, as sometimes happens, the husband began to drink, love grew colder, the necessities of the family hourly grew greater, poverty in all its hideousness came to curse the home once so happy. The poor, distracted wife and mother did all she could, by taking in washing and ironing, to prevent the starvation of her little ones. The husband through his bleared eyes imagined he could see that other men were too friendly to his wife. He charged her with unfaithfulness to the marriage vows. She denied the charge. Only incensed by this he would beat and mistreat her out of all reason. For protection she had him arrested, intending to bind him over to keep the peace, but on the advice of officers, who are so full of it, she withdrew the charge and he was set at liberty. For a few days he was quiet, but soon the red liquor poured down his throat, and like a mountain devil stirred all the dark passions of his lost and ruined nature. He attempted to debauch his own daughter, and was only prevented by the physical force of the ever-watchful mother. The father (great God! is such a human being entitled to the endearing term?) turned upon her, and again, as had often happened, abused, kicked and mistreated her in a most shameful manner. She had him arrested a second time with the intention of binding him over to keep the peace. He pretended, while in charge of the officer, that he must see his wife, and together they started toward the hovel where they lived. They met the wife and mother at the outskirts of the little village, had some words, and before the officer could prevent it, Hurst sprang upon the woman and cut her throat from ear to ear jumped away, and made good his escape to the woods, the officer, meanwhile, deeming it more important to aid the woman, not knowing, for a moment, that the cutting was fatal. That fact was very soon apparent. Others were called who took charge of the body, and the officer struck out in hot pursuit of the murderer. He was followed to the woods a few miles from White Cloud, in Doniphan County, there overtaken and conducted to the county seat, tried, convicted of murder in the first degree, sentenced to be hung, sent to the

penitentiary to await the final execution, which, in our State, never comes. He remained in there about twenty months when he became insane, and was sent to the asylum; was there about three and a half years, when he was pronounced cured and returned to the penitentiary. He is now insane a second time. You have all in your younger-days read the story of the maniac that paced his cell, repeating "once one is two," and now comes the queerest part of this narrative. Hurst seems anxious to talk to every one that calls, and especially anxious to shake hands; but if you say anything to him, or ask any question, his only answer is "skilled labor," and keeps on repeating these words as he walks up and down his place of confinement.

Who knows but the infinite God has destroyed reason to prevent the power of darkness over this poor, unfortunate being. Or who knows but the demands of justice are met in the terrible conscience blows which have staggered and shattered that which originally was in the image of God.

LIFE INSURANCE AND MURDER

McNutt and Winner.—These are two of the most noted criminals in the penitentiary, rendered so because of the dastardly crime committed by them, and the high social relations of the latter. They came from Wichita, and have been in prison almost fifteen years. McNutt is a fine artist and painter. He had his paint shop in Wichita, and was doing a very successful business. Winner was his associate, and the two plotted and carried into execution the following horrible crime: McNutt got his life insured for \$5,000, his wife being his beneficiary. It was a dark, stormy night when McNutt and Winner enticed into this paint shop an unsuspecting mutual friend. Here they murdered him in cold blood. They then set fire to the paint shop and took to flight. After the fire was put out, the charred remains of the murdered man were found, and supposed to be those of McNutt, the owner of the building. The wife, cognizant of the awful deed which her husband had committed, followed the remains of the murdered man to the grave, dressed in her garb of mourning.

Shortly after this she applied for the insurance money on her husband's life. Some doubts were raised as to the identity of the body. Detectives were employed to make an investigation of the case. They made use of a deception, and thus got the woman to confess. They told her that they had found an accomplice who had confessed the crime, and was in jail. They promised the wife that if she would tell the truth they would not prosecute

her. She consented. She narrated the sickening events as they had been plotted in her presence and under her roof. Officers were now despatched to find the murderers. McNutt was found in Missouri plowing corn. Winner was found near Wichita. They were brought to trial, convicted, and sent to prison for life. Winner was unmarried at the time of his conviction. His father and only brother are very wealthy, and living in Kansas City. I have been told they offer \$20,000 for Winner's pardon. McNutt is a very useful man in the prison. He has charge of the painting department. He has done some fine work on the walls of the prison chapel, covering them with paintings of the Grecian goddesses. Both of these prisoners hope to receive pardons. Whether they will regain their liberty is a question which the future alone can answer.

THE HOG-THIEF

In the coal mines, as before stated, the convicts are permitted to converse with each other. I improved this opportunity of acquiring the histories of the five hundred criminals with whom I daily worked, eight hundred feet below the surface. I would talk with a fellow prisoner, and get the details of his crime as we sat together in the darkness. Understanding "short-hand," I would go to my cell in the evening and jot down what I had learned during the day. I had no fears of any one reading my notes, as I was the only short-hand writer about the institution. Day after day I kept this up, until I had material sufficient of this nature to fill a book of more than two thousand pages. My readers should also know, that a convict will tell a fellow-prisoner the details of his crime, when he would not think of saying a word about it to others. As a rule they deny their crimes to those who are not, like themselves, criminals, pleading innocence. It is not difficult for a prisoner to get the confidence of a fellow-prisoner. In fact, criminals love to unburden their minds to those who possess their confidence. The truth is, convicts have related their crimes so often to me that it became tiresome. They say it relieves them to communicate their troubles. Pinkerton, of Chicago, the prince of detectives stated at one time that a criminal could not keep his secret. It is true. I know it to be a fact. It has been demonstrated a hundred times in my association with these convicts in the Kansas penitentiary. Securing their confidence, these men have not only told me of the crimes for which they have been sent to prison, but also of crimes that they have committed, and, in the commission of which, they had not been detected, which, if I should make them known, would cause a number of

them to remain in the penitentiary the rest of their lives. I am not in the detective business, and will therefore keep what was confided to me. I have met but few criminals in the mines that would not admit their guilt. I have thought in many cases, convicts received sentences too severe, and not at all commensurate with the crime committed. I have met a few men, however, who would stubbornly deny their guilt and stoutly affirm their innocence. I have worked upon these men day after day, and never got anything out of them but that they were innocent. At times, in tears, they would talk of their sufferings, and wonder if there was a just God silently permitting the innocent to suffer for the guilty. I am satisfied these men are innocent, and they have my sympathy. They are exceptions. Others, while admitting their guilt on general principles, and assenting to the justice of imprisonment, yet maintain that they were innocent of the particular crime for which they stand convicted. I trust the reader will not get his sympathies wrought too high, as comparatively few angels find their way into modern prisons. I will give you a few illustrations. These are just samples of scores of histories in my possession.

A hog-thief worked in the mines with me for a few days. His dose was five years at hard labor. He had stolen an old sandy female swine with six pigs. I asked him if he was really guilty of carrying on the pork business. "Yes," said he, with a low chuckle, "I have stolen pigs all my life, and my daddy and mammy before me were in the same business. I got caught. They never did." He then related the details of many thefts. He made a considerable amount of money in his wicked traffic, which he had squandered, and was now penniless. Money secured in a criminal manner never does the possessor any good. I asked him if he had enough of the hog business, and if it was his intention to quit it, and when he got out of the pen to earn an honest living. "No," he replied, "as long as there is a hog to steal and I am a free man, I propose to steal him." Imprisonment failed to reform this convict. Although a hog-thief he was an excellent singer and a prominent member of the prison choir.

There are many murderers in the mines. In fact, nearly all the life men are there. Some of them speak of their crimes with a bravado simply astonishing, showing their utter depravity. Others, admitting their guilt, say but little of details. The following will give the reader some idea of the stories that greeted my ears almost daily, and led me to conclude that the coal mines of the penitentiary are not inhabited exclusively by Sunday-

school scholars. This cruel and heartless wretch had murdered an old man and his wife. The old people lived on a farm adjoining the one where this criminal, who was then a hired man, worked. It was the talk of the neighborhood that they had money. This human fiend undertook to secure their "loose change," as he called it. He procured a shotgun and an axe, and, in the dead hour of night, went to the house of the old people. He forced open the kitchen door and went in. He had also brought with him a lantern. He quietly stole to the bedside of the innocent and aged sleepers. He had no use for his lantern as the moonlight shone through the window opposite and fell upon the faces of the unconscious victims. Setting his gun down by the side of the bed, so that he could have it handy for use, if necessary, he took the axe and struck each of his victims a blow upon the head. He said, with a demoniac chuckle, that it was more difficult to kill a woman than a man, as it required two blows from the axe to kill the woman, while one was sufficient for the man. He then ransacked the house, and, between some blankets underneath the straw-bed upon which the old folks were sleeping, he found a small bag, which contained some gold, silver and paper money, amounting to over one thousand dollars. In a cold-blooded manner he further stated (and as I pen his words my blood nearly freezes in my veins), in order to search the bed upon which his victims were lying, it became necessary for him to remove the bodies; so he lifted them up one at a time, and placed them upon the floor, face downward, for the reason, as he said, that their eyes bulged out and seemed to stare at him.

After securing the money he fled and returned to the farm where he worked. He slept in the barn, as is very often the case with farm laborers during the summer season. Entering the barn he procured an old bucket, places his money in it, covers the top with a piece of board, and buries it in the earth east of the barn. He also buried the axe near the bucket. He said there were clots of blood and hair on the axe, and he thought best to put it out of sight. He then returned to the barn, and, strange to say, soon fell asleep and slept sweetly until morning. He went to work the next day as usual, and his mind was taken up more by thinking of what a good time he would have after a little, spending that money, than in worrying over the terrible crime he had committed. He reasoned that the money would do the old people no good, but that he could use it to advantage.

The discovery of the murder was made the next day about noon. The alarm was given. The whole country was aroused and excited over the

commission of such a horrible crime two innocent, helpless and highly-respected old people murdered for their money. A couple of tramps had passed through the neighborhood the day before, and, of course, everybody thought it must have been the tramps that committed the murder. The object now was to find them. They were overtaken the next day and brought back to the scene of the murder. They both stoutly denied any knowledge of the crime. They were separated, and each was told that the other had confessed. This was done that a confession might be forced from them. They continued in their affirmation of innocence. They were then taken to the woods near by and each hung up until life was almost extinct, but they still denied the commission of the crime. They were at length taken to the county seat, not far distant, and, on a preliminary examination, were bound over to appear at the next term of the District Court, and put in the county jail. The majority of the people believed that the perpetrators of this crime had been arrested and were now in durance vile; the excitement soon passed away, and very little was said about it.

"It was at this time," said my informant, "that I made the mistake of my life. I had worked hard on the farm for several months, and thought I would take a lay off. I felt it was due me. I now made up my mind to have a time. I went to town and soon fell in with a harlot. I got to drinking. I am very fond of strong drink; it has been my ruin. I became intoxicated, and during this time I must have betrayed my secret to this wicked woman. A large reward had been offered for the murderer of these old people. This woman who kept me company having thus obtained my secret, went to the city marshal and made an arrangement that for half of the reward offered she would show him the man who had committed the crime. This was agreed to. While I was drinking and having a good time with my 'fast woman' three men were on the road to the farm where I had been working. They found and dug up the old bucket containing what money I had left in it, and the axe. All this I learned at the trial. I was arrested and bound over to the District Court on a charge of murder in the first degree. The officers had to keep me secreted for some time, as there was strong talk of lynching. In due time I had my trial and got a life sentence."

I asked him if he had any hope of pardon.

"Oh yes," said he, "in the course of eight or ten years I will be able to get out once more."

"What became of the tramps that came so near being compelled to suffer the penalty of your crime?"

"They were released as soon as I was arrested, a snug little sum of money was raised for them, a new suit of clothes purchased, and they went on their way rejoicing, thinking themselves creatures of luck."

As we sat together in a secluded place in the mines, with the faint light of my miner's lamp falling on his hideous face, the cool, deliberate manner in which he related his atrocious doings, the fiendish spirit he displayed, led me to regard him as one among the most debased and hardened criminals I had met in the mines—a human being utterly devoid of moral nature—a very devil in the form of man!

A NOTED COUNTERFEITER

One of my companions in the mines, and with whom I worked a couple of weeks, lying almost side by side with him as we dug coal in the same room, was a noted counterfeiter. He had plied his trade for many years successfully. Whisky finally sent him to the penitentiary. If professional criminals would only let strong drink alone not half so many of them would get caught. They get drunk, and in this condition expose themselves. We don't mean to use this as an argument against the prohibitory law! It is, perhaps, proper for them to drink. This counterfeiter makes his dies out of plaster paris. They are very simple and easy of construction. He explained to me the manner in which they were made. I would give his method of making these dies were it not for the fact that some smart boy getting hold of this book and learning the method would undertake the business, and as a result his good old mother would be going to the penitentiary to visit him. When this counterfeiter would run short of funds he would purchase the necessary material, go into the woods on a dark night, and in a very short time would have plenty of bogus money. He taught the trade to his brother and to some bosom friends, and it was not long until they had a regular organized gang. Getting drunk one day one of them displayed too many shining new pieces of money. He was "spotted." A detective was put on his track. He was traced to the headquarters of the gang, and in a few hours thereafter the entire posse were locked up in jail on a charge of counterfeiting and passing "bogus money." They now formed plans for their escape from jail. They adopted the plan of seizing the jailor, as he brought in supper, thrusting him into a cell, locking him in, and then making good

their escape. They made the attempt. The jailor was locked in the cell according to the programme, but so much noise was made in the struggle that the sheriff put in an appearance with a loaded revolver. The prisoners made a dash for liberty. A brother of my informant was killed; another of the gang was wounded and dragged back into his cell in the jail; the others got away. It was in the winter time. The succeeding night was extremely cold. Wandering about all night in the snow, their feet were frozen, and they were easily recaptured the next day. They had their trial, and all were sent to the penitentiary. They got eight years apiece, three for counterfeiting and five for breaking jail. In this manner was broken up one of the worst counterfeit gangs of the West. Whisky has trapped many a criminal. There are but very few that do not "indulge." In fact, I cannot now recall a single professional criminal but would take a drop if he could get it. They must have whisky to nerve them for their iniquitous business. When the crime is committed they drink again to soothe their wounded consciences.

YELLOW BACK LITERATURE

A boy was brought into the hospital one day while I was there, whose history is worth relating, as it shows the fatal effects of bad literature upon the human mind, and to what sad results it may lead. This youth had become suddenly ill in the mines, and had to be assisted from his place of work to the ward for the sick. He was very ill for several days, but began to grow convalescent. An opportunity presenting itself, I got into conversation with him, and he told me the history of his crime. He was an orphan. At the death of both his parents in the East he had come to Kansas to make his home with an uncle. This relative was very kind, and after a time adopted the boy. He had a pleasant home, and his prospects for the future were bright. How often is it the case that the sky of the future becomes overcast. This young criminal was a constant reader of the Life of Jesse James, and kindred literature, until he made up his mind to go on the "war path" and become Jesse James No. 2. With this in view, he provided himself with two large revolvers. One night, after all the household had retired, he crept stealthily into the bed-room of one of the hired men and stole seventy dollars. He goes to the barn and takes one of his uncle's horses and starts for the Indian Territory. The uncle was awakened an hour later on account of some unusual sound at the barn, and going thither discovered that one of his best horses was gone, and also that his nephew was away. He got together several of his neighbors and started in pursuit, and the next day, about noon,

the youthful thief was overtaken and surrounded. The uncle rode up to him and began to question him as to his strange conduct, when the boy drew one of his revolvers, and, pointing at his uncle, shot him dead. He was going to play Jesse James to the last. When he saw his uncle fall dead from his horse, now realizing what he had done, the bravado spirit forsook him, and he began to quake with fear. The neighbors closed in upon him and soon took his firearms from him. In due time he had his trial and was sent to the penitentiary for life.

Bad books are our worst companions. I have narrated the history of this young murderer, and now urge my boy readers to let yellow back literature alone. It wrecked the future of this youth, and what it did for one it may do for another.

A YOUTHFUL MURDERER

Willie Sells.—In the prison, this convict is called the "baby convict." When he came to the penitentiary in 1886, he was but sixteen years of age, and in appearance much younger. One of the most sickening murders committed in Kansas is charged to the account of this boy. His home is in Neosho County. His father, a prosperous farmer, lived happily with his wife and three children. Willie was the oldest of the children. Early one morning he rushed from his home and made his way to the nearest neighbor, about half a mile distant, and with his face and hands covered with blood conveyed the startling intelligence that the entire family had been murdered, and he only had escaped. Soon an excited crowd of neighbors gathered at the home of the murdered victims, and the sight that was presented has but few parallels in the fatal and fearful results of crime. The victims had been murdered while asleep. In one room lay the father and mother of the youthful murderer, on their bed of death. Their heads had been split open with an axe that lay nearby, and the blood of one mingled with that of the other. In an adjoining bed-room, covered with their own life's blood, were found the little brother and sister. They had been foully murdered with the same instrument that had caused the death of the parents. Who was the monster that had committed this terrible and atrocious act? A search of the premises disclosed the fact that robbery was not the motive. No property was missing. The survivor was questioned again and again. He said that a burly-looking tramp had effected an entrance into the house through a window during the night; that he being awake at the moment, and becoming

alarmed, hid himself, and, unperceived, beheld his father and mother, his brother and sister, thus foully murdered. A thorough and extensive search was made, but no clue could be obtained that would warrant the arrest of any one.

Finally, the surviving child was taken into custody. It was claimed that his statements of the circumstances connected with the crime varied, and in several instances were contradictory. The evidence introduced at his trial was purely circumstantial. After much deliberation and hesitancy, the jury decided on a verdict of guilty of murder in the first degree, and this child criminal was sentenced to imprisonment for life.

He conducts himself well in the prison. On account of his extreme youth he is given a great deal of liberty. It is with great reluctance that he talks about his crime, and longs for freedom.

Is this boy guilty? This question has never been satisfactorily answered in the affirmative. I am informed there was a grave doubt in the mind of the judge who tried the case and imposed the sentence as to the guilt of this alleged youthful offender. A chill of horror creeps over us as we think of the members of this family weltering in each other's blood. Should he be innocent, it would be awful for this boy to remain in the Kansas Hell for a lifetime.

A MOST REMARKABLE CASE

William Baldwin furnishes the history of one of the most remarkable cases in the criminal annals of Kansas. He was charged with the atrocious crime of murdering his own sister. William and his sister were the only children of a widowed but wealthy mother. It is claimed that the son had received his portion of the estate prior to this sad occurrence, and that by taking the life of his sister he would become the sole heir of the Baldwin estate, which was supposed to be very large. Mary, the beautiful and accomplished sister was discovered dead one morning lying upon her bed in her chamber with a chloroform bottle at her side. A panel of the outside door of the house was found removed. Immediately upon the discovery of the murder it was supposed that the house had been burglarized, and that the thief had committed the murder. Upon an examination of the premises by the proper officials it was found that nothing had been taken from the house. In looking for a motive that would prompt a person to commit such a fiendish act, and it being known that William Baldwin, the brother, would

be the sole heir in case of the death of his sister, he was at once suspected of having committed the crime. His arrest was prompt and immediate. He was bound over on preliminary examination, and in due course of time had his trial and was convicted. He was sentenced to the penitentiary for one year, at the expiration of which he was to be hung until dead. His case was taken on appeal to the Supreme Court of the State. Baldwin, in the meantime, was removed to the penitentiary. Here he was placed in the tailor shop, where he has remained since. He is a very obedient prisoner, and is highly esteemed by the prison officials. The judgment in his case upon hearing in the Supreme Court of the State was affirmed. From the Supreme Court of Kansas his case was taken by appeal to the Supreme Court of the United States; in this highest tribunal, the judgments of the lower courts were affirmed, and the fate of William Baldwin is forever sealed so far as the judiciary of the country is concerned. If he is permitted again to inhale the air of freedom, it must be through the clemency of the pardoning board and of the governor of Kansas. During one hundred and ten years of American jurisprudence, there had been only two similar cases taken to the Supreme Court of the United States. But a few days before my release I was talking with Billy Baldwin in the penitentiary, and he seemed to be very hopeful that after a time he would secure his pardon.

His wife is one of the most highly respected ladies of Atchison; is true, faithful and devoted to her husband. She has enlisted the sympathies of the entire community in her behalf, because of her youth and great bereavement. His aged mother, who has been called upon to wade through deep waters of affliction because of the great calamity that has befallen her son and daughter, will also exert great influence in getting signers to a petition for his pardon.

The question has often been asked me, because of my intimate relation with Baldwin in the penitentiary, whether I believed that he is guilty. I can answer as to my own belief. I have watched him carefully as I have the other fifty-five lifetime convicts, and I am free to say that I do not believe that William Baldwin ever committed the crime of killing his sister for the malicious desire of obtaining filthy lucre, or the estate of his sister. He does not conduct himself as scores of other criminals who have confessed their guilt. In conversation with him, while I was "in stripes," he has time and again told me, with tears rolling down his cheeks, that he was innocent of the terrible crime of which he stands accused, and that there was no brother

had greater love for his sister than he, and that he had such faith in an overruling Providence that eventually he would be exonerated from the crime; and that the real perpetrator would be made known. If he is innocent and it should ever be clearly proven, his will be one of the saddest and most mysterious events ever recorded. There is beyond doubt an unsolved mystery hanging over this remarkable case.

CHAPTER IX. FORTY-EIGHT HOURS IN HELL

One of the most interesting cases of resuscitation that ever came to my knowledge was that of George Lennox, a notorious horse-thief of Jefferson County. He was serving his second term. Sedgwick County sent him to the prison, the first time for a similar offense—stealing horses.

During the winter of 1887 and 1888, he worked in the coal mines. The place where he was laboring seemed dangerous to him. He reported the fact to the officer in charge, who made an examination, and deciding that the room was safe, ordered Lennox back to his work. The convict, obeying, had not continued his work more than an hour, when the roof fell in and completely buried him. He remained in this condition fully two hours. Missed at dinner-time, a search was instituted for the absent convict, and he was found under this heap of rubbish. Life seemed extinct. He was taken to the top, and on examination by the prison physician was pronounced dead. His remains were carried to the hospital, where he was washed and dressed preparatory for interment. His coffin was made and brought into the hospital. The chaplain had arrived to perform the last sad rites prior to burial. A couple of prisoners were ordered by the hospital steward to lift the corpse from the boards and carry it across the room and place it in the coffin. They obeyed, one at the head and the other at the feet, and were about half way across the room when the one who was at the head accidentally stumbled over a cuspidor, lost his balance, and dropped the corpse. The head of the dead man struck the floor, and to the utter surprise and astonishment of all present, a deep groan was heard. Soon the eyes opened, and other appearances of life were manifested. The physician was immediately sent for, and by the time he arrived, some thirty minutes, the dead man had called for a cup of water, and was in the act of drinking when the physician arrived. The coffin was at once removed, and later on was used to bury another convict in. His burial robes were also taken from him, and the prison garb substituted. On an examination he was found to have one of his legs broken in two places, and was otherwise bruised. He remained in the hospital some six months, and again went to work. I learned

of his peculiar experience while apparently dead, soon after, from a fellow miner. Prompted by curiosity, I longed for an acquaintance with Lennox to get his experience from his own lips. This opportunity was not offered for several months. At last it came. After being removed from the mines I was detailed to one of the prison offices to make out some annual reports. The subject of this man's return to life was being discussed one day, when he happened to pass by the office door and was pointed out to me. It was not long until I had a note in his hand, and asked him to come where I was at work. He did so, and here I got well acquainted with him, and from his own lips received his wonderful story. He is a young man, probably not over thirty years of age. He is not a hardened criminal; is possessed of a very good education, and naturally very bright.

The most wonderful part of his history was that during the time he was dead. Being a short-hand reporter I took his story from his dictation. Said he: "I had a presentiment all the morning that something terrible was going to happen. I was so uneasy on account of my feelings that I went to my mining boss, Mr. Grason, and told him how I felt, and asked him if he would not come and examine my 'coal room,' the place where I was digging coal. He came, and seemed to make a thorough examination, and ordered me back to work, saying, there was no danger, and that he thought I was going 'cranky.' I returned to my work, and had been digging away for something like an hour, when, all of a sudden, it grew very dark. Then it seemed as if a great iron door swung open, and I passed through it. The thought then came to my mind that I was dead and in another world. I could see no one, nor hear sound of any kind. From some cause unknown to myself, I started to move away from the doorway, and had traveled some distance when I came to the banks of a broad river. It was not dark, neither was it light. There was about as much light as on a bright star-lit night. I had not remained on the bank of this river very long until I could hear the sound of oars in the water, and soon a person in a boat rowed up to where I was standing. I was speechless. He looked at me for a moment, and then said that he had come for me, and told me to get into the boat and row across to the other side. I obeyed. Not a word was spoken. I longed to ask him who he was, and where I was. My tongue seemed to cling to the roof of my mouth. I could not say a word. Finally, we reached the opposite shore. I got out of the boat, and the boatman vanished out of sight. Thus left alone, I knew not what to do. Looking out before me, I saw two roads which led

through a dark valley. One of these was abroad road, and seemed to be well traveled. The other was a narrow path that led off in another direction. I instinctively followed the well beaten road. I had not gone far when it seemed to grow darker. Ever and anon, however, a light would flash up from the distance, and in this manner I was lighted on my journey. Presently I was met by a being that it is utterly impossible for me to describe. I can only give you a faint idea of his dreadful appearance. He resembled a man somewhat, but much larger than any human being I ever saw. He must have been at least ten feet high. He had great wings on his back. He was black as the coal I had been digging, and in a perfectly nude condition. He had a large spear in his hand, the handle of which must have been fully fifteen feet in length. His eyes shone like balls of fire. His teeth, white as pearl, seemed fully an inch long. His nose, if you could call it a nose, was very large, broad and flat. His hair was very coarse, heavy and long. It hung down on his massive shoulders. His voice sounded more like the growls of a lion in a menagerie than anything I can recall. It was during one of these flashes of light that I first saw him. I trembled like an aspen leaf at the sight. He had his spear raised as if to send it flying through me. I suddenly stopped. With that terrible voice I seem to hear yet, he bade me follow him; that he had been sent to guide me on my journey. I followed. What else could I do? After he had gone some distance a huge mountain appeared to rise up before us. The part facing us seemed perpendicular, just as if a mountain had been cut in two and one part had been taken away. On this perpendicular wall I could distinctly see these words, 'This is Hell.' My guide approached this perpendicular wall, and with his spear-handle gave three loud raps. A large massive door swung back and we passed in. I was then conducted on through what appeared to be a passage through this mountain. For some time we traveled in Egyptian darkness. I could hear the heavy footfalls of my guide, and thus could follow him. All along the way I could hear deep groans, as of some one dying. Further on, these groans increased, and I could distinctly hear the cry for water, water, water. Coming now to another gateway, and, passing through, I could hear, it seemed, a million voices in the distance, and the cry was for water, water. Presently another large door opened at the knock of my guide, and I found that we had passed through the mountain, and now a broad plain lay before me. At this place my guide left me to direct other lost spirits to the same destination. I remained in this open plain for a time, when a being

somewhat similar to the first one came to me; but, instead of a spear, he had a huge sword. He came to tell me of my future doom. He spoke with a voice that struck terror to my soul. 'Thou art in hell,' said he; 'for thee all hope is fled. As thou passed through the mountain on thy journey hither, thou didst hear the groans and shrieks of the lost as they called for water to cool their parched tongues. Along that passage there is a door that opens into the lake of fire. This is soon to be thy doom. Before thou art conducted to this place of torment never more to emerge—for there is no hope for those who enter there—thou shalt be permitted to remain in this open plain, where it is granted to all the lost to behold what they might have enjoyed, instead of what they must suffer.' With this I was left alone. Whether the result of the terrible fright through which I had passed I know not, but now I became stupified. A dull languor took full possession of my frame. My strength departed from me. My limbs longer refused to support my body. Overcome, I now sank down a helpless mass. Drowsiness now took control of me. Half awake, half asleep, I seemed to dream. Far above me and in the distance I saw the beautiful city of which we read in the Bible. How wonderfully beautiful were its walls of jasper. Stretching out and away in the distance I saw vast plains covered with beautiful flowers. I, too, beheld the river of life and the sea of glass. Vast multitudes of angels would pass in and out through the gates of the city, singing, oh, such beautiful songs. Among the number I saw my dear old mother, who died a few years ago of a broken heart because of my wickedness. She looked toward me, and seemed to beckon me to her but I could not move. There appeared to be a great weight upon me that held me down. Now a gentle breeze wafted the fragrance of those lovely flowers to me, and I could now, more plainly than ever, hear the sweet melody of angel voices, and I said, oh, that I could be one of them. As I was drinking from this cup of bliss it was suddenly dashed from my lips. I was aroused from my slumbers. I was brought back from happy dreamland by an inmate of my dark abode, who said to me that it was now time to enter upon my future career. He bade me follow him. Retracing my steps I again entered the dark passage way, and followed my guide for a time, when we came to a door that opened in the side of the passage, and, going along this, we finally found ourselves passing through another door, and lo! I beheld the lake of fire. Just before me I could see, as far as the eye could reach, that literal lake of fire and brimstone. Huge billows of fire would roll over each other, and great waves of fiery flame

would dash against each other and leap high in the air like the waves of the sea during a violent storm. On the crest of these waves I could see human beings rise, but soon to be carried down again to the lowest depth of this awful lake of fire. When borne on the crest, of these awful billows for a time their curses against a just God would be appalling, and their pitiful cries for water would be heartrending. This vast region of fire echoed and re-echoed with the wails of these lost spirits. Presently I turned my eyes to the door through which I had a few moments before entered, and I read these awful words: 'This is thy doom; Eternity never ends.' Shortly I began to feel the earth give way beneath my feet, and I soon found myself sinking down into the lake of fire. An indescribable thirst for water now seized upon me. And calling for water, my eyes opened in the prison hospital.

"I have never told this experience of mine before, for fear the prison officials would get hold of it, think me insane, and lock me up in the crank-house. I passed through all this, and I am as well satisfied as I am that I live, that there is a Heaven and there is a Hell, and a regular old-fashioned Hell, the kind the Bible tells about. But there is one thing certain, I am never going to that place any more. As soon as I opened my eyes in the hospital, and I found that I was alive and on earth once more, I immediately gave my heart to God, and I am going to live and die a Christian. While the terrible sights of Hell can never be banished from my memory, neither can the beautiful things of Heaven I saw. I am going to meet my dear old mother after awhile. To be permitted to sit down on the banks of that beautiful river, to wander with those angels across the plains, through the vales and over the hills carpeted with fragrant flowers, the beauty of which far surpasses anything that mortal can imagine; to listen to the songs of the saved—all this will more than compensate me for living the life of a Christian here on earth, even if I have to forego many sensual pleasures in which I indulged before coming to this prison. I have abandoned my companions in crime, and am going to associate with good people when I am once more a free man."

After he got through with this wonderful story I asked him if he was going to tell others of his experience when he got out. His reply was that people would not believe him, and he would keep it to himself. Should this little book fall into his hands, and he should read of his experience while in Hell for forty-eight hours, it will no doubt surprise him. We give the

account to the reader just as we received it from Lennox. We do not pretend to solve the mystery.

CHAPTER X. STOLEN HORSES

Justice should be meted out to many who, though guilty, are shrewd enough to evade it. From one of the most notorious horse-thieves in the Kansas penitentiary I learned of the manner in which stolen horses were disposed of.

This convict's name is John Watkins. He served a term of three years in the Missouri penitentiary, and is now serving out a ten years' sentence in the Kansas State's prison. He is the chief convict steward in the hospital, and an able assistant of the prison physician, by whom his services are highly appreciated. This prisoner has immediate care of all the sick. His heart is tender as that of a woman. To listen to this man, as he sat with tearful eye at the bedside of the dying prisoner, and spoke words of cheer to him, one would scarcely believe him to be the most daring and one of the shrewdest horse-thieves that ever visited our State. In conversation with him one night as I lay on my sick bed in the hospital, he gave me an outline of his life's history that reads much like a romance.

I said to him, "John, tell me how many horses you have stolen during the time you have been engaged in that line of business?"

His reply was, that if he had stolen one more he would have been successful in having stolen an even two hundred.

"What did you do with them after you had stolen them?"

He told me his headquarters were in Kansas City; that he would go up in the neighborhood of Omaha and Lincoln and get his horses, and tie them in the woods until he had picked up a number of them, and then he would make his way to the south. Horses stolen in Nebraska he would run south to sell. Those stolen in Missouri and Kansas he would take to the north. He told me that in Omaha, St. Joseph, Atchison, Leavenworth and Kansas City there were dealers, usually keepers of livery stables, who would purchase these stolen horses. He gave me the names of a number of these men, some of whom I know personally. Little would I ever have suspected that these men were engaged in such a wicked traffic as knowingly to deal in stolen property. "When I had a number of horses," he continued, "and wished to

dispose of them in St. Joseph, for instance, I would ride into the suburbs of the city and send a note to the man who usually purchased my stock. I would never be seen about his barn. After night he would make his way to where I was and purchase my horses, paying me about one-half what they would really bring in the general market. I would get about fifty dollars for an average horse. After purchasing my stolen horses he would not take them to his livery barn, but to a private stable, usually at his residence. When he would pay over the money for this stolen property he would make out a bill of sale for each one, and would step into a store or grocery, and in the presence of some business man he would say to me, we will sign the bill of sale for that horse I bought of you, and have this gentleman to witness the transaction. I gave you fifty dollars at the barn, and now here is fifty dollars more, which makes the hundred, the sum I was to pay for the animal." I would take the money, sign the bill of sale, which would be witnessed by the business man in whose presence the trade was consummated. We would then go to another place of business and sign a bill of sale for another horse, and have that witnessed by another business man, and would continue this until all the horses I had sold were paid for. In this manner he would shift all responsibility of crime upon me. Securing my money I would rest for a time until 'I went broke,' and then I would make another trip. The horse merchant would sometimes keep his horses until he had picked up a car load, and then he would ship them out of the country to Chicago, St. Louis or some other horse market. Sometimes the horse buyer would run stolen property out into the country and exchange it for other property in which he would have a good title and which he could take to his livery barn and feel safe with it there.

"What did you do with your money, John?" I inquired.

To this question he answered that in Kansas City he had a suite of rooms fitted up in elegant style, and kept a mistress. Upon this woman he squandered all his money, obtained honestly and dishonestly. In addition to his horse-thieving raids he had several other sources of criminal revenue. One of these sources he described as follows: "I kept a horse and wagon, the wheels of which were covered with india rubber. The feet of the horse were also encased in the same material. I could move about the streets of the city in the late hours of the night without making any disturbance, and would pick up anything I could lay my hands on that I could convert into money. I have carried away many a stove and broken it up and sold it for

old iron. I would also make my way out into the country and pillage. Often I would enter small towns and load up my noiseless wagon with stolen goods, which I would take out of the stores. All of this money I would foolishly spend on the woman I loved."

"How did you happen to get caught?"

"One day on the streets of Kansas City I accidentally met an ex-convict whom I knew while in Jefferson City penitentiary. He was penniless and somewhat shabby. He suspected me of crooked work, and wanted to go with me on a 'horse raid.' At first I refused to take him with me, as it has always been my rule to go alone when in the crooked business. He persisted and urged me to let him go along. At last I yielded to his appeals, and we started from Kansas City. I have never been back since. My 'pal' was caught on this trip and offered to turn State's evidence if he could regain his liberty. He was allowed to do this. I was tried and got a ten years' sentence. He went free."

"What became of the woman?" I asked.

"When in jail at Leavenworth and in need of money to pay my lawyer, I wrote her a letter informing her of my trouble, and begged her to send me some money. She forgot to answer that letter, and I have never seen or heard from her since that time."

"I suppose when your time is up you will hunt her up and fit up another suite of rooms, won't you?"

"Never," said he. "When I get out I am going to lead an honest life and take care of my money. It does not pay to get money by crookedness. Such money never does one any good."

Having imparted this information he bade me good night and went over to another part of the ward, where he took his place beside the cot of a dying convict.

CHAPTER XI. CANDIDATE FOR THE STATE SENATE

The author of this book has been guilty of a great many bad breaks during the course of his earthly pilgrimage up to the present date. Making the race for State senator from the Atchison district while an inmate of the Kansas penitentiary, actually an occupant of a felon's cell, and robed in the livery of disgrace, probably eclipsed anything that maybe charged to my account in the past.

One Sunday afternoon, after the usual exercises of the day were over, I was sitting in my little 4x7 of stone. The outside world was in convulsions over the presidential campaign. There were no convulsions, however, where I was. It was painfully quiet. Everywhere, all over the broad land, except behind prison walls, politics was the all-absorbing topic. As I sat there in my solitude the question came to my mind as to what part of the great political play I would be engaged in were I a free man. Some months prior to this a petition signed by 5,000 people had been forwarded to President Cleveland for my pardon. Had I secured my liberty it was my intention to make the race for State senator in my district for vindication. Mr. Cleveland interfered with my plan by refusing my pardon.

Thinking over the matter in my cell that Sunday afternoon, I determined that while the President had the power of keeping me in prison he should not keep me from making the race for the position I coveted. Immediate action followed my decision. Within thirty minutes I had written a letter for publication, stating my intention of becoming an independent candidate. But how was I to get this letter out of the prison and into the newspapers of my district.

It is expected of the convict that during Sunday afternoon he will sit quietly in his cell and meditate about his past misdeeds. I would be dishonest if I did not state that my thoughts were now more taken up with the probable outcome of the course I had adopted than of lamenting over my past shortcomings. I reasoned that I was not only pursuing an original, but a safe course. Original, in that no one, so far as my knowledge

extended, had ever made the race for office while a convict; safe, in that I had nothing to lose and everything to gain. I will frankly confess that when the thought, suppose I should not get more than a dozen votes, would rush into my mind, I would feel as if I had better not be so fresh while in limbo. Several times during the afternoon and evening I took up the piece of paper, on which was written my announcement, to tear it into shreds, and as often I would lay it down. I viewed the subject from almost every conceivable standpoint. I reasoned as follows: Prior to this I had decided to write a book on my penitentiary career, as well as to deliver a lecture at various points in the State on the same subject. To be successful in these enterprises I must be advertised. And I knew that should I announce myself as a candidate for such an important office while in the penitentiary I would get a good ventilation. In this I was not mistaken. When the announcement appeared in the Leavenworth "Times" it was quickly copied and commented upon by the newspapers all over the country. Some of these newspapers in their comments stated that I had more "cheek" than should be allotted to ordinary mortals. Some said "he is a nervy cuss." Others said his back isn't broken. Now and then one could be found that predicted my election. So the matter was discussed, pro and con, for several weeks, not only by the newspapers of Kansas, but whole columns would appear in the St. Louis, Chicago and Denver papers, as well as those of other cities. I was advertised. It would have cost me thousands of dollars to pay for the ventilation I received just for making that little simple announcement, had I been forced to pay the regular rates of advertising.

But to return. It was at a late hour of the night when I closed my eyes in slumber. Before doing so I had made the final decision; I had crossed the Rubicon; I had looked the ground over, and had my plans well matured. The next morning, after the day's work had commenced, and the warden had come down to his office, I asked permission of my officer to see Captain Smith. The officer wanted to know what my business was with the warden. My reply was, "Official and strictly private." My request was granted. I was soon standing in the presence of the big-hearted Warden Smith, and being asked as to what I wanted, I said, "Captain, I thought I would come in and get your opinion as to whether I was crazy or not, and if you think I am not beside myself I would like to make a statement to you and ask your advice." A few days before this I had had several interviews with him as to my pardon, and other business matters, and I suppose he thought he was going

to get something more along the same line. "Go ahead, John," he said, "and let me know what it is." I then told him of my intentions and plans. He made no reply until I had gone over the whole subject. Then he said. "You are certainly on the safe side, for you can lose nothing. I always thought," continued he, "that it was practical to engage in any enterprise where all was gain and nothing to lose. And, furthermore, knowing your standing at home, it would not surprise me very much if you would receive more votes than your competitors."

This was encouraging. I then asked permission to write letters to a number of my friends, and also to receive letters from them. He informed me he could not do this, as it would be a violation of the rules of the prison, but if any of my friends should come down I could send out anything by them I wished. I then wired a personal friend, A. S. Hall, Esq., of Atchison, who called at the prison, to whom I gave my letter of announcement, and several letters I had written to political friends.

The news spread rapidly, and in a few days I was squarely before the people as an independent candidate. Shortly after this announcement I wrote an article for the papers, stating my reasons for making the senatorial race. When writing this communication I forgot I was a prisoner, and said some things that reflected seriously upon some of the warden's personal friends. Here, I made a mistake. The warden, on reading this article, became enraged, and took away my writing material. At this juncture the senatorial outlook was rather discouraging. My friends championed my cause. Being an independent candidate, and my name not printed on any ticket, I received no accidental votes. An elector voting for me had to erase the name of my competitor and insert mine. There were four candidates in the field. While I was not elected, I was far from coming in last in the race. I received twice as many votes as one of my competitors. He is one of the best men in the senatorial district, one of the old settlers, and a gentleman highly esteemed. To receive twice as many votes as this man was highly complimentary to me, I certainly felt flattered. When the vote was made known I received an official copy of the returns, and forwarded it to President Cleveland. My term was then almost ended, and I felt confident that because of the splendid vote I had received, and consequent endorsement of the people who were personally acquainted with me, Mr. Cleveland would certainly grant a pardon. He did not so much as answer my communication.

No one can imagine the anxiety I felt during that campaign. Had I received but a small vote it would have required more nerve than I possess to have induced me to return to my old home. But when the vote was counted, and I received the returns, I must write it down as one of the happiest hours of my life. I had many true friends, and they demonstrated that fact by voting for me. Although in the garb of a felon, was not the vote I received a grand vindication? Any person of sense must answer in the affirmative.

Looking over the past, I can now see that I made no mistake in carrying into effect the scheme to which my mind gave birth on that Sunday afternoon as I sat in my little-cell.

I will close this chapter by tendering my friends who voted and worked for me at the time when I so much stood in need of their aid, my heartfelt gratitude.

CHAPTER XII. A DARK HOUR

It was a bright Sabbath morning. I had been detailed to assist the prison choir in their preparation for the religious services of the day. While engaged in this duty, the deputy warden sent for me. Meeting this official, he said to me, "John, I have sad news for you. Governor Martin has just telephoned from Atchison that your wife is dead, and that it was his wish to have you sent home at once." This was a great surprise to me. I had heard from my wife only two days before this. At that time she was quite sick, but was thought to be improving. With a heart filled with sadness I now prepared for my journey home. The warden was absent, and the deputy warden said, "There was no precedent for permitting a prisoner to go home on a visit, as such a thing had never occurred before in the history of the State, but," continued he, "if you will give me your word that you will return to the prison I will let you go." I told him to set the time for my return and I would be back. Mr. Morgan, the turnkey of the prison, was my guard. My journey from the prison was the saddest of my life. It was a bright May morning. Everything around seemed joyful and happy, but to me the world was gloomy. I imagined my wife lying at home a corpse, surrounded by my weeping, motherless little ones. She had passed away without my being at her bedside to go with her to the brink of the dark river. Mr. Morgan, my attendant, had lost his mother but a short time before this, and he could sympathize with me in a manner that aided me in bearing my burdens.

After riding for a couple of hours we arrived at Atchison. The train on reaching the city passes on some two blocks beyond the depot; then backs down. As I thus passed by the depot I saw numerous friends who had heard of my coming, and were there waiting to welcome me to my home. They saluted me as I sat in the car at the window and passed on by the depot. I thought they exhibited too much joy in receiving a friend who was coming back to see his dead wife. I wondered at it. When the train stopped to back down to the depot, I got off and took the nearest cut to my residence. Walking some four blocks I reached my home. When nearing the gate, one of my little daughters came bounding across the street, full of joy and

gladness, welcoming me home. I thought she acted rather strange for her mother to be lying in the house a corpse. Without saying anything I stepped to the door; it was standing ajar. Looking in, I saw my wife lying in the adjoining room—not dead! Thank God! It seemed as if I had stepped into another world. My wife was very sick, but still conscious. Oh! what joy I felt at once more being able to see my wife and to talk with her. All the way from the prison to the door of my residence I was laboring under a false impression. I drank the cup to its very dregs. I could have suffered no more on that journey home if she had been dead. In fact I supposed she was. Governor Martin had made a mistake in transmitting the message, or had been wrongly informed.

I do not know how it came that I was permitted to return home. I was a United States' prisoner. As such, Governor Martin had no control over me. No one had authority to send me home on such a furlough except President Cleveland. But I care nothing about this. I did not stop to inquire about the authority; when the prison doors came open I left for home. I was furnished a citizen's suit of clothes. I remained at home for nearly a week. Many friends came to see me. This to me was one of the best weeks of my life.

A little occurrence took place, during this short stay at home, which I will mention here. I have a legal friend at Atchison by the name of Hon. D. C. Arnold. This man, when tested, proves himself true to those who have gained his good will. He conceived the idea that sending me out of the penitentiary, IN CITIZEN'S CLOTHING, was without WARRANT IN LAW OR PRECEDENT IN FACT, and that, by releasing me in that way, they had lost control of me. Unknown to me he had prepared an application in "habeas corpus." The judge of the District Court, Hon. W. D. Gilbert, who was on the bench at the time, was a personal friend of his and mine also, as I had something to do in his election, and had the application been presented to him, the judge would have inclined to turn me loose, and I would have been a free man. When Mr. Arnold informed me as to what he was doing, I told him that I had given my word of honor that I would return to the prison, and that I would keep it.

At the expiration of a week I returned to my prison cell. A petition, signed by nearly five thousand people, had been forwarded to President Cleveland for my pardon. I had some hopes of securing relief. I bade my wife good-by. I thought sure I would be sent home in a few days. My wife

hopefully entertained the same opinion. We were both deceived. When I reached the prison, the deputy warden, Mr. Higgins, when he was informed by the officer, Mr. Morgan, who attended me home, how I refused my chances of liberty by means of the proceedings in "habeas corpus," contemplated by my friends, choosing imprisonment rather than breaking my word, called me into his office, and said that there was not one man in ten placed in my circumstances that would have done as I did. He then said to me: "Reynolds, I will see that you have no more hard work to do while you are in the penitentiary; I would give you your liberty if I could, but that is beyond my power. I will make it as agreeable for you as possible in the prison." He got another man to take my place in the mines, and I was given an easy task from that on. I was detailed to make out reports for the prison officials, and was kept busy, and was, as I was informed, a very valuable man in that capacity. This kind of work was in keeping with my labors when on the outside, and was not hard on me like digging coal. I was given the liberty of the prison; was allowed to converse with the prisoners, and because of these favors shown me, I was able to secure the material for this book.

The month following my return to the prison was the darkest, the most desolate, and the most sorrowful portion of my earthly pilgrimage yet experienced. My wife was at home dying! I was behind the prison walls! During that month I was entirely unfit for any kind of work. The prison officials, knowing my sorrows, took pity on me and did not insist upon my performing any kind of labor. I was left alone with my grief. None but God and the angels knew what I suffered. During the day I could think of nothing but my dying wife; in the night-time, when the angel Sleep closes the eyelids down to rest, none came to me; in my dreams the pale face of my dear one at home in the agonies of death was before me. I would but drop sometimes into a dull slumber when I fancied that I could hear her calling for me, and thus aroused, it seemed to me that I must burst the prison bars and go to her. Knowing how much deeper and stronger, purer and sweeter the affections and sympathies of woman are than those of man, what must my poor, dead wife have borne! For thirty days and nights I endured these torments. At last the hour came when her sufferings ceased. Reader, doubtless you have lost a loved one. If so, you were permitted to go down to the very brink of the River of Death; you were permitted to sit at the bedside and administer words of comfort and cheer. Not so with me. My

loved one passed away, her husband kept from her side by prison bolts and bars. And, reader, when you buried your loved one, kind friends condoled with you, and in some degree assuaged your grief. Not so with me. When the news came that my wife was dead I sat down in my solitary cell and shed my tears alone. The cup that was placed to my lips was indeed a bitter one, and I drank to the dregs. My wife was one of earth's purest and best. We lived together as husband and wife the fifth of a century. During those twenty years of married life my wife never uttered a cross word to her husband. What greater eulogy could be pronounced! In the sunshine, and as certainly amid the storms of life, she was constant and true. Because of her goodness of heart my home was cloudless. Many times during life have the storms and waves swept against my trembling barque, but in that little harbor called home no storms ever came. Oh, how much a man loses when a good wife dies! So great was my distress that, had it not been for the strength imparted by a pitying God, I never could have passed through that long night of suffering. Gone, never to return.

When my prison days were over, I returned to my old home in Atchison, but how changed it was. My wife in her grave; my motherless children among strangers; my home desolate. As I pen these lines, surrounded by the fogs and mists of time, the question comes to me ever and anon, when the hour shall come for me to close my eyes to the scenes of earth, will I be permitted to greet my sainted wife in the beautiful city above? Yes. I have the faith that the loving Galilean—the man of sorrows, who was acquainted with grief—will in that hour open the gates of pearl, and let me in. Until that happy hour—until we meet in the land where none of life's storms ever reach, my darling wife, farewell!

CHAPTER XIII. FREEDOM

To all things earthly there comes an end. Sixteen long, dreary months of imprisonment finally passed away. The dark clouds of sadness and gloom that for so long hung above me now parted, and folding themselves together rolled away in the distance. The large iron doors swung upon their hinges, and once more I breathed the air of freedom. Drowsy Nature was just being aroused from her wintry slumber by the gentle touch of Spring, as I began life anew. On that, to me, eventful morning the sky appeared brighter than I had ever beheld it before. O liberty! No one can ever appreciate thy blessings save him upon whose limbs have pressed the cruel fetters of slavery. The sunlight of freedom falls with its greatest refulgence upon him who has been surrounded for months and years by the baleful mists and darkness of abject bondage. The air of liberty comes doubly surcharged with the fragrance of the rarest flowers to him who has inhaled the fetid breath of serfdom. Grateful to God that my life had been spared; retaining all the ambition of former years; possessed of my manhood; conscious of no guilt, I felt that, under the guiding hand of Providence, there was for me a bright future. With a determination to succeed, that can never be satisfied short of success, I returned to my home. I concluded that instead of going to some distant place, among strangers, it was best for me to return to the locality where all knew of my misfortunes and the true causes that led to them. On my arrival at the depot I was met by a multitude of friends. By the reception that was given me no one, ignorant of the facts, would have for a moment imagined that I had but a few hours before vacated the cell of a criminal. I pen these lines three months from the day when I began life anew, and during that time I have met with no one so base as to "snub" a man, who, having met with misfortune, is honestly endeavoring to regain what he lost.

Is there any hope for the ex-convict? Is it possible for him to be clothed in the garments of respectability who once has been attired in the habiliments of disgrace? Can he ever be a man among men who has for a time been numbered with the debased of earth? To these questions, with all the powers of my being, I answer, YES! I do not know how the outlook

may appear to others who have met a similar misfortune; but as for myself I can truthfully say I was never more hopeful in my life. There may be storms in the future, obstacles to meet and overcome, but self reliant, and trusting in Him who observes the struggles even of the worm, I hope to soon reach my proper place among men, and in the end reap the golden harvest of success. The world is full of kind-hearted people who are ready to help those who, though unfortunate, are willing to help themselves. Scores of men annually go out from the "Kansas Hell," having paid the penalties of their crimes, who are not so highly favored as myself, and whose struggles will have to be greater than mine if they ever secure a foothold of respectability in life. In behalf of these in their efforts to become better men I appeal to the great, loving heart of the true Kansan. HELP THE FALLEN IN HIS STRUGGLES TO RISE AGAIN.

Since my return home, several times have I visited the grave of my wife, and often on these occasions would the hot blood go surging through my veins, and my baser nature would demand that I avenge the death of her who was so heartlessly sent to an untimely grave. A better judgment has prevailed, and as I drop the tear of affection upon the grave of her who is the mother of my children, I leave the wrongs of the past in the hands of an avenging God. May there fall upon those who were so kind to my sorrowing family and myself while we were passing through the deep waters, the radiant smiles of Him who says, "Inasmuch as ye have done it unto one of the least of these, ye have done it unto me."

A MISSOURI HELL

CHAPTER XIV. THE CONVICT'S HOME

"Jefferson City is the next station," called out the train man as the Missouri Pacific rolled into the capital of the great commonwealth of Missouri. It was two o'clock in the morning. From an easy reclining chair, to an omnibus, and to a cozy room in the Madison House, was the work of but a few moments. It being rather an unseasonable hour to begin the investigation of a large penal institution, I made a brief journey to the land of dreams, and there remained until a noisy porter knocked at my bed-room door, and shouted, "Nine o'clock, last call for breakfast, old man; if you want any thing to eat you had better get a move on you." Being of the opinion this was rather a cheerful morning salutation, I arose, dressed, and soon felt better because of a good breakfast. I am now ready for my work—an investigation of the Missouri penitentiary. Before leaving my home in Atchison, Kansas, I procured a letter of introduction from Hon. B. P. Waggener, mayor of that city, to Governor Francis of Missouri. I found my way to the capitol, and to the office of the governor. After a brief delay I was shown into the private apartment of the obliging executive, where I presented my letter, stated the object of my visit, and received a letter to the warden of the prison, containing a request that the bearer be shown every thing there was to be seen in and about the penitentiary.

From the capitol to the prison is a walk of but a few minutes. On my way there I met a one-legged ex-convict who was just leaving the institution. His pale face, shoddy suit of clothes and light-colored felt hat all spoke but too plainly of the fact that he was very recently "let loose." Entering into conversation with him, I found that he had a few moments before completed a term of five years at hard labor. From him I gathered a great deal of important information as to the treatment of the prisoners, of which he had been an eye-witness for five years. He also gave me his own history. In a saloon brawl, he became involved in a fight with a drunken comrade, half-crazed with drink. Pistols were drawn, and shots were exchanged. He received a bullet in his thigh, that caused the amputation of his limb. His antagonist was killed. On a trial for murder he received a sentence for manslaughter. Said he, "Whisky sent me to prison. Had I not been drunk I

would never have taken the life of the man whom I shot. He had been, for years, a good friend of mine. I will never take another drink as long as I live. It has been my ruin." In the conversation he informed me that he had left behind him, when sent to prison, a wife and three children. During his confinement they had to depend for the most part on their relatives and public charity for support. On account of their poverty they had not been able to visit him at any time during his imprisonment. They had continued to love him, notwithstanding his misfortune; had been true to him during his days of bondage; and he was now anxious to reach his home to meet them. How true it is that the blow which falls upon the culprit, and which justice intends for him alone, often falls with equal force and effect upon wife, child or other helpless and dependent relative! I asked him how he felt on recovering his liberty after being in prison for five years.

"Oh!" said he, "this is the happiest day of my life thus far; I never knew the blessings of liberty as I do now. I never saw the sun shine so brightly before. Everything about me seems so beautiful. From this time I will appreciate more than ever I have done, this beautiful world. It almost pays a man to be penned up for a time to enable him to appreciate what there is in the world for him. Behind the walls, however, banished from the presence of loved ones, it is a veritable hell. I cannot find a term that expresses my views of a prison life that is more suitable than that word—hell. Those long, dreary days of monotonous work—the same thing must be gone over, day after day; the food we eat, the treatment to which we are subjected, our loneliness and solitude, all combined, make prison life almost unbearable." "Do you know," I asked, "of any prisoners who are so satisfied with their condition as to be willing to remain in the penitentiary, did they have an opportunity of obtaining their liberty?" "There is not a person in that institution," he replied, "who would not hail with joy his release. Some of them are physical wrecks, and would have to go to the almshouse to be taken care of in case they should obtain their freedom, yet they would prefer any place to that of a prison cell, deprived of their freedom." After spending more than an hour in conversation with this ex-convict, and bidding him "good bye," I proceeded on my journey to the prison. As I walked along thinking of the poor ex-convict I had just passed, my imagination pictured for him a rather gloomy future. He is a cripple, and has a large family to support; he must bear with him along life's journey the heavy load of disgrace that whisky placed upon him. An ex-convict! Who

will give him work to do? Who will lend him a helping hand in his struggle to regain a foothold in the outside world? After a few vain efforts to regain what he has lost, will he not yield to despair, as thousands have done before him, and, becoming a pitiless wreck, pass on down the current of crime until he drifts over Time's last precipice and drops into the arms of Death? To the average ex-convict there is but little hope for success in this life.

The painful history of a majority of them is, after they have fallen into the meshes of a criminal life, they never have the moral power to extricate themselves. My musings are now at an end, for I have just reached the entrance to the penitentiary—"A Missouri Hell." A prison official on duty at the entrance conducted me into the presence of the warden, Hon. John L. Morrison. This genial gentleman is a resident of Howard County, where he was born and spent the greater portion of his life. He is sixty years of age, and by occupation a farmer. For four years he was sheriff of his county. He received his appointment as warden less than one year ago. He is without any prison experience. The reason, no doubt, for his being appointed warden of so great a penal institution is, that outside from his being a man of unimpeachable integrity, he exerts no little political influence in that portion of the State where he resides. We have no cause for criticising the governor's selection. Perhaps he is one of the very best men that could have been procured for the place. At any rate, he is credited with starting out well. But it is not every honest, upright man that makes a good warden. It requires a man with a special fitness to be a success in handling prisoners and making a penal institution beneficial to all interested. After Warden Morrison has been given a fair trial, and it becomes evident that he is a successful prison man, he should be retained many years in that responsible position. For the longer he is kept at the head of the institution the more valuable will his services be to the State. I remained several days, and through the kindness of the warden and other prison officials, saw everything about the institution that was noteworthy.

The Missouri penitentiary is located in the southern suburbs of Jefferson City. Its entrance is from the north. It covers an area of seventeen acres. This tract of ground is surrounded by a stone wall twenty feet high and four feet thick. The prison enclosure is rectangular in form. At each of the four corners, and at stated intervals, towers arise eight feet, which are occupied by officers on duty. Occupying this elevated position, these officers can readily observe all that occurs within the prison walls, outside the buildings.

At stated times the officers emerge from the towers and walk along on top of the wall to see if anything unusual is taking place about the prison. Loose stones are piled on top of portions of the wall that surrounds the prison, to prevent the convicts from securing a fastening for ladder hooks, should they attempt to escape. A portion of this wall was erected fifty-four years ago, the prison having been established in 1836. Could these towering stones speak, what scenes of misery and wretchedness they might describe! O, ye rocks, that make up this barrier between freedom and the worst form of human slavery, as you have been occupying your silent position for the past half hundred years, had your ears been unstopped, what countless groans of despair would you have heard? Could your eyes have opened, when first you took your place in that prison wall fifty years ago, how many indescribable scenes of anguish would you have witnessed? A heavy iron door swings upon its creaking hinges. Bolts fly back into their sockets. I step into a revolving iron cage, which, manipulated by a guard, turns half way round on its axis, and I emerge from this into the prison campus the space surrounded by the walls. What wonderful scenes now are discovered! Many of them, indeed, are heartrending.

I will describe what I saw and make mention of what I heard. There are four large buildings of brick and stone; honeycombed with cells—the homes of the prisoners. The cells, in ONE of these buildings, are large and commodious, and contain four criminals. In dimension they are nine feet wide and thirteen feet long. The remainder of the cells are small and contain but one man in a cell. The large cells are objectionable, for the reason that the men, being locked up together in such small rooms, get to talking, and often quarrels and fights result. A number of convicts have been almost murdered in these larger cells, where there were more than one occupant. Again, if there be three in a cell who desire to have the fourth one removed, they combine against him and render his existence while in the cell unbearable. They abuse him constantly. If he reports them to the officer the three stoutly deny all accusations, often bringing upon the innocent one punishment which should have been meted out to the three guilty ones.

It requires but little stretch of the imagination to enable one to see how miserable a prisoner may be rendered in one of these cells when three occupants of the same cell combine against him. The large cells are a source of great annoyance to prison officials, and are now, after trial, universally condemned. The small cells are about four feet wide, seven feet long, and

seven feet high. The doors are very low, and the prisoner has to stoop as he enters. The low door gives to the cell a more gloomy appearance than it would possess if the entrance was higher. On going into one of these cells one has the same feeling as takes hold of him when he crawls into a low, dark hole in the ground. The cells are constructed of stone, with wooden floors. The cells of the Kansas and other penitentiaries are higher and better ventilated. The furniture of the cell consists of an iron rack, on which is placed a straw bed with sufficient covering to keep the convict warm. There are also a bucket, wash-basin and towel. The prisoner washes himself in the cell. He also has a chair to sit on and a Holy Bible to read. This is about all the furniture to be found in the cells. Occasionally a carpet covers the floor, but the prisoner furnishes this out of his own means. If he has no means he has no carpet. I was much surprised to learn that there was no way provided for the convicts to take a plunge bath, and that many of them became very filthy because of their not being compelled to bathe at stated times. Other penitentiaries are supplied with bath-houses, and once each week the inmates are required to take a bath. This certainly is conducive to good health. The cell-houses are lighted by electric lights, and each cell is provided with a lamp. Thus the prisoner has an opportunity of reading during the evenings, which is a great blessing, and should be highly appreciated.

The prison is supplied with a large library of choice books to which the inmates have access. They also are allowed to read daily newspapers, if they have money with which to purchase them. The managing officials of the Kansas penitentiary are possessed of a very foolish notion in regard to the reading of daily newspapers. They will not under any circumstances allow a prisoner to take his home paper, or have access to any political daily. They claim that it excites the prisoner and makes his imprisonment more difficult to bear when he knows what is going on in the outside world. It seems that this custom smacks of barbarism, and the prison directors of the Kansas prison should discard it at once. Imagine the condition of a prisoner who has been in confinement for ten years, having no access to the daily or weekly newspapers. He would be an ignoramus of the worst type. Our penal institutions should try and improve their prisoners, instead of rendering them more ignorant and debased. We are glad to note that the Missouri penitentiary is in advance of the Kansas prison in this respect. If the prisoner can take a little pleasure in reading, daily or weekly, what takes

place at his own home, why not give him the privilege, since it is evident that such a permission will not be detrimental to prison discipline? There are school books to be found in the prison library, and the prisoners, if they desire, can get these books and study them. A great many do improve these opportunities, and a number have made great advancement in their studies. They are also permitted to have writing materials in their cells, a privilege which is considered very dangerous, and which but few similar institutions grant. Many of the convicts who could not read or write on entering the prison make considerable progress in these studies.

The Missouri prison does not go far enough in matters of education. It should be provided with a school. In this matter the Kansas and Iowa penitentiaries are far in advance. They have regular graded schools, and many convicts have acquired an education sufficient to enable them to teach when they went out again into the free world. It is to be hoped when the Legislature meets again the members will see to it that ample provision is made for a first-class school at the prison, with a corps of good teachers. The State will lose nothing by this movement.

In the Iowa prison at Ft. Madison the convicts are taught in the evening, after the work of the day is over. In the Kansas prison, instruction is given Sunday afternoon. These schools are accomplishing great good. The chief object of imprisonment should be reformation. Ignorance and reformation do not affiliate. Some will argue that if prisoners are educated and treated so humanely they will have a desire to return to the prison, in fact, make it their home. Experience teaches us that, treat a human being as a prince, and deprive him of his liberty, and the greatest burden of life is placed upon him, and he is rendered a pitiable object of abject misery. There is no punishment to which a human being can be subjected which it is possible to endure, that is more to be dreaded than confinement. Those long, weary, lonely hours that the prisoner spends in his cell are laden with the greatest of all continuous sorrows. There is but little danger of surfeiting him with kindness and advantages, so long as he is deprived of his freedom. If there is any hope for the reformation of the vicious and depraved, no better place can be found to commence that reformation than while he is an inmate of the prison. While there, he is shut out from the society of his wicked companions; he is not subjected to the same temptations in prison as on the outside. Save being deprived of his freedom, he is placed in the most favorable position for reformation that it is possible for one to occupy. If he

is not reformed here it is not likely he ever will be. It is to the highest interest of the State that these opportunities should be improved. Every effort should be put forth to make these men better while they are in prison. They are worth saving. It must not be forgotten that one of the essential features in a thorough reformation of a man, is to drive away the mists of ignorance by which he is surrounded. Other things being equal, he is the better prepared to wage successfully life's warfare, who is educated. He will be better able to resist the temptations which he will meet when his days of bondage are over. Yes, by all means, let every prison have its school. It is of the greatest importance to the prisoner, likewise to the State. As I was passing through these cell-houses, reading the names of the convicts, placed above the cell door, I came to one which contained four brothers. Five brothers were convicted of robbery and sent to the prison, but a short time ago one of them was pardoned, and the four now remain. The liberated one was on a visit to his brothers while I was at the prison. Reader, is it not a sad thought that these four young men, brothers, should spend ten of the best years of their lives in a prison? Surely the way of the transgressor is hard.

Young man, you who have as yet never been an inmate of a prison, imagine, if possible, the loneliness experienced as one spends his days, weeks, months and years behind these frowning prison walls, shut up the greatest portion of the time in these small cells that I have described in this chapter. If you do not wish a life of this nature, shun the company of wicked and vicious associates, and strive with all your power to resist the tempter in whatever form he may approach you. It is not force he employs to drag you down to the plane of the convict, but he causes the sweet song of the syren to ring in your ear, and in this manner allures you away from the right, and gently leads you down the pathway that ends in a felon cell, disgrace and death.

CHAPTER XV. THE WORK OF THE CONVICT

It is a great blessing to the convict that he can have the privilege of working. When prisons were first started in this country it was thought best to keep the prisoner in solitary confinement; have him visited daily by a spiritual teacher, place the Bible and other good books in his hands, and in this manner reform him, and send him out into the world a better man than he was on entering the prison. The great penal institution of Auburn, New York, was for a time conducted in this manner. The plan, at first thought to be a good one, had to be abandoned. The criminal could not endure solitary confinement. HE MUST HAVE WORK. Many of them became insane, while still others died for want of the open air, out-door exercise, and some diversion for the mind.

In all the penitentiaries of the country, at the present time, convicts are required to perform some kind of useful labor. That is one point of the prison question that is, doubtless, forever settled. All prison men agree that the convict must perform some kind of work. Labor to the prisoners means health of body and mind. Solitary confinement means the reverse. But what kind of labor the prisoner should perform, and what should be done with the results of his labor, is one of the most difficult questions to decide.

All the prisoners of the Missouri penitentiary are let out to contractors, with the exception of those needed to do the work about the prison. The work consists chiefly of making saddle-trees and shoes. Several large three-story buildings are used in furnishing room for the convicts while at labor. Those contractors who have been at the prison for some time have grown rich. They get their men for forty-five cents a day, on an average. They have their choice of prisoners as they come in. Those convicts designated scrubs, do the work for the State. The contractors are charged with controlling the prison. If one of the officials, in the discharge of his duty, happens to do anything displeasing to the contractors, they combine against him and have him removed. They are charged with using their combined political influence, and even money, to carry their points. We have been told by some of the leading men of the State that it was a notorious fact that the penitentiary was controlled by a political ring, a set of jobbers, and this ring

was largely influenced by the contractors. The contract system is wrong, and should not have a place in any of the penal institutions of the country.

The contractor assigns the task. The prisoner must perform that task or be punished. If an avaricious contractor, in his desire to make money, places too great a task upon the prisoner, who is there to take the prisoner's part and shield him from abuse? Fully nine-tenths of the punishments inflicted is the result of the reports and complaints of the contractors. See how unjust and how hard this contract system is upon many of the prisoners! Two convicts enter the same day. In outward appearance they are strong, healthy men. The same task is assigned them. One of them being adapted to that line of work, and skilled, performs his task with ease; while the other, equally industrious, cannot get through with his. He is reported for shirking. He states his inability to do the amount of work assigned him. The contractor or his foreman makes a different report. The assertions of the convict amount to but little, as against the statements of the rich and influential contractor. He is punished and returned to his work. A second time he tries, again fails, and is reported as before. This being the second offense the prisoner is subjected to a more severe punishment. This brutal treatment is continued until the officer, growing weary with inflicting punishment upon the poor wretch, concludes he is unable to perform the task assigned him. If this contract system is to continue in Missouri, there should be some one whose duty it is to see that the prisoner is humanely treated, and not let a brutal officer decide, who is in league with the contractors. I have it from the lips of a prison official who has been connected with the prison for thirty-six years, that the treatment some of the prisoners receive because of the avariciousness of the contractors, is simply heartrending.

After all, is not this contract system a regular jobbing business? If these men can employ the prisoners and pay forty-five cents a day for them, and make money and grow rich, why cannot the State work the convicts and save all these profits? Competent men can be secured as superintendents to carry on this work. Some will say, that it will open up too many avenues to jobbery; that the superintendents will get to stealing from the State, and in the end the State will not get as much benefit as under the present system. This seems like begging the question. If these superintendents, after a time, become thieves, treat them as thieves, and give them a term in the penitentiary. This kind of medicine will soon cure all cases of jobbery.

Again, prisoners should be assigned tasks according to their ability. All men are not alike equally skilled in the same kind of labor. All these things should be taken into account. No prisoner should be forced to carry a burden that is oppressive, in order to fill the coffers of avaricious contractors. Again, I ask that there be some humane person, whose duty it is to see that these helpless men, whose lips are sealed, are not oppressed by this damnable contract system. Let us treat these unfortunate men humanely, and never forget that, if stern justice was meted out to those who had the control of convicts, as officers, guards, or contractors, many of them would be doing service for the State, clad in a suit of stripes. The penitentiary of Missouri is self-supporting, with the exception of the officer's pay-roll. At each session of the Legislature, an appropriation of \$140,000 is made for this purpose. There are over one hundred officers on the pay-roll. The records show that it requires nearly a quarter of a million dollars annually to pay the expenses of this institution.

Crime is an expensive luxury!

During the past two years \$347,000 have been paid into the treasury as the earnings of the prison. The goods manufactured are sold chiefly in the State of Missouri. This brings convict labor, which is very cheap, into competition with the labor of the poor, but honest man on the outside. The average labor value of the convict is forty-five cents a day. How is it possible for laboring men on the outside, who have families depending upon them, to support themselves and families on an amount, that will enable business men, for whom they work, to engage in business and compete with this cheap convict labor? This is the great argument against convict labor. The convict must be given work or he will become insane. To bring this cheap labor into conflict with the toil of honest but poor men on the outside, is unjust and cruel. What to do with convict labor is one of the unsolved problems. It is a subject that will furnish ample scope for the thinking mind.

The prisoner is worked on an average of nine hours each day. He goes about his labor in silence. It is against the regulations for him to exchange a word or a knowing glance with a fellow-workman. When visitors pass through the workshops he is not permitted to lift his eyes from his work to look at them. An officer, perched upon a raised seat, who commands a view of the entire work-room, is constantly on the watch to see that no rule or

regulation is violated. The convict cannot take a drink of water, or go from one part of the room to another in the discharge of his duties without permission from the officer. The prisoner is always conscious of being watched. This feeling is no small factor in making the life of a prisoner almost unbearable. Nearly all of the inmates work in shops, and all the exercise they receive in the open air is what they get in going to and from their meals and cells. It is this sameness of work, this daily and hourly going over the same routine, this monotonous labor, this being surrounded by hundreds of busy fellow-workmen, and not permitted to exchange a word with any of them, that makes the life of a prisoner to be so much dreaded. Young man, as you read these lines, it is impossible for you to conceive the misery that accompanies this kind of a monotonous life.

In order to know all that it means, you must pass through it, as I have done. Things are entirely different with you. While you are at work on the outside of prisons, you can carry on conversation with those about you and thus pass the time in a pleasant manner. After the day's work is over, if you so desire, you can spend an hour or so with friends. Not so with the criminal. After his day's work, done in silence, is past, he is locked up in his solitary cell to spend the evening as best he can.

There is no one to watch you constantly while at your daily toil, to see that you do not violate some insignificant rule or regulation. When you desire a holiday, and wish to take a stroll out into the woods, to look upon the beautiful flowers or admire nature in all her loveliness, to inhale the pure, fresh air—which is a stranger to packed workshops—to revel in the genial sunlight, there is no one to forbid you. You are a free man.

Oh, what a wonderful difference between the laboring man who is free, and him who is forced to work, clad in the habiliments of disgrace! He who penned these lines has had to toil as a convict in the coal mines of the Kansas penitentiary, eight hundred feet below the surface, lying stretched out on his side, and he knows what he is talking about when he says, he would rather die and be laid away in his grave than to spend five years as a convict.

Young man, think of these things when you are tempted to do those things that will send you to a felon's cell. Of course, it is no intention of yours ever to become an inmate of a prison. Permit one who has had experience, to tell you that it is one of the easiest things in the world to get

into a prison, and that when once in, it is difficult to secure your liberty, until Time turns the bolt and lets you out, or in other words, until you serve out your term. May you never yield to a temptation that will make you a prisoner.

CHAPTER XVI. THE MISSOURI PRISONERS

The Missouri penitentiary contains 1,894 convicts. This is the most populous penal institution in the United States. Crime is on the increase. The number of prisoners is gradually becoming larger. Reformation is not the success that it should be. A great many of the prisoners return a second, third and many the fourth time. There is one old convict now an inmate who has served nine different terms in this prison. The highest number that was ever at any prior time in this penitentiary, was reached on Thanksgiving Day of 1889. In 1836, fifty-four years ago, when this prison was founded, there were eighteen prisoners received the first day. During the year one received a pardon, leaving at the close seventeen prisoners. At the close of 1889 there were nineteen hundred inmates. As the population of Missouri increases, she is generous enough to contribute her quota to the felon cells within her borders. The increase of from seventeen at the close of the first year to that of nineteen hundred at the close of the last year, speaks volumes. What can be done to lessen this fearful increase of crime? It is true that the population of the State has increased amazingly since 1836, but crime has increased too rapidly in proportion to the increase of population.

When a man, accused of crime, is convicted and sentenced in any of the courts of the State, a commitment is furnished the sheriff, by the clerk of the court. This document is a writing, giving the name of the prisoner, the crime of which he stands committed, and the term for which he is sentenced. It is the authority given the sheriff to convey to the penitentiary the person named therein, and to deliver him to the warden. As soon as the warden receives the commitment he assumes control of the prisoner, and retains it until his term of service expires, or is liberated by pardon or some court decree. It is curious to note how differently prisoners act on coming to the penitentiary. Some of them quake with fear and tremble as the aspen leaf. Others weep like whipped children. While others do not seem to mind it much. This latter class is chiefly made up of those who have served terms before, and have had experience. The officers try to crush the spirit of the criminal the first day he enters. The poor culprit, already quaking with fear, is spoken to in a cross and harsh manner, as if he was going to be struck

over the head with a club the next moment. He is locked up in the reception cell, a low, dark dungeon. To use the expressive language of the prison, he is left in this dungeon to "soak" for an indefinite time, often for a day and a night. In this dreaded spot, in his loneliness and shame he has an opportunity for meditation. I don't suppose there ever was a person who, in this reception cell for the first time, did not heartily regret the commission of his crime. Here he thinks of his past life. The days of his innocent childhood come flitting before him. The faces of loved ones, many of whom now dead, pass in review. It is here he thinks of his loving mother, of his kind old father, of his weeping sisters and sympathizing brothers.

He travels, time and again, the road of his past life. In his reveries of solitude he sits once more in the old school-house of his boyhood days. It comes to him, now with greater force than ever before, what he might have been, had he taken a different course, Alas! it is too late. He is forever disgraced. There is but little hope for him now in the future. Reader, behold this unfortunate youth as he sits in his lonely dungeon, his first day in the penitentiary. On a low chair, his elbows resting on his knees, his face buried in his hands, he sits and tries to imagine what is in store for him. He endeavors to peer into the future, and all is gloom. That sweet angel we call Hope, has spread her wings, taken her flight and left him comfortless. The cloud of despair, black as the Egyptian midnight, settles down upon him. He wishes that he was dead. I can never forget my first day in a felon's cell. Of all my eventful life, into which many dark days have crowded themselves, my first day in prison was the darkest. After the "soaking season" is over, an officer advances to the dungeon, throws back the bolts, pulls open the door, and, in a harsh manner, commands the broken-hearted culprit to follow. He is conducted to an apartment, takes a bath, and dons the suit of stripes. Ye angels! did you ever behold such a sight? Is it not a travesty on every thing that is good to dress a human being in such a suit of clothes. A striped coat, striped pantaloon, striped shirt, striped cap, in fine everything he wears is striped. There is nothing in this world so humiliates a person as being compelled to wear these stripes. No language can describe the feelings of horror that took hold upon me the first time I saw myself arrayed in these emblems of disgrace. I passed through all the fiery ordeal of trial, sentence, reception cell, undaunted, but when I made my first toilet in the penitentiary, I must admit, I was "knocked out." Then I felt keenly the sting of disgrace. The prisoner is next introduced to a convict barber, who

shaves him and "clips" his hair. By the time the barber gets through with his part of the programme, the prisoner has but little hair either on his face or head. The prison physician examines him and it is decided where he is to work. He is next shown the cell he is to occupy, and later on his place of work. Over his cell is placed his name and number. He now enters upon that indescribable, desolate, and dreary life of a convict.

THE TREATMENT OF THE PRISONERS

The inmates of the Missouri penitentiary are well clothed. In this respect, this prison has no rival. All the prisoners presented the appearance of being cleanly, so far as their clothing is concerned. All are dressed in stripes. None are exempt. Here are nearly two thousand men on an equality. None of them can look down upon others, and say, I am more nicely dressed than you. I never saw a convict dude in the entire lot. The prisoners are well fed. For breakfast, the bill of fare consists of bread, coffee, without milk or sugar, and hash. There is no change of this bill of fare. If the prisoner has been there for ten years, if not in the hospital, he has feasted upon hash every morning. Boiled meat, corn bread, potatoes and water make up the dinner, and for supper the convict has bread, molasses and coffee. The principal objection to this diet is its monotony. Whenever a change of diet becomes a strict necessity, the prisoner is permitted to take a few meals in the hospital dining-room. Here he receives a first-class meal. This is a capital idea. A great deal of sickness is prevented by thus permitting the convict to have an occasional change of diet. On holidays, such as Thanksgiving day, Christmas, etc., an extra dinner is given, which is keenly relished by all. I have before me a statement of the expenses for a Sunday breakfast and dinner. There are only two meals given on Sunday. The hash was made up of 612 pounds of beef, 90 pounds of bacon, and 30 bushels of potatoes. Fifty-one pounds of coffee were used, and four and a half barrels of flour. The entire meal cost \$68.38.

For dinner, 1,585 pounds of beef, 30 bushels of potatoes, and 4 1/2 barrels of flour, were used. This meal cost \$100.61. It costs about ten cents each a day to feed the prisoners. Some of the convicts, after they get their daily tasks performed, do overwork. The contractors pay them small sums for this extra labor. With this money the convict is permitted to purchase apples from the commissary department, which he can take to his cell and eat at his leisure. The commissary keeps these apples on hand at all times in

packages, which he sells to the prisoners at twenty cents each. In prison, apples are the most healthful diet the inmate can have. Should friends on the outside desire to send delicacies to any of the prisoners, they are permitted to receive the same, and, taking them to their cells, eat at their leisure. These luxuries are highly appreciated by the men in stripes, whose daily food is largely made up of hash and corn bread. The female prisoners must subsist on the same kind of food as the males. In some penal institutions, Kansas for example, the women have better diet than is furnished the men. Not so in this penitentiary. All are treated alike, so far as food is concerned.

Three times each day the men march into the large dining-hall, which accommodates 1,500, and partake of their meals. The tableware is of tin and somewhat meager. The tables themselves present the appearance of the modern school-desk, being long enough that twenty men may be comfortably seated at each. No table-linen is used. When eating, the convict is not permitted to call for anything he may wish. When a dish is empty it is held aloft, and an officer or a convict waiter replenishes it. Ample time is given to eat. All have a sufficiency of food such as it is. Every thing is clean. After the meal is over, the prisoners, in ranks, return to their workshops, or to their cells in case it is the last meal of the day. It is a very interesting sight to witness 1,500 convicts eating at the same time.

The officials are to be commended for the following privileges they grant the prisoners: On all holidays, such as Fourth of July, Christmas, etc., they are let out of their cells into a large open square, inside the prison walls, and are allowed to converse with each other, and are given full liberty to do as they wish. These are days of freedom. Officers, of course, are among them to see that no fighting occurs, and also to prevent any from effecting their escape by scaling the walls. The prisoners do certainly enjoy these times. They shake hands with each other, run about, shout, leap for joy, and have more real happiness than a lot of school-boys who have been shut up in a room all day at their studies and are in the evening turned out for play. The men are very careful not to abuse this privilege which they prize very highly. There never have been any disturbances, nor fights, nor attempts at escape during these holidays. These privileges granted the prisoners demonstrate the humaneness of the prison officials.

The question often arises, why is it there are no more riots and insurrections in this prison. Here are nearly two thousand men huddled up together. They are prisoners, suffering the worst kind of bondage. Why is it they do not make a rush for liberty whenever an opportunity presents itself? Many of them are in for life, and may never again see beyond their prison walls. Why are they so docile? These questions can be easily answered. Many of the men are short-time prisoners, having from one to three years, and cannot afford to get into trouble, as their time is short. Added to this, if the prisoner behaves himself, and obtains a good prison record, he obtains a pardon and restoration to citizenship when three-fourths of his time has expired. If a man is sent for ten years, by good conduct he will be pardoned at the end of seven and a half years. This is a great inducement to good behavior. The reason the life-men cause but little, if any, disturbance in the prison is, that they all have a hope sometime or other of receiving a pardon, and they know very well that, if they do not have a good prison record, they can never obtain a pardon. A custom also prevails at the prison, that has much to do in causing the long-time men to behave themselves, and be obedient to the regulations of the institution. Every Fourth of July and Christmas the governor of the State grants pardons to two long-time men, so there are four chances annually for a man to obtain his freedom. Before the governor will pardon one of these men, he must be satisfied, among other things, that the convict has a good prison record.

Any one can readily see that this is a great inducement for the prisoner to behave himself. Missouri is the only State, so far as my knowledge extends, that has this custom. It should become, not only a custom, but a law, in every State. It is founded on good sense.

THE PRISONER'S SENTENCE

I believe in capital punishment. When a man falls so low as maliciously, willfully and premeditatedly, to take the life of a human being, he should be hung by the neck until he is dead. Before it is just to impose such a sentence as this upon a human being he should have a fair and impartial trial, which many persons charged with crime do not get. If poor and unable to employ the best legal talent, the court should see that it is furnished. Too often is it the case when a poor man, charged with crime, makes affidavit that he is unable to procure counsel, that some young and inexperienced attorney is selected, in order to give him a start in practice. The consequence of this

inexperience is that the man charged with crime has to suffer for his lawyer's inability to secure for him his rights. After the jury has brought in a verdict of guilty he should have the privilege of taking his case to the Supreme Court, and have it reviewed by that tribunal at the expense of the State. No human being should be hung on circumstantial evidence, unsupported by positive testimony. If the judgment below is confirmed, then let the murderer be kept in close confinement in the penitentiary for one year, and, if during that time no new evidence or mitigating circumstances arise let him be hung by the neck until he is dead.

Let the execution take place in the prison, let it be private and witnessed by but few persons, designated by the executive of the State. It is better for the criminal to be hung than to be sent to the penitentiary for life. While serving out a lifetime sentence he suffers ten thousand deaths. Those States where the death penalty is inflicted have the least number of brutal murders, in proportion to their population. The dread of death is a better protection to society than a life of imprisonment. The fiend with murder in his heart thinks "while there is life, hope remains," and if he is sent to the penitentiary for life he may get a pardon after a time. But if he is aware of the fact that if he strikes the fatal blow he must atone for his crime on the gallows, he is more liable to think twice before striking his innocent victim once. There should be no such a thing as a life sentence. No criminal should be sent to the penitentiary for a term longer than fifteen years. The suffering he endures during this long sentence is enough to atone for any crime he may commit aside from a brutal murder, and for this he should be hung. Fifteen years of imprisonment is sufficient to break down almost any constitution. Having spent this length of time behind prison walls a man is a physical wreck, and, having atoned for his crime, let him have the last days of life in the world of freedom. The greatest desire of a life man in our penitentiaries is to die outside of prison walls. No criminal should be sent to the penitentiary for less than five years. After giving him one fourth off for good behavior, he has but little more than three years of actual service. This will give him plenty of time to learn a trade, so that when he goes out of prison he can make a living for himself and for those depending upon him. For crimes that require lighter sentences of imprisonment let jails or reformatories be brought into requisition. In the eyes of the world a jail sentence is not so disgraceful as one in the penitentiary.

The plumage of a jail-bird is not so black as that of a penitentiary bird. The disgrace of being sent to the penitentiary for one year is as great as being sent for five or ten years. Whether he goes for one or five years, for all the future he is set down as an ex-convict. People do not stop to inquire as to the length of his sentence. The main question is: Was he in the penitentiary? If so, he wears the mark of Cain—the stamp of disgrace. Not so, if he simply has been in jail. There are a great many young men, while surrounded by bad company, yield to temptation and commit crime. A dose of jail service will do them as much good as a year in the penitentiary. After they get out they do not feel the disgrace so keenly, and there is some hope for their reformation. Send them to the penitentiary and it will be a miracle if they ever amount to anything in the future. If a jail sentence of a year does not reform a young criminal, or a man of older years, who has committed his first offense, then give a term in the penitentiary for five years for the second offense. It is too true that a sentence to the penitentiary for a first term is the irretrievable ruin of the young offender. This becomes an obstacle which, during all the future, he cannot surmount. This plan being adopted let everything be done to reform the youthful offender while in jail. It is much easier to carry forward the work of reformation in a jail or reformatory than in a penitentiary.

CHAPTER XVII. THE MISSOURI PRISONERS —(Continued)

During the years 1887 and 1888, 1,523 prisoners were received into the Missouri penitentiary. Of this number 1,082 were white males, 398 colored males, 17 white females, and 26 colored females. These figures show that the women of Missouri are a great deal better than the men, or they do not get their share of justice.

*TABLE SHOWING THE AGES OF CONVICTS
RECEIVED DURING THE YEARS 1887 AND 1888.*

<i>From 16 to 20.....</i>	<i>320</i>
<i>" 20 to 25.....</i>	<i>441</i>
<i>" 25 to 30.....</i>	<i>344</i>
<i>" 30 to 35.....</i>	<i>143</i>
<i>" 35 to 40.....</i>	<i>113</i>
<i>" 40 to 45.....</i>	<i>70</i>
<i>" 45 to 50.....</i>	<i>34</i>
<i>" 50 to 55.....</i>	<i>31</i>
<i>" 55 to 60.....</i>	<i>15</i>
<i>" 60 to 65.....</i>	<i>5</i>
<i>" 65 to 70.....</i>	<i>4</i>
<i>" 70 and upward.....</i>	<i>5</i>
<i>Total</i>	<i>1,523</i>

There is nothing that should interest the good people of Missouri more than the foregoing table. These appalling figures I copied from the prison records. Of the 1,523 criminals received during the past two years, more than one-fifth of them were mere children. Would it not be better to give these boys a term in the county jails, or in some reformatory, instead of sending them to a penitentiary? Coming in contact with hardened and vicious criminals, what hope is there for getting these boys into the paths of honesty and uprightness? Then there follows the large number of 441, representing the youthful age from twenty to twenty-five years. These are the years most prolific of criminals. Who can say these boys are vicious and hardened criminals? Then follow the young men of from twenty-five to thirty. Three hundred and forty-four of this age find a home in felon cells. Are these boys and young men not worth saving? What can be done to

snatch them from a career of crime, and to save them from becoming miserable wrecks? Father, if one of these boys was a son of yours, you would think seriously over this important question.

Something should be done to save this large army of youth who are annually finding their way into felon cells.

Is the penitentiary the proper place to send those youthful offenders? If so, then they should not come in contact with the older and hardened criminals. One of the most essential things to be done in a prison is the classification of the inmates. This is not done in the Missouri penitentiary. Here the mere youth often cells with a hardened old criminal of the worst description. I would rather a child of mine would be boxed up with a rattlesnake. In this institution there are nearly 2,000 criminals huddled up together—an indiscriminate mass. The officials are not to blame for this. They realize the terrible condition of things at the prison. They have not sufficient room for the classification and proper arrangement of the inmates. They know, perhaps better than anyone else, that the prison is not what it should be. Warden Marmaduke says, in his last report to the prison directors, "This prison is now too much crowded and it becomes a serious question at once, as to what disposition will be made of them in the future. If this prison is to accommodate them, another cell building should be built at once. If another prison is to be the solution, it should be commenced. If a reconstruction of our criminal laws, looking to the reduction of crime, it should be done now. And in any event, and whatever may be done, certainly our management of prisons should be so modified or changed that the practical, not the sentimental system of reform, should be adopted. I believe that our present system is making criminals instead of reforming them, and I believe that it is practicable to so classify, treat, feed, work and uniform these people, as to make better men instead of worse men out of them. I have profound respect for the good purposes of the benevolently disposed men and women, and they are numerous, who are devoting themselves to the effort of reforming criminals. Yet their efforts must be supplemented by a practical building up and the development of the better instincts of the man, which cannot be done under our present system. The surroundings are against it. We are constantly developing and stimulating the very worst instincts. I believe it practicable to institute methods for this reform, at once creditable to the State." Who can doubt our statements on this subject when we quote such high authority as the above. The last warden of this great

institution comes out and officially announces that awful fact that our present system of prison treatment is constantly developing and stimulating the very worst instincts. Constantly making men worse, and when a young man enters the prison he is morally tainted, when he goes out he is completely saturated, with moral pollution. After such statements from so high an authority will the great State of Missouri, so well-known the world over for her numerous acts of benevolence, continue to have an institution within her borders for the complete demoralization and ruin of multitudes of her young men. Should a youth of Missouri, surrounded by influences and temptations which he could not resist, once fall from a position of honor and integrity, although it is his first violation of the law, he will be taken into custody of the State, hurled into a pit, where for a time he will inhale the fetid breath of wickedness, then, later on, to be released and sent out into the free world a moral leper.

The State should not provide this machine for the moral destruction of her unfortunate youth. If this be the real and true condition of affairs, what can be done to change them? I would suggest the erection, at once, of a reformatory. Classify the prisoners. Let those who are in for the first offense be separated from those who are professional and debased criminals. Give these youthful offenders the benefit of schools, connected with the reformatory. Let them have moral instruction, and many of these young men will be reclaimed. However well a criminal is treated, when behind prison walls, however good the advantages granted him, all this will avail but little, if some provision is not made to aid him when he leaves the prison. Many prisoners, at the time of their discharge, may be, in heart, as pure as angels, and resolve to lead good lives, yet they are convicts, and carry out with them the shame and disgrace of such a life. They must live even if they are disgraced. They must have work. Who will employ a convict? Should a man, just from the prison, come to you and frankly inform you that he was recently discharged from a felon's cell, that he had been convicted of horse-stealing, for instance, and wanted employment with you on the farm, how many of you, my readers, would give him work? You would be afraid of him. You would decline his services, and who could blame you? But the convict must live, and it is easily seen, how, that after applying to several for work and being refused each time on account of his past trouble, he would, after a time, become discouraged and return to a life of a criminal. Hunger drives him to deeds of desperation, and more

especially is this the case if he have a wife or helpless children depending upon him. On his discharge from the prison the State presents him, with a shoddy suit of clothes (very cheap), buys him a ticket for the town from which he came, and then lets him shift for himself. Disgraced, penniless, friendless, helpless, how is it possible for anyone of them ever to secure another foothold in life.

Something should be done, to help these men to secure work for a time after their discharge from prison. This would prevent a vast majority of criminals from returning to the prison after their first term. That my views on this subject may not be considered visionary, and that I may not be regarded as standing alone in my suggestions, I will give a portion of the report of Rev. J. Gierlow, ex-chaplain of the Missouri penitentiary.

"The increase of crime is necessarily attracting the attention of all thinking people, and there is abundant evidence that crime-causes are increasing, for which there seems to be no adequate prevention. It has been said, that nearly all crime originates in the saloon, but this statement requires discrimination. Very few professional thieves are inebriates. That class of criminals are sober men, they could not ply their trade without a clear head, nor do they go with those who drink, for they talk too much. No, intemperance to a considerable extent, is only a secondary cause of crime which must be reached by well-ordered, sanitary, hygienic and educational measures. Diseased bodies and unbalanced minds are largely characteristic of criminals; and these are two factors in producing crime.

"There is a numerous class in whom crime seems to be hereditary, a taint in the blood. In the same family there are generations of criminals. Prison life adds another large section to the criminal class. By the congregate system the prison becomes a school of crime, where the young offender is both demoralized by contact with hardened criminals, and initiated into the mysteries of professional villainy. It is a question whether detention in prison, without remedial influences, is not more of a loss than a gain. The critical time of a prisoner, desirous of building up a new life, is when he crosses the threshold of the prison and goes out into the world. He is met with distrust wherever his past is known. He is in constant terror of exposure if he tries to keep it secret. And what does the State do to put him on his feet or to give him a chance? It gives him a few dollars to carry him here or there, and bids him shift for himself. And finding every avenue of

honest employment closed against him, he is driven in desperation, however well disposed he may be, to renew his criminal habits and associates. What, then, are the remedies, as far as the prison system is concerned? Chiefly, classification. Let not one who desires to reform be compelled to associate with those who are almost sure to degrade and debase him. The neglect of discriminating classification of offenders is a dark stain upon civilization. Then, again, I believe it to be the duty of the State to reinstate the penitentiary man in society. This may be secured by a conditional discharge, the finding of work for him, and the obligation to report himself at stated periods to the proper authority.

I have regarded it as within the province of my office to thus briefly set forth what I have gathered from experience in my intercourse with convicts, as well as from sober conviction, after mature deliberation. Let the State consider and act.

*TABLE SHOWING SENTENCES OF CONVICTS
DURING THE YEARS 1887 AND 1888.*

<i>Years.</i>	<i>Mos.</i>	<i>No.</i>
1	2	
1	...	14
1	6	1
2	...	745
2	3	1
2	6	15
2	8	8
3	...	296
3	6	8
4	...	86
4	4	1
4	6	1
5	...	164
6	...	12
7	...	21
8	...	6
10	...	72
11	...	3
12	...	8
13	...	1
14	...	1
15	...	13
18	...	2
20	...	10
21	...	2
22	...	1
25	...	13
30	...	2
35	...	1
38	...	2
48	...	1

<i>50</i>	<i>...</i>	<i>2</i>
<i>99</i>	<i>...</i>	<i>4</i>
<i>Life</i>	<i>...</i>	<i>4</i>
<i>Total</i>		<i>1523</i>

I have here inserted the foregoing table to show the reader about how the sentences are. It will be observed that of the one thousand five hundred and twenty-three prisoners admitted during the past two years, seven hundred and forty-five of them, or nearly one-half, have but a two-years' sentence. This shows that the crimes committed were not very "horrible in their nature," or the sentences imposed would have been more severe. This is probably the first offense for these offenders. By good conduct in the prison one-fourth of their time will be deducted. This will give them but eighteen months of actual service. What can they accomplish in so short a time? The contractors care but little for them, since their time will expire before they can master a trade and be of any service. Had these youthful offenders been given a term in a county jail or reformatory, would not justice been satisfied, and there would have been more hope for the prisoner as to the future. HE WOULD NOT HAVE BEEN A PENITENTIARY CONVICT. I hope soon to see the day when the great State of Missouri will have a reformatory institution which will receive the wayward youth of that great commonwealth, and, after keeping and training them for a time, will send them out into the world stronger and better men than when first received. So far as reformation is concerned, the Missouri penitentiary is a dismal failure.

CHAPTER XVIII. PRISON DISCIPLINE

The Missouri penitentiary ranks among the leading penal institutions of the country in matter of discipline. The rules and regulations are placed in the hands of the prisoner as soon as he enters. If an inmate obeys these rules and regulations he will be let alone, and will go through his term of service without being punished. If he becomes unruly and disobedient he will be punished, and that, too, very severely.

Each prisoner is allowed one pound of tobacco a month for chewing and smoking purposes. In this prison the inmate is permitted to smoke in his cell. This is the only institution with which I am acquainted that permits smoking. The prisoners seem to enjoy their smoke very much, and I do not see but that it is just the thing, for if a person on the outside takes comfort from the use of his pipe, much more will the man who sits in the solitude of a felon's cell. If a prisoner violates a prison rule his tobacco is taken away from him for a time. The majority of the inmates will obey the rules of the prison through fear of having their tobacco, taken away from them. Each prisoner also has access to the books of the library, and another mode of punishment is to deprive the offender the use of the library for a time. This, also, has a very salutary effect. Another mode of punishment, is to place the unruly convict in a dungeon and feed him nothing but bread and water. The prisoner on entering this dreary abode must leave behind him his hat, coat and shoes, and in this condition he is required often to spend days and weeks in solitary confinement. The dungeon contains no furniture of any description save a night bucket. Prisoners do not remain in these dark holes very long until they promise obedience. It is one of the most successful modes of prison punishment. In case of a second or third offense, and sometimes for the first, in case it is a bad one, the offender is liable to receive a flogging.

This is one of the few penal institutions in our country where the cat-o'-nine-tails is used. When a prisoner's conduct has been such that it is deemed advisable to whip him, he is taken from his cell and led to a post in the rear of one of the large buildings, out of sight of the other convicts. His clothing is then removed, with the exception of his shoes. These are left on his feet

to catch the blood that flows down his limbs. In this nude condition he is tightly bound to a post with chains. Standing at the post, in a helpless condition, he receives the lash. The whip consists of several leather straps, or thongs, at the ends of which small pieces of steel are fastened. Every blow brings the blood. I have been told by reliable persons that, at times, prisoners have been so severely flogged that the blood, flowing down their limbs into their shoes would fill them and run out over the tops. This seems barbarous in the extreme, and my humane reader at once cries out, "It should not be tolerated." In Missouri this flogging of human beings in prison has been going on for more than fifty years. After the punishment is over, the prisoner, half dead with fright and pain, is led back to his cell, where he remains for a day or two, that he may recuperate. He throws himself down on his "bunk," and remains there for hours, the blood still flowing from his lacerated back. Often the blanket on which he lies, sticks to his bleeding back, and a fellow convict is asked, often, to assist in removing it. Many a poor fellow carries with him through life the scars which were made while a convict in this prison. One day while I was working in the coal mines of the Kansas penitentiary, a fellow-convict showed me his scarred back. He had served a term in the Missouri penitentiary, and while there had been severely whipped. His back told the story too plainly that his whipping had been a severe and cruel one. It would seem that the day of the whipping-post had passed away; that the doors of our advanced civilization were shut against it.

Many of the prison officials claim that it is the most healthy mode of inflicting punishment; that to place a convict in a dungeon and to feed him on bread and, water is far more injurious to his health than to give him a good "paddling," and it don't require so long to do the work. The same results are reached more quickly. Others claim that it is impossible to have good prison discipline without resorting to the lash. This statement is not correct. There is no better discipline to be found in any penal institution, than that in the Kansas penitentiary, where no prisoner ever receives a stroke from a whip. The laws of that State forbid it. In our humble judgment it would be the best thing that the Missouri Legislature could do at its next session, to prohibit any further use of the lash. Sometimes a paddle is used, with small holes bored in the end, and every time this paddle strikes the nude flesh, blisters are raised. Again, another instrument of punishment in use is a thick, broad, leather strap, fastened in a wooden handle, at the end

of which lateral incisions are made that give it the appearance of a saw. There is no trouble in raising huge blisters "with this engine of warfare." All these modes are barbarous, and should be forbidden. Whenever severe punishment becomes essential, let the prisoner remain in the dungeon, living on bread and water until he promises, in good faith, to behave himself. A great deal of useless punishment can be avoided if the officer in charge of the prison discipline is a humane man and a good judge of human nature, and no other should be permitted to fill this important position. We must not, however, be too hasty in condemning prison officials for harsh treatment of those under their charge. They have some of the most desperate men on the face of the earth to deal with, and at times it becomes a necessity to use harsh measures. Notwithstanding this is all true, there are but very few human beings but what have white spots in their otherwise darkened souls, and often a word of kindness does more than a cruel blow from a merciless officer.

The excellent discipline of this institution is due, in the main, to Captain Bradbury, the deputy warden. He is beyond doubt, one of the best, and most experienced prison men in the United States. He has been connected with the Missouri prison for thirty-three years. The warden looks after the finances of the institution, and it belongs to Captain Bradbury to hold in subjection the two thousand criminals that are crowded together in that small prison enclosure. This celebrated deputy warden is a Virginian by birth. He is sixty-two years of age. He served in the Mexican war, and now draws a pension from the Government, because of his services there. If a prisoner conducts himself properly, Captain Bradbury will treat him as humanely as he can under the circumstances. If he becomes willful and unruly, the Captain no doubt will take great pleasure in giving the offender "a good paddling," to use his own forcible expression. This official is a strong advocate of corporal punishment. He claims that a "little loosening up of the hide" of an obstreperous prisoner does the said prisoner a vast amount of good. Among the convicts the deputy warden is austere. He is never seen sauntering about the prison enclosure with his long arms entwined about any of "the boys in stripes." He claims, that too great a familiarity breeds contempt. This seeming harshness when in the presence of the prisoners is only borrowed for the occasion, for, away from the convicts, there is not a more social gentleman in the State of Missouri. Great credit is due to Captain Bradbury for his excellent management of

this institution, under such unfavorable circumstances. Could he be persuaded to quit the use of the whipping post, and use other measures less barbarous, I think the same discipline could be secured, as now exists. The officers here do not seem to be so exacting as in many other prisons. In the Kansas penitentiary, when prisoners are in ranks going to and from their meals, their cells, or workshops, they are required to fold their arms, and keep their eyes fixed upon the back of the one's head just in front. No gazing about is permitted, and should a prisoner speak to one in the front of him and be detected, he would be summarily dealt with. In the Missouri prison I noticed that the convicts while marching would gaze about wherever they wished, and go swinging along with their arms dangling at their sides. In many prisons the inmates are required, while in ranks, to keep their hands on the shoulders of the man in front. This would seem to be the most desirable way of having the prisoners march. In this prison one can detect more of a homelike feeling, not so rigorous and exacting as in many institutions of this nature. Captain Todd, assistant deputy warden, is another official of long standing. He has been with this prison for eighteen years, and is very popular. In this connection we must not fail to mention Captain Crump, who has been connected with this prison for thirty-six years, but who was discharged during the last administration because of his making statements to the effect that the prison was run by a "political ring." He is now deputy marshal of Jefferson City, and is a faithful officer. He incurred the displeasure of the contractors because of the grave charges he made against them, because of their inhuman demands upon the prisoners, requiring of them more work than they were able to perform. Because of his humaneness, and because he wanted to see the helpless prisoner treated as he should be, after thirty-six years of faithful service was discharged from the institution. In 1883 there was an investigation made of many serious charges preferred against the contractors and some of the leading officials. The committee made their report to the governor, and some five hundred pamphlets containing this report were printed for distribution. When the Legislature met none of these books could be found, and the whole matter was a specimen of whitewash. The report contained some very damaging charges, but nothing was ever done with the matter. I visited the office of the secretary of state and asked to see one of these books, but even his office did not contain a copy of this State document. The Legislature should keep a watchful eye over this penal institution, and, while there should be

good discipline maintained, the prisoners should not be treated in a barbarous manner.

A PARDONING BOARD

The governor has the pardoning power. He extends executive clemency to a number annually. He has not time to attend to the duties connected with this prerogative. There are 2,000 prisoners. No doubt many of them have excessive sentences. If a thorough investigation was made, many would be found innocent. The governor has not the time to attend to these matters. There should be a pardoning board appointed to investigate these cases and advise with the governor. To show the necessity of such a board, I have only to state that during the past year the Pardoning Board of Kansas has advised executive clemency to fifteen criminals who received their pardons on the grounds of innocence. One of the number being a Mrs. Henrietta Cook, who was sentenced for life, and who had served fifteen years of imprisonment, when, upon an investigation of her case by the Pardoning Board, she was discharged, there being no doubt as to her innocence. The great majority of these prisoners are poor and friendless. They have no one on the outside to aid them in securing their rights, and unless a pardoning board is appointed to investigate these cases, many a man and woman entirely innocent, will have to serve out a sentence in this prison.

It is but natural for the contractors to use their influence to prevent the men under their control from receiving pardons. If a man is sentenced for ten years, and has been in one of the shops for two or three years, and has learned to do his work well, the contractor will want to keep him instead of letting him go, and will, no doubt, in an underhanded way, do all against the poor prisoner he can. This strong influence in many cases will have to be counteracted and overcome before the prisoner can receive his pardon and obtain his liberty. A pardoning board, when appointed, should be men who would not be in collusion with the contractors, but be men who would see that the prisoner had justice.

CHAPTER XIX. NOTED CONVICTS

At the present time there are fifty-six females who find homes in this living tomb. Two-thirds of them are colored. The greater portion are kept busy making underclothing for the prisoners. They are detained, during working hours, in a room, seated at tables, with a lady guard watching them. They are not allowed to converse with each other, only as they get permission from this officer. They are not permitted to see the male prisoners. In fact there is no way of entering the female prison from the male department. The dormitory is on the third floor. The female convicts wear striped calico dresses, the stripes running lengthwise. The female prison is kept scrupulously clean, which reflects great credit upon those having the management of this department.

In company with Doctor Lewellyn, the prison physician, I passed through the dormitory. Here I found a great curiosity. It was a baby prisoner, six months old. The little convict was born in the penitentiary. It is a colored child—its mother being a mulatto, who was sent to prison for fifteen years for murdering two of her children. When on the outside, she lived with her paramour, a white man, and, as fast as children were born to them, she would murder them in cold blood. The white man was tried also as accessory to the murder, but, owing to her refusal to testify against him, there was not sufficient evidence to convict him, and he was set at liberty. He often visits her at the prison, bringing her eatables, which are very much relished in the penitentiary. I saw also the notorious Sadie Hayes, who was sent up from St. Louis for killing a policeman. She was under the influence of strong drink, and, thus crazed with whisky, the officer tried to arrest her. She drew a razor, and began to slash away at the officer, and, in spite of his club and large, muscular frame, she soon cut him to pieces. He expired on the sidewalk, where the engagement took place. She was sent up for ninety-nine years, and has now been in prison about three years. She is one of the most desperate looking women I ever saw, and, when crazed with drink, becomes an infuriated demon. She is an adept in the use of the razor.

The oldest female prisoner is an aged German woman by the name of Oldstein, from Gasconade County. She has been in the penitentiary thirteen

years, and, doubtless, would get a pardon if she had any place where she could make her home after securing her liberty. The old woman is entirely broken down and is a physical wreck. She spends the most of her time knitting. Aside from keeping her own bedding clean she is not required to perform any labor. She was charged with a cold-blooded murder. She, her husband and daughter murdered her daughter's husband. The old man was hung, the daughter was sent up for life, and died in a few months after entering prison. The old woman was sentenced to be hung also with her husband, but the governor commuted her sentence to that of life imprisonment. For thirteen long, dreary years she has lived behind these prison walls. She longs for death, but death refuses, as yet, to claim her as his own. Broken in health, friendless, penniless, this poor old woman is but another proof that "the way of the transgressor is hard." I also saw Anna Brown, another female prisoner, who, with her step-brother, planned and carried into execution a terrible cold-blooded murder. It was none other than the killing of her aged father. The boy was sent to prison for life and the woman received a sentence of forty-nine years. Her sentence might just as well have read "life imprisonment" as forty-nine years, for she cannot live but a few years longer in confinement. Nannie Stair is another interesting prisoner. She came from Vernon County. An old and crippled man was driving through the country. Night coming on found him near the house of the Stair family. He stopped and asked for a night's lodging. His request was granted. That was the old man's last night of earth. During the hours of the night Stair and his wife made their way into the bed-chamber where the helpless traveler lay asleep unconscious of his doom. It was not long until the husband sent an axe crushing through his brain, his wife standing by, a witness to the fearful deed. During the same night they dug his grave in the garden back of the house, and buried him. Next day the husband drove the murdered man's team to a town not far distant, and sold it. In a couple of weeks friends began to institute search for the missing man. He was traced to the home of the Stair family. The husband and wife being separated, and the officers telling the wife that she would be let out of the scrape without much punishment in case she would tell all she knew, she informed them of all the details of the bloody deed, where the victim lay buried, and what disposition was made of the murdered man's team and money. The two were arrested, tried and convicted. The husband was hung, and the wife sent to the penitentiary for six years. Her time will now soon

be served out, and she will once more be a free woman. The desire of this family to obtain filthy lucre was too great. Of the fifty-six female inmates of the Missouri penitentiary, fifteen of them were sent for murder. Kansas City has several female representatives. It is stated, on good authority, that the sentences imposed by the judges of the Kansas City district are far more excessive than in any other portion of the State. I was told that a number of these female convicts were very desperate characters, while others of them, driven to deeds of desperation on account of poverty, committed acts that for a time placed them behind prison bolts and bars. Something should be done to aid these poor women, when their terms expire, to get a start in life. If something is not done for them, it will be but a short time when they will drift back again into crime and prison.

The author of this book believes that it is all right to send money to India and other remote countries to aid the heathen, but instead of sending it all away to lands beyond the seas, he thinks a portion of it, at least, could be well expended this side the briny deep in helping some of these poor unfortunate convicts to get another start in life, and thus lift them out of a life of crime.

WHISKY AND CARDS

Felix Bagan's history shows the career of many a boy, when thrown into bad company. At an early age Felix was left an orphan. When his parents both died he had not a relative living that cared anything for him. Taken from the grave of his mother, who died shortly after the death and burial of her husband, the unfortunate lad was placed in the orphan's home in St. Louis. Here he remained for several years, and acquired all the education that he possessed. After becoming old enough to do some work, he was given to a farmer, who took him to his home in the country. Possessed of a genial disposition, he soon made many friends. He was highly esteemed by the lady and gentleman who adopted him. He was honest and industrious. It was on election day that his down-fall took place. In company with several young men, who resided on neighboring farms, he went to a small town near by to pass the day. Being invited to participate in a game of cards, he and several of his companions found their way into the back part of a saloon, where the day was spent in drinking and gambling. Toward evening a dispute arose about the cards, a drunken fight was the result. Bagan, half crazed with drink, drew his knife and stabbed to the death one of his

companions. The young man whom he murdered, prior to this had been one of his best friends. When he saw the life-blood of his companion ebb away, he came to his senses, and was soon sober. He wept like a child when he saw his friend sinking away into, the arms of death. The awful deed was done, and nothing was left to the unfortunate youth but to be led away to prison, with the blood of a human being upon his garments. In due time he had his trial, and was sent to the penitentiary for thirty years. He was twenty-two years of age when he received the sentence. He has now been in the prison thirteen years. For seven years he worked in the saddle-tree shop for Sullivan, Hayes & Co., prison contractors. At the end of that time his health failing, he refused to work. The prison authorities thought he was trying to shirk his work. After being severely flogged, he was placed in the dungeon and kept there in solitary confinement for three months. Half dead, he was taken to the hospital and left in the hands of the prison physician. For a time it was thought he would die. After a while he began to recover; large patches of hair fell from his scalp, leaving his head thickly covered with bald spots. When he entered the prison he was a fine-appearing young man, but thirteen years of imprisonment have converted him into a broken-down old man and physical wreck. That was a sad day for that unfortunate youth when he entered the saloon to take part in the game of cards. He will not live to the end of his sentence, but will die in the penitentiary, and find his last, long home in the prison grave-yard. Young man, as you read the history of this convict, can you not persuade yourself to let whisky and cards alone for the future?

BILL RYAN

Passing through the cell houses, I was shown the room occupied by the notorious Bill Ryan for seven years. He was a member of the James boys' gang. Being convicted of highway robbery he was sent to the prison for twenty years. After Jesse James had been killed by young Ford, and Frank's crimes had been pardoned, Ryan's sentence was commuted to ten years, and after serving seven he regained his liberty.

Ryan was accredited with being one of the best prisoners in the penitentiary. On the outside, if reports be true, he was one of the most desperate men in Missouri. His time was spent in drinking, gambling, quarreling, fighting and killing. He is charged with killing a number of men. He was twice tried for murder, but proving an alibi, the jury brought in a

verdict of "not guilty." The prison officials speak in the highest terms of his conduct while an inmate of the penitentiary. He was an obedient and hard-working convict. Now that he is once more a free man it is to be hoped that he will show himself as good a citizen on the outside, as he was on the inside, of prison walls.

WILLIE HILDRUM

This youthful convict is but sixteen years of age. He is the youngest prisoner in the penitentiary. He was formerly a boot-black on the streets of St. Louis. Getting into a fight one day with one of his boot-black companions over a nickel that they had jointly earned "shining up" a patron's boots, young Hildrum drew an old knife from his pocket, which he had found a few days before, and sent the rusty blade into the heart of the street Arab. The youthful murderer was tried and convicted of manslaughter, and on account of his youth was given but two years in the penitentiary.

S. D. HENSON

This convict was at one time county judge of Stoddard County, and highly respected. He is one of the finest appearing men I ever saw. His finely shaped head bespeaks intelligence. It is sad to see such grand looking specimens dressed in the garb of disgrace. Judge Henson became involved in a quarrel with one of his neighbors over some trivial matter, and killed him. His sentence is for twenty years, which for him at this advanced age means death in the prison. Great efforts are being put forth for his pardon, but it is a question left entirely with the governor, and no one can tell how he may act.

Judge Henson is not at heart a criminal. On that open countenance there is no mark of Cain. Thinking of his sad case, more than ever am I convinced that we are creatures of circumstances. How many of my readers, had they in the past, been surrounded by the same circumstances, subject to the same temptations, would not have acted in the same manner, and like judge Henson found a home in a convict's cell.

FORTY-EIGHT YEARS A PRISONER

John Hicks is the veteran penitentiary convict of the United States. Under an alias he served one term in the Missouri penitentiary. Most of his time has been spent in prisons further east. He is now eighty-four years of age, and quite recently was released from the Michigan City penitentiary. Prison

authorities have compared notes and find that he has actually served forty-eight years of prison life. He is the oldest living criminal in this country. He has served ten terms, the greater portion of them being in Indiana. His first crime was committed in 1839. In some way he learned that a man named Bearder had \$360 in his house. While the family were at church Hicks rifled the house and stole their money. A marked coin led to his conviction, and he got a three years' sentence. He was never, afterward, out six months at a time, and was sent up successively for burglary, criminal assault, robbery, larceny, cattle-stealing and horse-stealing. At the expiration of his fifth term, at Michigan City, he made his way to the office, where the directors were in session. He begged them to allow him to build a shanty in a part of the prison in which he could sleep and call his home. All that he asked was that the scraps from the table be given him for food. The board refused to allow him this, and Hicks bade them good-by. He walked to a small town near by, where he soon was arrested for thieving, and was taken to prison to serve what he declared to be his last term. His head is as white as snow, and in keeping with his long, flowing beard, and he looks like a patriarch, yet is not stooped a particle. His desire now is to secure honest work, that will guarantee him a home. He wishes to spend the rest of his days a free man. Had this man been assisted just a little at the expiration of his first term, he might have become a useful citizen, but as it was, his life was spent behind the bars. When once the feet find themselves walking in the pathway of crime, it is very difficult for them ever to walk in paths of honesty and uprightness thereafter.

NINE TIMES

As I was walking through the penitentiary, in company with Deputy Warden Bradbury, he pointed out an old convict, and said, "There is a fellow that has seen prison life. He is here this time under the name of Gus Loman. He is now serving his NINTH term in this prison. At the expiration of one of his sentences he went away and was gone over a year, and when he came back I asked him where he had been so long. His reply was, 'Simply rustivating at Joliet, Ill., with some friends.' Every time he is sent to prison he gives in a new and different name and, of course, no one but himself knows what his real name is." When asked why he comes to the prison so often, he remarked that, when once in prison it is impossible to get work to do on the outside, and he had made up his mind to spend the rest of his days in prison. He claimed that the fates were against him and he

could not make a living on the outside, as no one would employ him; that he had tried it several times and failed, and now he had given up all hope. He is a bold, bad and natural thief. As soon as his term is out he goes a little distance from the prison, gets on a spree, gets into trouble, steals something, and soon finds himself back again in the penitentiary. He is now over seventy years of age, and is both a physical and moral wreck. What an awful warning for the young is the history of such a wasted life.

DESPERADO JOHNSON

This convict is the most daring and desperate criminal in the Missouri penitentiary. The prison authorities have had more trouble with him than with any other man who ever found a home behind the walls of this great institution. He was sent up from Jackson County, and was charged with murdering two men before he was finally convicted of crime. On trial for these two murders he was successful in proving an alibi. The last time he was not so successful, and received a sentence of twelve years. Soon after his arrival at the prison he was set to work in one of the shops. When he became a little acquainted, his innate cussedness induced him to raise a riot in the prison. It was a desperate undertaking, but he was equal to the emergency. For days and weeks he was on the alert, and when a guard was not on the watch he would communicate with a convict, and enlist his services, and give him his instructions as to what part he should perform when the signal should be given.

At last the day came when all was ready for the plans so well laid to be carried into execution. Each of the convicts who were to act in concert with him piled up a lot of kindling in their respective shops and saturated it with kerosene. When the prisoners were being marched out to supper, they threw matches into the piles of kindling-wood, and soon several buildings were on fire. Intense excitement now prevailed among the two thousand convicts. The ranks were quickly broken, and all was confusion. Some of the better disposed convicts tried to assist the officers in putting out the fires, and were in turn knocked down and trampled upon by those who were in favor of the riot. In the midst of this great excitement Johnson, the leader, with four of his associates, knocked down one of the guards and stripped him of his clothing. Johnson put on this suit of blue and started to one of the towers. Reaching the same, he asked permission of the officer on duty to let down the ladder and allow him to ascend and assist him in "holding the

fort," as this was Captain Bradbury's orders. Johnson's intentions were to get on top of the wall and into the tower, where the guard opened the large gate below by the use of a lever. The convict, once inside the tower, would knock the officer down, seize his gun, raise the lever, throw open the large gate in the wall, and permit the prisoners all to rush out. This was a bold scheme, and it is a wonder, during the great excitement that prevailed, that it was not successful. The officer on duty, when requested by the convict to allow him to ascend the ladder, coolly drew his gun, and told him if he dared to ascend he would send buckshot into his body.

Foiled in this, the desperado returns to where the officials are fighting the flames, and began cutting the hose so as to stop the supply of water. The fire raged furiously. A strong wind sprung up adding intensity to the flames. Over \$200,000 worth of property was soon swept away in this direful storm of fire. After a fearful conflict the prisoners were overpowered and driven into their cells.

A number of them were severely wounded. Several died of the injuries received. The prison directors had a called meeting and investigated the riot. The blame fell upon convict Johnson. A criminal charge was preferred against him in the courts, for arson. He was convicted and served an additional sentence of twelve years. This, added to his former sentence, makes twenty-four years of imprisonment for this desperado. When he was taken out of the penitentiary to stand trial for setting fire to the prison, he was heavily loaded with chains, and in the custody of six prison officials. It was feared he would make a desperate effort to escape during this trial. On his return to the prison he was placed in a dark dungeon, and has been kept caged up ever since, like a wild beast. When he is given exercise he wears a ball and chain and an officer walks immediately behind him, with a loaded Winchester, ready to shoot him down if he makes any bad breaks. The officials are very careful when they enter his cell for any purpose, as he is liable to kill them. Captain Bradbury, the deputy warden, in speaking of him, says, he is the most desperate criminal he has met during his thirty-three years of prison experience.

HENRY BUTLER,

a colored representative of Pettis County, has served the longest consecutive term of any of the male prisoners. Henry killed his man, and for this mistake has been doing service for the State of Missouri "without

money and without price" for the past fifteen years. The story of his downfall is very romantic. He was a married man, and the father of an interesting family. There lived near him a young lady of color, very handsome and attractive, so the story goes, and for whom Henry had a great liking. There was nothing wrong about all this, perhaps, if Henry had not permitted his affections to go too far. Instead of admiring this dusky maiden at a distance, as he should have done, he brought her to his home, and cared for her there in a manner too affectionate for the tastes of his colored neighbors. Henry was remonstrated with, but to no purpose. At the close of church services one moonlight Sunday evening his neighbors held an indignation meeting, and it was resolved to put a stop to Henry's little love scheme, as it was now very evident that his wife was getting tired of having the maiden about her so much. The meeting adjourned that evening to have the next one the following night at Henry's front gate. During the ensuing day he was apprised of the intentions of his callers, and was urged to let the young lady depart from under his roof. Henry refused, since love is blind. He got his shotgun in readiness to protect his home and his rights. At the appointed hour some twenty-five or thirty neighbors gathered at the place selected, and demanded of Henry that he should give up the maiden loved, or pull hemp. At this juncture Henry called into requisition his double-barreled shotgun and turned both barrels loose on the excited throng. The result was a stampede, one negro killed and two wounded. For this brave deed he was arrested, tried and sent to prison for life. In solitude for fifteen years, Henry has had the privilege of thinking of his illicit love, none of his former neighbors daring to molest him or make him afraid.

The case of a prisoner who was in the Missouri prison under the name of
GEORGE ELLIS

is very remarkable. Over in Kansas a cold-blooded murder had been committed. It seemed impossible for the authorities to discover any trace of the murderer. Shortly after this murder had been committed, Ellis was arrested and tried in Missouri on a charge of horse-stealing, and got a two years' sentence. He heard of this murder having been committed in Kansas, and, for some reason best known to himself, he went to Deputy Warden Bradbury and confidentially told him that he had committed the offense, and asked him to notify the authorities of Kansas. This was done and a pardon was granted Ellis that he might be taken to Kansas and tried for

murder. No doubt, Ellis' motive in stating that he was guilty of this offense was to get out of the penitentiary. He supposed that after getting pardoned out of the Missouri prison, he would have no trouble in proving an alibi in the Kansas murder case, and in this way go free. He was taken to Kansas, tried, and failed to establish his alibi, and was found guilty of murder and sentenced to the penitentiary for life. If Ellis was guilty of murder, he surely would not have told on himself and exchanged a two years' sentence in the Missouri prison for a life sentence in the Kansas penitentiary. He is, no doubt, innocent of this crime, but should serve a few years in the Kansas institution because of his smartness.

THE SUICIDE

A young man by the name of John Welch was sent from Stoddard County for an heinous offense, under a sentence of ten years. His family were among the best people of that county, and highly respected. John proved to be a black lamb of the flock. He had not been in prison but a few weeks when he got enough of that kind of living, and, being unable to have his resignation accepted, he concluded to end his career by committing suicide. It was on a beautiful Sunday morning, and the prisoners having been to religious services, were on their way back to their cells to spend the rest of the day in solitude. The chapel where the services were held is in the third story of a large brick structure. An iron stairway is attached to the wall on the outside of the building. It was down this stairway the convicts were marching, one behind the other, when John, stepping out of the door on to the stairway, instead of following his comrades down and into his cell, as he had done on former occasions, leaped out into space and fell to the ground. When he was picked up, life was extinct. He received his pardon that day, but gave his life as the ransom. No one can imagine how much this youth suffered before he brought himself to that point when he decided to make that leap into eternity.

CHAPTER XX. THE EX-CONVICT

Heavy are the burdens which men in prison must bear. They are deprived of liberty, separated from friends, no social intercourse, and constantly maintaining an unnatural position. The convict's place is lower than the most degraded menial; he must ask for permission even to get a drink of water. No serf of earth, no slave, however wretched, has a sadder lot. These unhappy mortals have yielded to temptation, have fallen, and are paying the penalty of violated law. Who can think of these degraded beings, without, to some extent, its calling forth the sympathy of the human heart, for we must not forget that they, too, are children of one universal Father. However deplorable the condition of these men while in prison, is it much better when they regain their freedom?

One morning about a month after my release from prison, as I was getting ready for breakfast, there came a knock at the door. Opening it I saw a young man—a tramp—who begged for something to eat. I recognized him immediately as a former fellow-convict. He had forgotten me. It has always been a rule in my home, when any one came to my door hungry, he should have something to eat. At times, adhering to this practice has almost converted my home into a hotel for tramps. I invited this young man in, and requested him to take a seat with me at the table. He did not wait for a second invitation. He was very hungry. During the meal I inquired as to his past history. He gave me the same old tramp "racket." I had listened to the same story many times. After breakfast was over I asked him if he would have a cigar. With a smile, he said, if I would furnish the cigar, he would be pleased to indulge. I invited him into another room, closed the door and locked it. The turning of the key rather took him by surprise. I reached out my hand to him, and said: "Charley D——, don't you know me? Don't you remember the man who worked with you for a couple of weeks in the penitentiary coal mines, room No. 3? Have you forgotten the last day we worked together, when a large piece of slate fell upon your leg, and I had to assist you in reaching the foot of the shaft as you were being conveyed to the hospital?"

"My God! Reynolds, is this you?" he exclaimed. "I would never have known you in your pleasant surroundings. Had I met you in the penitentiary coal mines, dressed in prison stripes, your face and hands covered with coal dust, I would have recognized you."

I gave him his much coveted cigar and invited him to a chair. I was anxious to learn his history since he left the prison. He had regained his liberty almost one year before I was released.

After he had reached the quiet contentment which is the inevitable result of a well appreciated breakfast and a good cigar, I said to him: "Charley, just drop your tramp story and tell me your true history since leaving the prison. I am anxious to know just what an ex-convict must meet."

This young fellow was twenty-five years of age. He served five years in the penitentiary for stealing horses. He had an inferior education, and might be considered an average ex-convict. His narrative will show what the great majority of these men are called upon to endure.

His story revealed the fact that when he left the penitentiary he had thirteen dollars in money and a suit of inferior clothes, such as is furnished the prisoner when discharged. Having been closely confined for five years, without even a newspaper to read, with but few visitors, he was entirely ignorant of what had occurred during his period of incarceration. His parents had been dead for several years, and he had no friends to whom he could apply for aid. The large iron doors swung upon their hinges, and he went forth a free but bewildered man. He had liberty, it is true, but liberty replete with such trials as awaited this young man is certainly little better than prison confinement. Passing under the big stone archway, and out beyond the prison enclosure, he paused for a few moments upon the little eminence on which the prison stands, and viewed the surrounding country, not knowing what to do or where to go. Finally he takes the principal road that leads across the country, and in a half hour's walk reaches a farm house. He asks for work. The farmer needs a hand, but asks the applicant for whom he worked last.

"I am just out of prison," was the reply.

"I thought so," said the farmer, "for I have seen so many of these men coming out of that place wearing clothes similar to those you have on. How long were you in prison, and what was your offense?"

"I served five years, and my crime was horse-stealing."

At this frank confession the farmer slightly coughed, and stated that a man called the day before, and he had partially promised the place to him, and he did not feel like employing any one until he heard from him. Had the farmer been as frank as the convict he would have said, "I don't want a penitentiary-bird about me, and particularly one that has been a horse-thief."

Finding no employment he moved on. For two weeks this friendless ex-convict walked about the country, going from one farm house to another, seeking employment. He practiced great economy, but at the expiration of this time his thirteen dollars were gone. He was now penniless, friendless and almost hopeless. For two weeks he had told the truth, and frankly confessed he was an ex-convict. He had a desire to do right. He felt that the first step down the hill toward the penitentiary was lying. But two weeks squandered in trudging about the country seeking employment and finding none, convinced him that it was impossible to obtain work and tell the truth as to his past history, so he imagined nothing was left but to practice deception, steal or starve. Reader, what would you have done? He did what you probably would, surrounded by the same circumstances—he made up his mind to lie. On making further inquiries for work, he learns of a farmer living several miles away, who desired hired help. He immediately set out for that place. This farmer, like all the rest, put the question, "For whom did you last work?" Instead of imparting the information that he was an ex-convict, he invented a little story to the effect that he had worked for a farmer living some miles distant, with whom he had become quite well acquainted, having spent a Sunday at his home, and whose name he gave his inquisitor. He received employment. A bargain was made, and our now happy ex-convict went to work. Three weeks passed away. The employer and the employee were mutually satisfied. The prisoner worked hard. He felt that at last the clouds which had so long obscured his sky were about to break away, and the sunshine of prosperity would soon be his.

But how mistaken we sometimes are when forecasting the future! One afternoon, at the end of three weeks, the old farmer rode up for whom the ex-convict had stated that he worked. The ex-criminal was recognized. The old farmer had some business with the employer of the prisoner, and in the evening before leaving for his home, thinking to do humanity a great favor, confidentially informed his neighbor that he had an ex-penitentiary convict on his farm at work, and that he was an old, hardened horse-thief, and

beyond all hope of redemption. That evening, after supper, the prisoner got the "grand bounce." The small amount of money he received for his three weeks' services on the farm was expended in paying his expenses while continuing his search for work.

He at length arrives at Kansas City, with but a few cents, and completely discouraged about securing work. At this place he met a criminal, a former acquaintance. He, too, was without money. They talked over their misfortunes, and after duly considering the matter, came to the conclusion that out of crime there was no chance to get another start. They planned a burglary for the following night. A residence some distance from the central portion of the city was entered. They obtained ten dollars and a silver watch, and concluded to continue their criminal efforts the next evening. During the day, however, the "pal" was arrested on another charge, and locked up in the city prison. He thought it about time to fly, and so took his departure.

He spent the rest of his time in Kansas, tramping about and stealing. When he had money he would live well; when his pocketbook was empty he would beg and steal. There was one crime he committed for which he could not be much blamed. The old farmer that went to so much trouble to convey the intelligence to his brother granger that the hero of our story was an ex-convict, was the sufferer. The ex-convict, to get "even," one dark night entered the barn, rode away a beautiful riding pony, sold him for fifty dollars in cash, and forgot to mention the fact to the farmer. In stealing, tramping and begging the time had been chiefly taken up from the day he had left the prison, to the morning he came to my house for something to eat. He will doubtless continue this course until caught in some criminal act, which will result in another term in the penitentiary.

The great majority of the criminals in the penitentiary are young men. One dose of prison life is all they desire. Did they but have the least opportunity of living useful lives, and becoming respectable citizens when out of prison, they would improve it, instead of committing crime and being returned to hard labor without compensation. I am now pleading for hundreds of young men who are in prison for the first time, and have all the punishment along this line they desire, who would like to reform and become useful citizens. But how can they accomplish this? Unaided they will come out of the prison, drift about awhile, and then the current of sin

and crime will bear them back again to a felon's cell. In an unguarded hour they succumbed to the tempter's power, and fell. The dark mantle of disgrace has enveloped them. And if there were some kind friend to lend a helping hand, how quickly would they tear it off and put on the robe of useful citizenship. Will not the great State of Missouri adopt some plan to afford aid to these men who would like to be extricated from this dangerous quagmire into which they have fallen?

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